The Corporation of the Town of Ajax

COUNCIL

Monday, May 15, 2023, 7:00 p.m.
Hybrid Meeting
Council Chambers, Town Hall
65 Harwood Avenue South

AGENDA

Alternative formats available upon request by contacting:
accessibility@ajax.ca or 905-619-2529 ext. 3347

Hybrid Meeting: This meeting occurs in person and will be live streamed for viewing at www.ajax.ca/live. Electronic participation is permitted pursuant to Council's Procedure By-law and may be arranged by e-mailing clerks@ajax.ca.

1. Call to Order & Acknowledgement of Traditional Treaty Lands

2. Disclosure of Pecuniary Interest

3. Adoption of Minutes

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3.2. Closed Meeting April 17, 2023 .....circulated separately

4. Question Period

5. Delegations, Presentations, and Public Meetings

5.1. Delegation **South Ajax Community Safety and Cleanliness**
~Tameka Mercurius, South Ajax Resident

5.2. Delegation & Proclamation **Neurofibromatosis Awareness**
~Nicole Goudreau, Mother to Neveah, Neurofibromatosis Ontario Volunteer
~Neveah Sosa, Living with Neurofibromatosis (diagnosed at age 3)

5.3. Delegation & Proclamation **Aging Well Month**
~Moninder Nahar, Community Recreation Supervisor - Town of Ajax
~Elaine Lievaart, Community Engagement Associate - Ajax Public Library

5.4. Delegation & Proclamation **National AccessAbility Week 2023**
~Sepelene Deonarine, Accessibility Advisory Committee Chair
~Tarak Ahmed, Accessibility Advisory Committee Member

5.5. Presentation **Lakeridge Health Update for Council**
~Cynthia Davis, President and CEO, Lakeridge Health

~Nancy Shaw, Sr. Director of Public Affairs & Strategic Partnerships, Lakeridge Health
~Mark Murphy, Sr. Director, Capital Planning & Development, Lakeridge Health

5.6. Presentation **Metrolinx GO Expansion Update**
~Jake Schabas, Head Sponsor, GO Expansion, Metrolinx
~Rajesh Khetarpal, Vice President of Community Engagement, Metrolinx

5.7. Presentation **2023 Town of Ajax Community Survey**
~Victoria Sicilia, Director, Consultation and Engagement, Environics Research
~Liam Nichols, Grants & Strategic Initiatives Coordinator

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None

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DRAFT MINUTES – SUBJECT TO APPROVAL

Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers, Ajax Town Hall and Electronically on Monday, April 17, 2023

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
	Councillors	R. Tyler Morin
		N. Henry
		L. Bower
Regrets:	Regional Councillor	J. Dies

1. Call to Order & Acknowledgement of Traditional Treaty Lands

Deputy Mayor Crawford called the meeting to order at 7:12 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

Mayor Collier declared a pecuniary interest with respect to agenda item 10.2, as he is a Veteran and has Veteran licence plates on his vehicles.

On behalf of Council, Mayor Collier extended condolences to the family of Gary Dies, husband to Regional Councillor Dies, who passed away after a courageous battle with heart disease.

Closed Session (6:01 p.m.)

3. Authority to Hold a Closed Meeting and Related In-Camera Session

Moved by: R. Tyler Morin
Seconded by: S. Lee

That Council convene to a Closed Session pursuant to Section 239 (2) (e) of the *Municipal Act, 2001,* as amended, to discuss a matter pertaining to litigation or potential litigation, including matters before administrative tribunals, affecting the municipality or local board.

CARRIED

3.1 **Central Park Ajax – Receivership Update**

Open Meeting (7:12 p.m.)

Ratify Actions Taken in Closed Session

Moved by: S. Collier
Seconded by: N. Henry

That all directions approved during the Closed Session be ratified.

CARRIED

4. Adoption of the Minutes

Moved by: R. Tyler Morin
Seconded by: S. Lee

That the minutes of the Regular Meeting of Council held on March 27, 2023 be adopted.

CARRIED

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5. Question Period

Mayor Collier noted that members of the public were advised they could submit questions regarding the agenda to the Town Clerk up until noon on the day of the meeting. Jason McWilliam, Manager of Legislative Services/Deputy Clerk, noted that no questions had been received regarding the contents of the meeting agenda.

6. Delegations, Presentations, and Public Meetings

6.1 Delegation: Intimate Partner Violence – Epidemic Declaration

Laura Oliver, Fund Development & Communications Manager, Luke's Place and representative of The Violence Prevention Coordinating Council of Durham (VPCC) provided an overview of the VPCC organization and reviewed recommendations from the 2022 Renfrew County inquest into the murders of Carol Culleton, Anastasia Kuzyk and Nathalie Warmerdam. L. Oliver discussed Intimate Partner Violence (IPV) behaviours, key facts, Town of Ajax's role, IPV statistics, and femicides in Durham Region.

Council Members asked questions regarding shelter demand/supply, awareness initiatives, and underreported IPV cases. L. Oliver responded to questions from Council Members.

On behalf of Council, Deputy Mayor Crawford thanked L. Oliver for her presentation.

With the consent of Members present, item 10.3 was advanced in the order business.

10. Business Arising from Notice of Motion

10.3 Recognizing the Intimate Partner Violence Epidemic

Councillor Henry and Regional Councillor Crawford introduced the motion and reviewed its contents.

Moved by: N. Henry
Seconded by: M. Crawford

WHEREAS Intimate partner violence (IPV) is physical, sexual and emotional abuse and aggression that occurs in an intimate relationship;

AND WHEREAS on the morning of September 22, 2015, Carol Culleton, Anastasia Kuzyk and Nathalie Warmerdam were murdered by a former partner;

AND WHEREAS on June 28, 2022, a five-person jury established as part of a coroner's inquest into the events of September 22, 2015 delivered 86 recommendations;

AND WHEREAS specific legislation addressing family and domestic violence has been passed by six provinces and three territories; however, Ontario has not implemented this type of legislation;

AND WHEREAS the Violence Prevention Coordination Council of Durham (VPCC), which represents 35 local agencies including Luke's Place, Herizon House, and the Durham Rape Crisis Centre, reported a significant increase in demand for assistance from local IPV support providers on behalf of member Victim Services of Durham Region, with IPV victim support up 32% over four years and sexual violence victim support up 277% over four years;

AND WHEREAS the City of Ottawa, Renfrew County, and Lanark County have passed motions declaring an IPV epidemic, and acknowledging the 86 recommendations in the Renfrew County Inquest;

NOW THEREFORE BE IT RESOLVED THAT:

1. The Ontario Government declare an IPV epidemic, as per recommendation #1 of the Renfrew County Inquest; and

2. The Region of Durham declare an IPV epidemic and integrate IPV into the Region's Community Safety and Well-Being Plan, as per recommendation #10 of the Renfrew County Inquest; and

3. This motion be distributed to the Ajax MPP Patrice Barnes, the Ministry of the Attorney

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General, the Ministry of Women's Social and Economic Opportunity, the Region of Durham and Durham municipalities, Renfrew County, and the Association of Municipalities of Ontario.

CARRIED

6.2 **Delegation & Proclamation: Youth Week 2023**

Ashley McWhirter, Community Recreation Supervisor – Youth Development, provided an overview of the Youth Engagement Advisory Committee's (YEAC) mandate and explained the purpose of Youth Week in Ajax. A. McWhirter introduced Anthony Baptiste-Calliste, Youth Engagement Advisory Committee Member and Martel Whittick, Youth Engagement Advisory Committee Member. A. Baptiste-Calliste reviewed activities conducted by the YEAC throughout the year. M. Whittick reviewed events occurring during Youth Week, including the upcoming Mental Health Youth Symposium event on May 4th.

Deputy Mayor Crawford presented the proclamation certificate and proclaimed May 1-7, 2023 as Youth Week in the Town of Ajax.

Council Members asked how they can support youth in Ajax. A. Baptiste-Calliste responded to the question from Council Members.

6.3 **Presentation: Durham Meadoway Visioning Study Update**

Alia Tulloch, Transportation Planning Analyst, Durham Region, delivered a presentation regarding the Durham Meadoway Visioning Study Update. A. Tulloch provided an overview of the study and reviewed objectives, project timelines, and progress to date including community engagement activities, boundary changes, preferred and interim routes, route evaluation criteria and key elevation areas. Chris Leitch, Principal Planner, Durham Region reviewed preferred routes and interim routes (where applicable) for Segments 4 to 7. A. Tulloch reviewed enhancements and amenities associated with the multi-use path, focal points including expanded opportunities for Paulynn Park, preliminary concept sketches, and next steps.

Council Members asked if future enhancements are planned for the Taunton Road/Harwood Avenue segment. A. Tulloch and C. Leitch, responded to the question from Council Members.

On behalf of Council, Deputy Mayor Crawford thanked A. Tulloch and C. Leitch for their presentation.

6.4 **Presentation: Lakeridge Health Update for Council**

This presentation has been deferred to the May 15th Council meeting.

6.5 **Presentation: Ajax Arts & Culture Plan Update**

Robert Gruber, Manager of Community and Culture Development, provided an overview of the Ajax Arts & Culture Plan, and introduced consultants Louisa Plant, Manager, Nordicity (Vancouver) and Mila Dechef-Tweddle, Director, Nordicity (Toronto).

L. Plant discussed project objectives, project phases, community engagement initiatives, planning context, research findings/SWOT analysis including strengths, weaknesses and gaps, threats and opportunities, strategic planning framework, needs and preliminary goals, and next steps.

Council Members asked questions regarding target focus group categories and their findings. L. Plant and R. Gruber, responded to questions from Council Members.

On behalf of Council, Deputy Mayor Crawford thanked L. Plant for her presentation.

6.6 **Public Meeting: PDS-2023-16: Official Plan Amendment Application OPA21-A3**
Zoning By-law Amendment Application Z5/21
Matrix Development Group
101 Pickering Beach Road & 235 Bayly Street East

Sean Jeffrey, Development Planner, delivered a presentation reviewing the contents of the written report and recommendations contained therein. S. Jeffrey discussed the subject lands, official plan designations, current zoning of the subject lands, submitted planning applications, proposed development, proposed rendering, reports and studies, planning

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policies, public consultation, and staff recommendations.

Council Members asked questions regarding traffic, parking and environmental impacts, proximity of the subject lands to key natural heritage features and lands designated Environmental Protection (EP), rationale for reduced building height, minimum parking requirements, timelines associated with the implementation of a southbound left turn lane along Pickering Beach Road, opportunities to install signage to deter "U-turns" on Powers Valley Court, tree preservation, Transportation Demand Management (TDM) strategies, development details, and opportunities to adjust signal timing. S. Jeffrey, Geoff Romanowski, Director of Planning & Development Services, and Bruno Scopacasa, Supervisor of Development Approvals, responded to questions from Council Members.

Deputy Mayor Crawford declared the meeting to be a public meeting and invited comments and questions from the public.

Joyce Gibbons, Ajax resident, expressed concerns regarding environmental impacts, increased density, building height, traffic congestion, public safety, increased collision rates, parking supply, inadequate infrastructure to support increased traffic, unattractive urban development, and size of the development proposal. Council Members sought clarification regarding collisions rates and questioned the source of information. Michael Perotta, Ajax resident, responded to the question from Council Members.

Mohamed Rashid Rafeek, Ajax resident, expressed concerns regarding public safety, proximity of the development to the Bayly Street East and Pickering Beach Road corridors, and traffic congestion.

Bryan Wires, Ajax resident, encouraged Town staff and Council to conduct a site visit. B. Wires expressed concerns with the traffic impact study and traffic congestion.

There being no further questions or comments from the public, Deputy Mayor Crawford closed the public meeting and invited comments from the applicant.

Lindsay Dale-Harris, Senior Urban Planner, Bousfields Inc., spoke on behalf of the applicant and commended the efforts of staff and expressed support for the staff report and recommendations contained therein. L. Dale-Harris discussed transportation solutions related to access, parking and turning movements, environmental considerations namely the buffer area, tree planting and the conveyance of the Carruthers Creek Provincially Significant Wetland (PSW) Complex to the Toronto Region Conservation Authority (TRCA), building height, and building setbacks.

Council Members asked questions regarding appeal rights and the appeal process. G. Romanowski and B. Scopacasa, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: S. Lee

1. That Official Plan Amendment Application OPA21-A3 be approved and that the implementing Official Plan Amendment (No. 72), as provided within Attachment 1 to this report, be considered for approval by Council at its meeting of April 17, 2023;

2. That Zoning By-law Amendment Application Z5/21 be approved and that the implementing Zoning By-law, as provided within Attachment 2 to this report, be considered for approval by Council at its meeting of April 17, 2023; and

3. That the Director of Planning and Development Services or their designate be authorized to grant draft approval of the future Draft Plan of Condominium application that may be required to facilitate the future development of the subject lands.

CARRIED

7. Correspondence

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the report dated April 17, 2023 containing Items of Correspondence be received for information.

CARRIED

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8. Reports

8.1. Community Affairs & Planning Committee Report

8.1.1 Community Affairs & Planning Committee, April 3, 2023

Moved by: N. Henry
Seconded by: S. Collier

That the Community Affairs & Planning Committee Report dated April 3, 2023, be adopted.

CARRIED

8.2. General Government Committee Report

8.2.1 General Government Committee, April 11, 2023

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the General Government Committee Report dated April 11, 2023 be adopted.

CARRIED

8.3 Summary of Advisory Committee Activities

None

8.4 Departmental Reports

8.4.1. OES-2023-11: Contract Award – Parkette Grounds Maintenance

Council Members sought clarification regarding contract scope namely areas maintained. Dave Meredith, Director of Operations & Environmental Services, responded to the question from Council Members.

Moved by: S. Lee
Seconded by: N. Henry

1. That Council award the contract for Parkette Grounds Maintenance, to Unistar General Inc. in the estimated amount of $142,357.40 (inclusive of all taxes), for a period of 1 year.

2. That Council authorize Staff to renew the contract for an additional four, 1 year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $621,029.30 (inclusive of all taxes).

CARRIED

8.4.2. PDS-2023-17: Stormwater Fee and Credit Policy/By-law Update

Moved by: R. Tyler Morin
Seconded by: S. Lee

1. That this report titled “Stormwater Fee and Credit Policy/By-law Update” be received for information; and

2. That by-laws establishing the Stormwater Fee and Credit Policy and amending the Fees and Charges be presented to Council for approval.

CARRIED

9. Regional Councillors’ Report

None.

10. Business Arising from Notice of Motion

10.1 Drinking Water Fountains for Public Spaces

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Councillor Bower and Councillor Tyler Morin introduced the motion and reviewed its contents. Council Members asked questions regarding design features, potable water at splash pads, opportunities to install water features at dog parks, and the number of new parks with water access forecasted. D. Meredith responded to questions from Council Members.

Moved by: L. Bower
Seconded by: R. Tyler Morin

WHEREAS the Town of Ajax offers access to drinking water fountains inside numerous Town facilities, but currently offers very few outdoor water fountains;

AND WHEREAS numerous Ajax parks have access to potable water for the purpose of splash pads, wading pools, etc.;

AND WHEREAS the Town has two new parks with water access planned in the capital budget to 2030, and four park retrofits to 2032;

AND WHEREAS by providing drinking water fountains, the Town can help eliminate the use of plastic water bottle waste in support of our climate change efforts;

AND WHEREAS drinking water fountains can also support the health and wellbeing of Ajax residents;

AND WHEREAS some drinking water designs double to offer a pet drinking station, which would benefit the thousands of Ajax homes that have a pet;

AND WHEREAS the cost of installing a drinking water found where access to potable water already exists is estimated to be between $1,000 to $1,500, not including upkeep, repair, and inspection.

NOW THEREFORE BE IT RESOLVED THAT:

Operations staff include drinking water fountains, where feasible, in the design of new parks with water access and parks with water access that are undergoing upgrades and/or refurbishment, including Exeter Park.

CARRIED

10.2 **Waterfront Parking for Veterans**

Councillor Tyler Morin and Councillor Bower introduced the motion and reviewed its contents.

Mayor Collier abstained from voting due to his declared pecuniary interest.

Moved by: R. Tyler Morin
Seconded by: L. Bower

WHEREAS to improve enjoyment of the waterfront for Ajax residents, the Town offers an annual waterfront parking permit program from May to September;

AND WHEREAS the Town of Ajax has a proud military history, serving as the home of the largest shell filling plant in the British Commonwealth during World War II, was named in honour of the Royal Navy ship H.M.S. Ajax and has celebrated veterans who served aboard the ship by naming local streets in their honour;

AND WHEREAS Ajax desires to further honour veterans and their commitment and service to Canada.

NOW THEREFORE BE IT RESOLVED THAT:

1. Vehicles with an Ontario Veteran graphic licence plate be permitted to park in designated parking areas at Rotary Park, Central Waterfront, and Paradise Beach without obtaining a resident waterfront parking permit beginning with the 2023 season; and

2. By-law Services staff bring forward an amending by-law to the May 15, 2023, Council meeting to implement the necessary changes; and

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3. By-law Services and Communications staff update the information on the waterfront parking permit program information contained on the Town's website to communicate the change to the Ajax community.

CARRIED

10.4 **A Call to the Provincial Government to End Homelessness in Ontario**

Councillor Bower and Regional Councillor Crawford introduced the motion and reviewed its contents.

Moved by: L. Bower
Seconded by: M. Crawford

WHEREAS the homeless crisis is taking a devastating toll on families and communities, undermining a healthy and prosperous Ontario;

AND WHEREAS the Built for Zero Report Card, a monthly snapshot of homelessness in Durham Region, identifies at least 286 people were experiencing homelessness in January 2023, including 43 in Ajax;

AND WHEREAS the homelessness crisis is the result of the under investment and poor policy choices of successive provincial governments;

AND WHEREAS homelessness requires a range of housing, social service, and health solutions from government;

AND WHEREAS homelessness is felt most at the level of local government and the residents that they serve and while municipalities are doing their part, they do not have the resources, capacity or tools to address this complex challenge;

AND WHEREAS Ajax is addressing the homelessness issue by providing space to the Region for a temporary emergency shelter, as well as through the Homelessness Task Force, programs and services at the Ajax Library, the Ajax Locker Program, and various partnerships, all in addition to the hundreds of thousands of dollars contributed to homelessness issues through the Ajax Mayor's Gala;

AND WHEREAS the Association of Municipalities of Ontario (AMO) is calling for leadership and urgent action from the provincial government on an emergency basis to develop, resource, and implement a comprehensive plan to prevent, reduce and ultimately end homelessness in Ontario.

NOW THEREFORE BE IT RESOLVED THAT

- Ajax Council supports AMOs request that the Provincial Government urgently:

  a. Acknowledge that homelessness in Ontario is a social, economic, and health crisis.
  b. Commit to ending homelessness in Ontario; and
  c. Work with AMO and a broad range of community, health, Indigenous and economic partners to develop, resource, and implement an action plan to achieve this goal.

- A copy of this motion be sent to the Minister of Municipal Affairs and Housing; the Minister of Children, Community and Social Services; the Minister of Health; the MPP for Ajax; the Regional Chair for Durham; and to AMO.

CARRIED

10.5 **Establishing a Provincial Short Term Rental System**

Regional Councillor Lee and Councillor Henry introduced the motion and reviewed its contents.

Moved by: S. Lee
Seconded by: N. Henry

WHEREAS Ontario is facing a housing crisis and more can be done to ensure that new and existing housing units serve their intended use, which is to provide stable affordable housing options to the people of this province;

AND WHEREAS short term rental (STR) properties are sometimes prone to nuisances impacting others' enjoyment of their properties, notably in Ajax, noise, waste, excessive

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parking needs, and violence;

AND WHEREAS in rural tourist destinations , locals have found themselves prices out of the housing market because landlords find it more profitable to list as an STR;

AND WHEREAS other provincial governments are stepping into the monitoring and enforcement of short term rentals, including Quebec, British Columbia, Nova Scotia, and Newfoundland which require STRs to register, or attain a business licence or permit in order to list with popular short term rental companies like Airbnb, and Vrbo;

AND WHEREAS STR hosts are also required to register for the Goods and Services Tax (GST) and Harmonized Sales Tax (HST) on what they earn;

AND WHEREAS requiring licencing for Ontario's STR market is a logical next step;

NOW THEREFORE BE IT RESOLVED THAT:

1. Ajax Council requests that the Province of Ontario establish a short term rental licencing and enforcement system; and

2. This motion be circulated to the Honourable Steve Clark, Minister of Municipal Affairs and Housing, AJAX MPP Patrice Barnes, lower-tier municipalities in Durham Region, the Association of Municipalities of Ontario, and Ontario Big City Mayors.

CARRIED

10.6 **Expanding Community Safety Zones**

Mayor Collier and Regional Council Crawford introduced the motion and reviewed its contents. Mayor Collier asked if community safety zones are restricted to school zones. Dhaval Pandya, Manager of Transportation Planning, responded to the question from Mayor Collier.

Moved by: S. Collier
Seconded by: M. Crawford

WHEREAS Section 214.1 of the Highway Traffic Act empowers municipalities to establish Community Safety Zones (CSZ) by by-law;

AND WHEREAS Council approved a process to establish CSZs on February 24, 2020;

AND WHEREAS the process directs that CSZs should only be implemented in locations where public safety is of special concern, with a rating system was established to assess potential CSZs on the basis of nine risk criteria, or at the discretion of Town staff or Council;

AND WHEREAS the number of schools fronting a road segment is one of the criteria used to assess potential CSZs;

AND WHEREAS other criteria used to assess potential CSZs include areas fronting or in the vicinity of community parks and playground, community centres, hospitals, seniors residents, and generally locations where public safety is of special concern;

AND WHEREAS Ajax currently has 14 CSZs;

AND WHEREAS of the 37 schools in Ajax, a large number are not in designated CSZs;

AND WHEREAS the Town can improve overall community safety by implementing CSZs in all school zones.

NOW THEREFORE BE IT RESOLVED THAT:

1. Council directs Transportation staff undertake the work necessary to implement CSZs in all school zones by the beginning of the 2023-2024 school year, including:

    a. Bringing forward any necessary by-law amendments required to implement Council's direction; and
    b. Identifying signage needs to Operations staff to facilitate the installation of all signage in accordance with the requirements of the Highway Traffic Act.

2. Funding be allocated to this unbudgeted capital project from the capital contingency reserve; and

DRAFT

3. A CSZ be established to accompany any future schools constructed in the Town of Ajax.

CARRIED

11. By-laws

Moved by: N. Henry
Seconded by: R. Tyler Morin

That By-law numbers 11-2023 to 19-2023 be read a first, second and third time and passed.
CARRIED

12. Notice of Motion

None

13. New Business - Notices & Announcements

Council Members highlighted upcoming events and activities including a community Ward 1 meeting on April 25, 2023, Eid ul Fitr Holiday on April 22, 2023, and a community Ward 2 meeting May 9, 2023.

14. Confirming By-Law

Moved by: S. Lee
Seconded by: L. Bower

That By-law number 20-2023 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its meeting held on April 17, 2023, be read a first, second and third time and passed.

CARRIED

15. Adjournment

Moved by: R. Tyler Morin
Seconded by: L. Bower

That the April 17, 2023 meeting of the Council of the Town of Ajax be adjourned (9:58 p.m.)
CARRIED

_____
Mayor

_____
D-Clerk

DRAFT

TOWN OF AJAX
REPORT TO COUNCIL

TO: Mayor and Members of Council

FROM: N. Cooper, Clerk

DATE: May 15, 2023

SUBJECT: Items of Correspondence

The following items of correspondence are attached for Council's information:

Durham Region Municipalities

1. **Town of Ajax:** Proclamations issued by the Mayor's Office 15

2. **The Regional Municipality of Durham** – Invest Durham Annual Report 2022 16
   - **Background Material:** Report #2023-INFO-30

3. **The Regional Municipality of Durham –** Proposed Durham Greener Buildings Program ... 17
   - **Background Material:** Report #2023-COW-16

4. **The Regional Municipality of Durham** – Durham Agricultural Advisory Committee (DAAC) Membership Appointments 19
   - **Background Material:** Report #2023-P-11

5. **The Regional Municipality of Durham** – Durham Environment and Climate Advisory Committee (DECAC) Membership Appointments 21
   - **Background Material:** Report #2023-P-12

6. **The Regional Municipality of Durham** – Envision Durham – Recommendations on the new Regional Official Plan 23
   - **Background Material:** Report #2023-P-*

7. **The Regional Municipality of Durham** – 2022 Annual Building Activity Review 25
   - **Background Material:** Report #2023-INFO-40 (page 110)

8. **Town of Whitby** – Support for Bill 5, Stopping Harassment and Abuse by Local Leaders Act 26

9. **City of Pickering** – Opposition to a Pickering Airport and Utilization of Resources 28

10. **City of Pickering** – Support for the Bill 74, Missing Persons Amendment Act, 2023 31

11. **Municipality of Clarington** – Red Dress Alert 33

Other Municipalities, Organizations and Individuals

12. **Ministry of Municipal Affairs and Housing** – Ontario Regulation 73/23 Municipal Planning Data Reporting Regulation 35

13. **Regional Municipality of Waterloo** – Protecting the Privacy of Candidates and Donors 37

14. **Township of The Archipelago** – Road Management Action on Invasive Phragmites 39

15. **Township of Puslinch** – Road Side Litter on Highway 401 42

16. **Municipal Property Assessment Corporation (MPAC)** – 2022 Annual Report 43

17. **Township of West Lincoln** – Motion in Support of Bill 5 – Stopping Harassment and Abuse by Local Leaders Act 45

18. **Township of Orangeville** – Bill 5 – Stopping Harassment and Abuse by Local Leaders Act, 2022 47

19. **Town of Cobourg** – Bill 5 – Stopping Harassment and Abuse by Local Leaders Act, 2022 .48

N. Cooper
Clerk

MEMO

TO: Mayor and Members of Council

FROM: Linsey Joseph

DEPARTMENT: Legislative and Information Services - Legislative Services

SUBJECT: PROCLAMATIONS ISSUED BY THE MAYOR'S OFFICE

DATE: May 15, 2023

The following Proclamations have been approved during the month of May 2023.

Name of Person/Group(s)	Title of Proclamation	Date(s) Proclaimed
Operation Smile Canada	Longest Day of SMILES	June 18, 2023
Walk for Values	Human Values Day	April 24, 2023
Town of Ajax	*Asian Heritage Month	May 9, 2023
Town of Ajax	*International Day Against Homophobia, Biphobia & Transphobia	May 17, 2023
Town of Ajax	National Indigenous People Day	June 21, 2023
Town of Ajax	June is Aging Well Month	June 2023
Neurofibromatosis Ontario	National Neurofibromatosis Awareness Day	May 17, 2023

Linsey Joseph
Legislative & Information Services
/CC* flag

From:	Margret Rzymski
To:	Clerks; Fernando Lamanna; ClerksExternalEmail; Mary Medeiros; Clerks Web Email; mail@scugog.ca; Debbie Leroux; clerk@whitby.ca
Cc:	Jacquie Severs; Emily Barker
Subject:	Report #2023-INFO-30 Invest Durham Annual Report 2022
Date:	Monday, April 24, 2023 2:57:25 PM
Attachments:	image002.png 2023-INFO-30 Invest Durham Annual Report 2022.pdf

CAUTION: This email originated from outside of the organization. Do NOT reply, click links (embedded links) or open attachment(s) unless you recognize the sender and know the content is safe.

Good afternoon,

Please find attached correspondence #2023-INFO-30 Invest Durham Annual Report 2022, dated April 21, 2023 for your information.

Thank you,

Margret

Margret Rzymski | Administrative Assistant
Planning and Economic Development Department
The Regional Municipality of Durham
Margret.Rzymski@durham.ca | 905-668-7711 extension 2564 | durham.ca

My pronouns are she/her

THIS MESSAGE IS FOR THE USE OF THE INTENDED RECIPIENT(S) ONLY AND MAY CONTAIN INFORMATION THAT IS PRIVILEGED, PROPRIETARY, CONFIDENTIAL, AND/OR EXEMPT FROM DISCLOSURE UNDER ANY RELEVANT PRIVACY LEGISLATION. No rights to any privilege have been waived. If you are not the intended recipient, you are hereby notified that any review, re-transmission, dissemination, distribution, copying, conversion to hard copy, taking of action in reliance on or other use of this communication is strictly prohibited. If you are not the intended recipient and have received this message in error, please notify me by return e-mail and delete or destroy all copies of this message.

THIS LETTER HAS BEEN FORWARDED
TO THE EIGHT AREA CLERKS

April 26, 2023

Nicole Cooper
Clerk
Town of Ajax
65 Harwood Avenue South
Ajax, ON L1S 2H9

Dear Nicole Cooper:

RE: Proposed Durham Greener Buildings Program (2023-COW-16), Our File: D19

Council of the Region of Durham, at its meeting held on April 26, 2023, adopted the following recommendations of the Committee of the Whole:

"A) That Regional Council endorse the Durham Greener Buildings Program with an estimated 2023 cost of $150,000 as described in Report #2023-COW-16 of the Chief Administrative Officer, to be funded through the 2023 Office of the Chief Administrative Officer Business Plans and Budget;

B) That staff be authorized to negotiate and award a single source agreement with the Windfall Ecology Centre to deliver the Durham Greener Buildings Program for a period of three years (2023-2026);

C) That the Commissioner of Finance or designate be authorized to execute the necessary documents related to this single source agreement and any ancillary agreements in forms satisfactory to the Regional Solicitor and Commissioner of Finance, to support joint implementation of the Program, as required;

D) That Regional Council provide a letter of support to the Windfall Ecology Centre for their funding application to the federal Deep Retrofit Accelerator Initiative (DRAI) to enable enhancements to the proposed Durham Greener Buildings Program that will aim to facilitate deep energy retrofits of commercial, multi-unit residential, and institutional buildings; and

E) That Report #2023-COW-16 and associated resolution(s) be forwarded to local area municipalities, the Ontario Ministry of

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
Canada

905-668-7711
1-800-372-1102

durham.ca

Alexander Harras M.P.A.
Director of Legislative Services & Regional Clerk

Municipal Affairs and Housing, the Ontario Ministry of Energy, Natural Resources Canada, and the Federation of Canadian Municipalities for information."

Please find enclosed a copy of Report #2023-COW-16 for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/ks

Enclosed

c: E. Baxter-Trahair, Chief Administrative Officer

Sent Via Email

April 26, 2023

Karen Yellowlees
Administrative Coordinator
Durham Region Federation on Agriculture

Dear: K. Yellowlees

RE: Durham Agricultural Advisory Committee (DAAC) Membership Appointments (2023-P-11), Our File: C14

Council of the Region of Durham, at its meeting held on April 26, 2023, adopted the following recommendations of the Planning & Economic Development Committee:

"A) That the following citizen volunteers be appointed as "area municipal representatives" to the Durham Agricultural Advisory Committee: Neil Guthrie (Ajax); Tom Watpool (Brock); Tom Barrie (Clarington); Derrik Stevenson (Oshawa); Gord Taylor (Pickering); Nicole Swain (Scugog); Brian Hulshof (Uxbridge) and Ronald Death (Whitby);

B) That the following citizen volunteers be appointed as "at large" farmer members to the Durham Agricultural Advisory Committee: Zac Cohoon (Scugog); Bryan Smith (Uxbridge); and Hubert Shillings (Oshawa);

C) That the following citizen volunteers be appointed as "at large" non-farmer members to the Durham Agricultural Advisory Committee: Dave Risebrough (Uxbridge); Gerri Lynn O'Connor (Uxbridge); Matthew Sommerville (Scugog);

D) That the following citizen volunteer be appointed as the "Durham Region Federation of Agriculture representative" to the Durham Agricultural Advisory Committee: Mark Shiers;

E) That the above-named citizen volunteers be advised of their appointment to the 2023-2026 term of the Durham Agricultural Advisory Committee;

F) That the unsuccessful applicants to the Durham Agricultural Advisory Committee be notified; and

G) That a copy of Commissioner's Report #2023-P-11 be forwarded to the area municipalities and the Durham Region Federation of Agriculture."

The Regional Municipality of Durham

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1-800-372-1102

durham.ca

Alexander Harras M.P.A.
Director of Legislative Services & Regional Clerk

Please find enclosed a copy of Report #2023-P-11 for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/sc

Enclosed

c: N. Cooper, Clerk, Town of Ajax
F. Lamanna, Clerk, Township of Brock
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby
B. Bridgeman, Commissioner of Planning & Economic Development
M. Scott, Project Planner

If you require this information in an accessible format, please call 1-800-372-1102 ext. 2097.

Sent Via Email

April 26, 2023

Nicole Cooper
Clerk
Town of Ajax
65 Harwood Avenue South
Ajax, ON L1S 2H9

Dear: N. Cooper

RE: Durham Environment and Climate Advisory Committee (DECAC) Membership Appointments (2023-P-12), Our File: C14

Council of the Region of Durham, at its meeting held on April 26, 2023, adopted the following recommendations of the Planning & Economic Development Committee:

"A) That the following citizen volunteers be appointed as Area Municipal Representatives to the Durham Environment and Climate Advisory Committee: Muaz Nasir (Ajax); William Basztyk (Brock); Kim Murray (Clarington); Dimitri Stathopoulos (Oshawa); Ozair Chaudhry (Pickering); Geoff Carpentier (Scugog); Bruce Foxton (Uxbridge); and Bryan Widner (Whitby);

B) That the following citizen volunteers be appointed as At-Large members to the Durham Environment and Climate Advisory Committee: Keiko Lui and Jay Cuthbertson;

C) That the following citizen volunteer be appointed as the Post-Secondary member to the Durham Environment and Climate Advisory Committee: Peter Cohen;

D) That the following citizen volunteer be appointed as the Youth member to the Durham Environment and Climate Advisory Committee: Luke Nguyen;

E) That the above-named citizen volunteers be advised of their appointment to the Durham Environment and Climate Advisory Committee;

F) That the unsuccessful applicants to the Durham Environment and Climate Advisory Committee be notified; and

The Regional Municipality of Durham

Corporate Services Department – Legislative Services Division

605 Rossland Rd. E.
Level 1
PO Box 623
Whitby, ON L1N 6A3
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1-800-372-1102

durham.ca

Alexander Harras M.P.A.
Director of Legislative Services & Regional Clerk

G) That a copy of Commissioner's Report #2023-P-12 be forwarded to the area municipalities."

Please find enclosed a copy of Report #2023-P-12 for your information.

Alexander Harras

Alexander Harras,
Director of Legislative Services & Regional Clerk

AH/sc

Enclosed

c: F. Lamanna, Clerk, Township of Brock
J. Gallagher, Clerk, Municipality of Clarington
M. Medeiros, Clerk, City of Oshawa
S. Cassel, Clerk, City of Pickering
B. Jamieson, Clerk, Township of Scugog
D. Leroux, Clerk, Township of Uxbridge
C. Harris, Clerk, Town of Whitby
B. Bridgeman, Commissioner of Planning & Economic Development
A. Luqman, Senior Planner

If you require this information in an accessible format, please call 1-800-372-1102 ext. 2097.

Sent via email

May 3, 2023

Maya Harris
Manager, Community Planning & Development
Ministry of Municipal Affairs and Housing
777 Bay Street, 13th Floor
Toronto, ON M7A 2J6

Dear Ms. Harris:

RE: Envision Durham – Recommendations on the new Regional Official Plan (Report #2023-P-)**

The purpose of this letter is to advise that the recommended Regional Official Plan (ROP) and a covering Regional report were released today and are now available at durham.ca/EnvisionDurham.

Please accept this as a reminder of the Notice of a Special Meeting of Durham Regional Council to consider adoption of the recommended ROP. The Special Meeting of Council will be held on May 17, 2023, at 9:30 a.m. (hybrid format).

Notification of the release of the recommended ROP, as well as meeting time and location of the Special Meeting of Regional Council, was sent to all those who requested notification, including the Envision Durham interested parties list, and has been promoted via the Region's website, social media channels, and via public service announcement.

In addition, a "Notice of Special Meeting" regarding Regional Council's consideration of the final draft ROP was advertised in newspapers across the region the week of April 3, and again the week of April 10, 2023.

For additional details, including how to participate in the above noted meeting, please visit the project web page at durham.ca/EnvisionDurham.

Regional staff are recommending that Regional Council adopt the final draft ROP and direct staff to forward the new ROP to the province for approval.

The Regional Municipality of Durham

Planning and Economic Development Department

Planning Division

605 ROSSLAND RD. E.
LEVEL 4
PO BOX 623
WHITBY, ON L1N 6A3
CANADA

905-668-7711

1-800-372-1102

Fax: 905-666-6208

Email:
planning@durham.ca

durham.ca

Brian Bridgeman, MCIP, RPP
Commissioner of Planning and Economic Development

If this information is required in an accessible format, please contact Planning Reception at 1-800-372-1102 ext. 2551.

The Regional Municipality of Durham

Planning and Economic Development Department

Planning Division

605 ROSSLAND RD. E.
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905-668-7711

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planning@durham.ca

durham.ca

Brian Bridgeman, MCIP, RPP
Commissioner of Planning and Economic Development

In addition, it is also recommended that, following the Special Meeting, a copy of the new ROP, report and a "Notice of Adoption" be sent to all Envision Durham Interested Parties, Durham's area municipalities, Indigenous communities, conservation authorities having jurisdiction in the Region of Durham, the Durham Agricultural Advisory Committee, Durham Environment and Climate Advisory Committee, the Durham Active Transportation Committee, the Building Industry and Land Development (BILD) – Durham Chapter, Durham Region Home Builders' Association, other agencies and service providers that may have an interest in the planning of long-term growth in the region (e.g. school boards, hospitals, utility providers, etc.), and all other persons or public bodies who requested notification of this decision.

Please call if you would like any additional information.

Yours truly,

Gary Muller

Gary Muller, MCIP, RPP
Director of Planning

c: Circulation list
B. Bridgeman, Commissioner of Planning and Economic Development, Region of Durham
J. Kelly, Region of Durham – for distribution to all other Interested Parties

If this information is required in an accessible format, please contact Planning Reception at 1-800-372-1102 ext. 2551.

From:	Margret Rzymski
To:	Clerks; Fernando Lamanna; ClerksExternalEmail; Mary Medeiros; Clerks Web Email; mail@scugog.ca; Debbie Leroux; clerk@whitby.ca
Cc:	Aneesah Lugman
Subject:	Report - #2023-INFO-40 2022 Annual Building Activity Review
Date:	Friday, May 5, 2023 11:39:11 AM
Attachments:	image002.png 2023-INFO-40 2022 Annual Building Activity Review.pdf

CAUTION: This email originated from outside of the organization. Do NOT reply, click links (embedded links) or open attachment(s) unless you recognize the sender and know the content is safe.

Good morning,

Please find attached Commissioners Report **#2023-INFO-40 2022 Annual Building Activity Review**, dated May 5, 2023 for your information.

Thank you,

Margret

Margret Rzymski | Administrative Assistant
Planning and Economic Development Department
The Regional Municipality of Durham
Margret.Rzymski@durham.ca | 905-668-7711 extension 2564 | durham.ca

My pronouns are she/her

THIS MESSAGE IS FOR THE USE OF THE INTENDED RECIPIENT(S) ONLY AND MAY CONTAIN INFORMATION THAT IS PRIVILEGED, PROPRIETARY, CONFIDENTIAL, AND/OR EXEMPT FROM DISCLOSURE UNDER ANY RELEVANT PRIVACY LEGISLATION. No rights to any privilege have been waived. If you are not the intended recipient, you are hereby notified that any review, re-transmission, dissemination, distribution, copying, conversion to hard copy, taking of action in reliance on or other use of this communication is strictly prohibited. If you are not the intended recipient and have received this message in error, please notify me by return e-mail and delete or destroy all copies of this message.

Town of Whitby
575 Rossland Road East,
Whitby, ON L1N 2M8
905.430.4300
whitby.ca

April 27, 2023

Via Email:

Honourable Doug Ford
Premier of Ontario
lcollins@candevcon.com

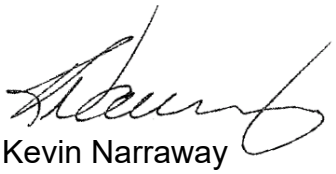
Re: Support for Bill 5, Stopping Harassment and Abuse by Local Leaders Act

Please be advised that at its meeting held on April 24, 2023, the Council of the Town of Whitby adopted the following as Resolution # 110-23:

> WHEREAS currently the most severe penalty that can be imposed on an elected official is suspension and loss of pay for 90 days, even in cases of workplace harassment or abuse;
>
> AND WHEREAS there is currently no process to remove an elected official from office, even in cases of confirmed workplace harassment or abuse;
>
> AND WHEREAS a fundamental, underlying principle of broadening diversity, equity and inclusion in politics rests on the assumption that the workplace is safe;
>
> AND WHEREAS Bill 5, the Stopping Harassment and Abuse by Local Leaders Act would require all elected officials to comply with the workplace violence and harassment policies of the municipality they represent, permit a municipality to direct the Integrity Commissioner to apply to the court to vacate a member's seat for failing to comply with the municipality's workplace violence and harassment policies as well as restrict officials whose seat has been vacated from seeking re-election in any resulting by-election;
>
> AND WHEREAS at least 27 municipalities have formally endorsed and communicated public support for Bill 5, including Ajax, Ottawa, Hamilton, London, Barrie, Orillia, and Richmond Hill;
>
> AND WHEREAS Bill 5 would both hold accountable and protect all municipal officials;
>
> NOW THEREFORE BE IT RESOLVED:

1. THAT Whitby Council express its support for Bill 5, Stopping Harassment and Abuse by Local Leaders Act; and,
2. THAT a copy of this motion be circulated to the Hon. Doug Ford, Premier of Ontario, Lorne Coe, MPP for Whitby, the Association of Municipalities of Ontario, Ontario's Big City Mayors, and all Durham Region municipalities.

Should you require further information, please do not hesitate to contact the Office of the Town Clerk 905-430-4315.



Kevin Narraway
Sr. Manager of Legislative Services/Deputy Clerk

Copy: Association of Municipalities of Ontario – amo@amo.ca
Ontario's Big City Mayors - info@ontariobigcitymayors.ca
A. Harras, Regional Clerk, Region of Durham - clerks@durham.ca
Lorne Coe, MPP, Whitby – lorne.coe@pc.ola.org
N. Cooper, Director of Legislative and Information Services, Town of Ajax – clerks@ajax.ca
F. Lamanna, Clerk/Deputy CAO, Township of Brock – Fernando.lamanna@brock.ca
J. Gallagher, Municipal Clerk, Municipality of Clarington – clerks@clarington.net
M. Medeiros, City Clerk, City of Oshawa – clerks@oshawa.ca
S. Cassel, City Clerk, City of Pickering – clerks@pickering.ca
B. Jamieson, Director of Corporate Services/Municipal Clerk, Township of Scugog – bjamieson@scugog.ca
D. Leroux, Clerk, Township of Uxbridge – dleroux@uxbridge.ca

Sent by Email

May 2, 2023

The Honourable Omar Alghabra
Minister of Transportation
House of Commons
Ottawa, ON
K1A 0A6
omar.alghabra@parl.gc.ca

Subject: Opposition to a Pickering Airport and Utilization of Resources
File: A-1400

The Council of The Corporation of the City of Pickering considered the above matter at a Meeting held on April 24, 2023 and adopted the following resolution:

WHEREAS, in May 2016, Transport Canada awarded a contract to KPMG to undertake a Pickering Lands Aviation Sector Analysis to update the supply and demand forecasts of the 2010 Needs Assessment Study: Pickering Lands and to develop and assess type and role options for a future airport and provide an economic impact report;

And Whereas, on October 10, 2017, Pickering Council passed Resolution #355/17 declaring that "the Federal Government be advised that the City of Pickering supports the development of an airport in Pickering, subject to the results identified in the Aviation Sector Analysis – Pickering Airport Study and the appropriate Environmental Assessments";

And Whereas, Toronto Pearson International's current Master Plan, published in December 2017, stated that Pearson's runway capacity would be "sufficient to 2037" without adding the already approved sixth runway;

And Whereas, the KPMG analysis was completed in 2019 and the Supply and Demand analysis found that, for the study's 2016-2036 planning horizon, "there will be sufficient capacity in the southern Ontario airports system … without the requirement to build a new airport", and KPMG reached this conclusion without considering the effects of climate change and its future impacts on aviation;

And Whereas, KPMG cautioned that there was "a significant level of uncertainty" around scenarios that examined types of airports offering services other than commercial

Pickering Civic Complex | One The Esplanade | Pickering, Ontario L1V 6K7
T. 905.420.4611 | F. 905.420.9685 | Toll Free 1.866.683.2760 | clerks@pickering.ca | pickering.ca

passenger services, that the scenarios were “exploratory in nature”, and that “conclusions cannot be drawn” from those exercises;

And Whereas, on December 16, 2019, the Council of the City of Pickering endorsed a Climate Change Declaration resolution that undertook to “strive for a reduction in greenhouse gas emissions to reduce the local and global impacts of climate change”;

And Whereas, then Transport Minister Marc Garneau wrote to Durham Regional Chair John Henry on March 25, 2020, to confirm KPMG’s finding of “no immediate need for additional airport capacity in the Greater Toronto Area” and that “any decision on the future of the Pickering Lands must be based on a sound business case…”;

Now therefore it be it resolved:

1. That based on KPMG’s conclusion that a sound supply-and-demand business case could not be made for a Pickering airport up to 2036, and based on the City’s declared intention to reduce its greenhouse gas emissions, the Council for The Corporation of the City of Pickering does not support an airport on the Pickering Lands; and that no further resources and/or funds be utilized to promote an airport on the Pickering Lands; and that the City of Pickering continue to endorse support for a High Frequency Rail option with a station located in Green River as the preferred transportation network; and,

2. That this resolution be forwarded to the Minister of Transport Canada, Omar Alghabra, and to Pickering-Uxbridge MP O’Connell, as well as to MPs Anandasangaree, Carrie, Holland, Jaczek, Turnbull, and O’Toole; to Durham and York regional councils, and to Scarborough East councillors; and to the municipal councils of Ajax, Markham, Oshawa, Scugog, Stouffville, Uxbridge, Vaughan, and Whitby.

Should you require further information, please do not hesitate to contact the undersigned at 905.420.4660, extension 2019.

Yours truly,



Susan Cassel
City Clerk

SC:am

Copy: The Honourable Mark Holland, Member of Parliament, Ajax
The Honourable Helena Jaczek, Member of Parliament, Marham-Stouffville

The Honourable Erin O'Toole, Member of Parliament, Durham
Jennifer O'Connell, Member of Parliament, Pickering-Uxbridge
Gary Anandasangaree, Member of Parliament, Scarborough-Rouge Park
Colin Carrie, Member of Parliament, Oshawa
Ryan Turnbull, Member of Parliament, Whitby
Jennifer McKelvie, Councillor, Scarborough-Rouge Park
Jamaal Myers, Councillor, Scarborough North,
Paul Ainslie, Councillor, Scarborough-Guildwood
Nick Mantas, Councillor, Scarborough-Agincourt
Michael Thompson, Councillor, Scarborough Centre
Gary Crawford, Councillor, Scarborough Southwest
Alexander Harras, Regional Clerk, Director of Legislative Services, The Regional Municipality of Durham
Chris Raynor, Regional Clerk, The Regional Municipality of York
Nicole Cooper, Director of Legislative and Information Services, Town of Ajax
Mary Medeiros, City Clerk, City of Oshawa
Chris Harris, Clerk, Town of Whitby
Becky Jamieson, Director of Corporate Services/Clerk, Township of Scugog
Debbie Leroux, Clerk, Township of Uxbridge
Gillian Angus-Traill, Town Clerk, Town of Stouffville
Kimberley Kitteringham, City Clerk, City of Markham
Todd Coles, Clerk, City of Vaughan
Chief Administrative Officer

Sent by Email

May 2, 2023

Monique Taylor
Member of Provincial Parliament – Hamilton Mountain
Room 357
Main Legislative Building, Queen's Park
Toronto, ON M7A 1A5
MTaylor-QP@ndp.on.ca

Subject: Support for the Bill 74, *Missing Persons Amendment Act, 2023*
File: A-1400

The Council of The Corporation of the City of Pickering considered the above matter at a Meeting held on April 24, 2023 and adopted the following resolution:

WHEREAS, there is a gap in our current emergency alert system that needs to be addressed;

And Whereas, the *Missing Persons Amendment Act* will allow the Ontario Provincial Police (OPP), in accordance with a request from an officer, to send a targeted, regional emergency alert for any vulnerable person who goes missing from home, which could include a person with autism, Alzheimer's disease, or dementia. This fills an important gap in the existing emergency alert system, which can currently only be issued for an abducted child under the age of 17;

And Whereas, a vulnerable person's alert would help ensure the safety of our loved ones in a situation where time is critical;

And Whereas, several municipal councils, including, Brighton, Midland, Bonfield Township, Cobourg and Mississauga and several others, have passed resolutions calling for a new emergency alert to protect our loved ones;

And Whereas, April is Autism Awareness month;

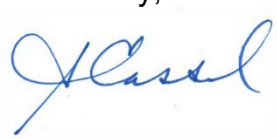
Now therefore be it resolved, that the Council of The Corporation of the City of Pickering:

1. Supports Bill 74, *Missing Persons Amendment Act, 2023*; and,

2. That a copy of this Motion be forwarded to Pickering-Uxbridge MP O'Connell, MPP Bethanfalvy, Hamilton MPP Monique Taylor, Durham and York Regional Councils, and to the Municipal Councils of Ajax, Markham, Oshawa, Scugog, Stouffville, Uxbridge, and Whitby.

Should you require further information, please do not hesitate to contact the undersigned at 905.420.4660, extension 2019.

Yours truly,



Susan Cassel
City Clerk

SC:am

Copy: The Honourable Peter Bethlenfalvy, Member of Provincial Parliament, Pickering-Uxbridge
Jennifer O'Connell, Member of Parliament, Pickering-Uxbridge
Alexander Harras, Regional Clerk, Director of Legislative Services, The Regional Municipality of Durham
Chris Raynor, Regional Clerk, The Regional Municipality of York
Nicole Cooper, Director of Legislative and Information Services, Town of Ajax
Mary Medeiros, City Clerk, City of Oshawa
Chris Harris, Clerk, Town of Whitby
Becky Jamieson, Director of Corporate Services/Clerk, Township of Scugog
Debbie Leroux, Clerk, Township of Uxbridge
Gillian Angus-Traill, Town Clerk, Town of Stouffville
Kimberley Kitteringham, City Clerk, City of Markham
Chief Administrative Officer

Clarington

If this information is required in an alternate format, please contact the Accessibility Co-ordinator at 905-623-3379 ext. 2131

May 2, 2023

Erin O'Toole, P.C., M.P., Durham
Via E-mail: Erin O'Toole@parl.gc.ca

To Erin O'Toole:

Re: Red Dress Alert

File Number: PG.25.06

At a meeting held on May 1, 2023, the Council of the Municipality of Clarington approved the following Resolution #GG-102-23:

> Whereas thousands of Indigenous women, girls, and two-spirit people have gone missing in Canada, with approximately 77 new missing reported each month in 2022 across the country;
>
> Whereas the Amber Alert system in Ontario in the last five years has a success rate of over 90% in finding missing children and vulnerable people;
>
> Whereas a federal alert system would help increase the chances missing Indigenous people are found;
>
> Now therefore be it resolved that the Municipality of Clarington advocate to the federal government to instate a wireless-device alert system which would send an emergency notification people receive on their mobile devices when a missing Indigenous women, girl, and two-spirit people in their region has been abducted or is believed to be in danger; and
>
> That this motion be forwarded to local area municipalities, AMO, and FCM as well as our local area Members of Parliament and Members of Provincial Parliament for their information.

Yours truly,

John Paul Newman
Deputy Clerk

JPN/lp

c. See Attached List of Interested Parties

Interested Parties List

Philip Lawrence, P.C., M.P., Northumberland—Peterborough South

Todd McCarthy, M.P.P., Durham

David Piccini, M.P.P., Northumberland-Peterborough South

Federation of Canadian Municipalities (FCM)

Association of Municipalities of Ontario (AMO)

Susan Cassel, City Clerk, City of Pickering

Nicole Cooper, Director of Legislative & Information Services, Town of Ajax

Alexander Harras, Regional Clerk, The Regional Municipality of Durham

Christopher Harris, Town Clerk, Town of Whitby

Becky Jamieson, Director of Corporate Services/Municipal Clerk, Township of Scugog

Fernando Lamanna, Clerk/Deputy CAO, Township of Brock

Debbie Leroux, Director of Legislative Services/Clerk, Township of Uxbridge

Mary Medeiros, City Clerk, City of Oshawa

Ministry of Municipal Affairs and Housing

Assistant Deputy Minister
Planning and Growth Division

777 Bay Street, 12th Floor
Toronto ON M7A 2J3

Ministère des Affaires municipales et du Logement

Sous-ministre adjoint
Division de l'aménagement et de la croissance

777, rue Bay, 12e étage
Toronto ON M7A 2J3

April 13, 2023

TO: Clerks and Heads of Planning at Ontario's 29 large and fast-growing municipalities

RE: Ontario Regulation 73/23 Municipal Planning Data Reporting Regulation

Dear Clerks and Heads of Planning,

The Ministry of Municipal Affairs and Housing (Ministry) recently posted a proposal to the Environmental and Regulatory registries to bring forward a new Minister's regulation under the *Planning Act.* The proposed regulation would require select municipalities in Ontario to report prescribed information on planning matters to the Ministry.

I am pleased to announce that on April 6th, 2023, the Minister's regulation Municipal Planning Data Reporting – O. Reg. 73/23 was filed and is now in effect. I'd like to thank you all for your feedback on our postings and look forward to our continued partnership as we navigate this new and exciting process.

Our postings indicated that the Ministry would be sharing additional guidance material, including a detailed user guide and sample templates to support municipalities with their reporting requirements. I've included as attachments three documents:

1. Municipal Planning Data Reporting – User Guide
2. Municipal Planning Data Reporting Regulation – Planning Application Data Sample Template
3. Municipal Planning Data Reporting Regulation – Geospatial Metadata Sample Template

Collectively, these documents aim to help municipalities understand the requirements of O. Reg. 73/23, and support the quarterly and annual reporting requirements. The first quarterly report of planning application data will be due **June 30, 2023**.

I'd like to thank you again for your support. Should you have any questions or concerns related to the reporting requirements, or have any feedback on the materials, please do not hesitate to contact the Ministry team at PlanningData@ontario.ca.

Sincerely,



Sean Fraser
Assistant Deputy Minister
Encl.: (3)

c. Association of Municipalities of Ontario

REGIONAL MUNICIPALITY OF WATERLOO

OFFICE OF THE REGIONAL CLERK

150 Frederick Street, 2nd Floor
Kitchener ON N2G 4J3 Canada
Telephone: 519-575-4420
TTY: 519-575-4608
Fax: 519-575-4481
www.regionofwaterloo.ca

April 24, 2023

Area Members of Provincial Parliament
Sent via email

Dear Area Members of Provincial Parliament:

Re: Councillor J. Erb Notice of Motion

Please be advised that the Council of the Regional Municipality of Waterloo at their regular meeting held on April 19, 2023, approved the following motion:

WHEREAS the Municipal Elections Act requires all individuals wishing to be a candidate in a municipal or school board election to file Nomination Paper - Form 1 with the municipal clerk;

AND WHEREAS the Municipal Elections Act requires all candidates who sought election to a municipal council or school board to file Financial Statement – Auditor's Report Candidate – Form 4 with the municipal clerk;

AND WHEREAS Form 1 requires candidates to provide their qualifying address;

AND WHEREAS Form 4 requires candidates to list the name and home address of any donor contributing over $100.00

AND WHEREAS the Municipal Elections Act specifies that these documents are not protected by the Municipal Freedom of Information and Protection of Privacy Act, and requires the municipal clerk to make Form 4 available on a website;

AND WHEREAS there has been concern expressed about those who hold public office and those who support them that they have been the subject of unnecessary attention and excessive scrutiny;

AND WHEREAS the requirement to publish the personal home address of donors to specific candidates may discourage individuals from

engaging in the democratic process to elect municipal and school board politicians.

THEREFORE, BE RESOVLED THAT the Regional Municipality of Waterloo calls on the Minister of Municipal Affairs and Housing for the Province of Ontario to protect the privacy of candidates and donors by removing the requirement for their street name, number and postal code to be listed on publicly available forms.

AND FURTHER THAT for verification purposes, the addresses of all candidates and all donors over $100 be submitted to the municipal clerk on separate forms that are protected by the Municipal Freedom of Information and Protection of Privacy Act and will not be published.

AND FINALLY, that this resolution be forwarded to the Area Members of Provincial Parliament, the Association of Municipalities of Ontario, the Association of Municipal Clerks and Treasurers of Ontario, the Ontario Public School Boards' Association, the Ontario Catholic School Trustees' Association, and all Ontario municipalities.

Please accept this letter for information purposes only. If you have any questions or require additional information, please contact Rebekah Harris, Research/Administrative Assistant to Council, at RHarris@regionofwaterloo.ca or 519-575-4581.

Regards,



William Short
Regional Clerk/Director, Council and Administrative Services

WS/hk

cc: Association of Municipalities of Ontario
Association of Municipal Clerks and Treasurers of Ontario
Ontario Public School Boards' Association
Ontario Catholic School Trustees' Association
Ontario municipalities

The Corporation of The Township of The Archipelago
Council Meeting

Agenda Number: 15.1.
Resolution Number 23-058
Title: Road Management Action on Invasive Phragmites
Date: Friday, April 21, 2023

Moved by: Councillor Barton
Seconded by: Councillor Lundy

WHEREAS *Phragmites* australis (*Phragmites*) is an invasive perennial grass that continues to cause severe damage to wetlands and beaches in areas around the Great Lakes including Georgian Bay; and

WHEREAS *Phragmites* australis grows and spreads rapidly, allowing the plant to invade new areas and grow into large monoculture stands in a short amount of time, and is an allelopathic plant that secretes toxins from its roots into the soil which impede the growth of neighboring plant species; and

WHEREAS *Phragmites* australis results in loss of biodiversity and species richness, loss of habitat, changes in hydrology due to its high metabolic rate, changes in nutrient cycling as it is slow to decompose, an increased fire hazard due to the combustibility of its dead stalks, and can have an adverse impact on agriculture, particularly in drainage ditches; and

WHEREAS invasive *Phragmites* has been identified as Canada's worst invasive plant species by Agriculture and Agrifood Canada; and

WHEREAS the Ontario government has made it illegal to import, deposit, release, breed/grow, buy, sell, lease or trade invasive *Phragmites* under the Invasive Species Act; and

WHEREAS *Phragmites* occupy over 4,800 hectares of land around Lake St. Clair alone, while 212 hectares of *Phragmites* occupy land along the St. Lawrence River. The Georgian Bay Area is particularly affected by *Phragmites* australis, with more than 700 stands along the shorelines and multiple visible stands on the highways and roads that threaten valuable infrastructure and wetland areas; and

WHEREAS volunteers, non-governmental organizations, and various municipalities have invested tens of thousands of dollars in investments and labour annually for more than eight years in executing managements plans to control invasive *Phragmites* on roads, coasts, shorelines and in wetlands; and

WHEREAS roads and highways where *Phragmites* that are left untreated become spread vectors that continually risk new and treated wetlands and coastal shoreline areas; and

WHEREAS according to "Smart Practices for the Control of Invasive *Phragmites* along Ontario's Roads" by the Ontario *Phragmites* Working Group, best road management practices for *Phragmites* australis include early detection, herbicide application, and cutting; and

WHEREAS these best management practices are most effective when used in a multi-pronged approach as opposed to when used as stand-alone control measures; and

WHEREAS Mother Nature does not recognize political boundaries. Therefore, it is imperative that Municipalities, Districts, the Province, and the Federal government work together in collaboration to eradicate Canada's worst invasive plant species *Phragmites* australis.

NOW THEREFORE, BE IT RESOLVED that Council for the Township of The Archipelago directs its staff to implement best management practices to promote early detection of invasive *Phragmites*, and to implement best management practices for invasive *Phragmites*, and to join the Ontario *Phragmites* Working Group to collaborate on the eradication of *Phragmites* in Ontario.

BE IT FURTHER RESOLVED that Council for the Township of The Archipelago directs staff to insert clean equipment protocols into tenders and that there is oversight that the protocols are followed.

BE IT FURTHER RESOLVED that Council for the Township of The Archipelago requests the Ontario Ministry of Transportation to map and treat invasive *Phragmites* annually on all its highways.

BE IT FURTHER RESOLVED that the Ontario Ministry of Transportation (MTO) communicates the strategy on mapping (detecting sites) and controlling invasive *Phragmites* on provincial highways, the specific highway management plans and results by each MTO region and each highway in the region and work in coordination with Township of The Archipelago.

BE IT FURTHER RESOLVED that Council for the Township of The Archipelago directs its staff to send this resolution to all municipalities that are part of the Georgian Bay watershed, to the Minister of Transportation, Christopher Balasa the Manager, Maintenance Management, and MPP (the Municipality's local MPP).

BE IT FINALLY RESOLVED that Council for the Township of The Archipelago requests all levels of government to consider funding support to aid the Township of The Archipelago in managing invasive *Phragmites*; and directs staff to send a copy of this resolution to the Ontario Minister of Environment, Conservation and Parks and the Minister of Environment and Climate Change Canada.

Carried

Hon. David Piccini, MPP
Minister of the Environment Conservation and Parks
Ministry of the Environment, Conservation and Parks 5th Floor
777 Bay St.
Toronto, ON, M5B 2H7
VIA EMAIL:
david.piccini@pc.ola.org

Township of Puslinch
7404 Wellington Road 34
Puslinch, ON N0B 2J0
www.puslinch.ca

April 26, 2023

RE: 11.1 Mayor's Updates - 11.1.1 Mayor Seeley gave an update on the upcoming spring clean-up day being the second weekend of May.

Please be advised that Township of Puslinch Council, at its meeting held on April 12, 2023 considered the aforementioned topic and subsequent to discussion, the following was resolved:

Resolution No. 2023-127: Moved by Councillor Bailey and Seconded by Councillor Sepulis

That Council receive the Mayors and Council member updates for information; and

That Council direct staff to send notice to the MECP requesting that the litter on the roadside of the 401 be cleaned up in accordance with the Ministry initiative "Act on Litter Ontario"; and

That this resolution be circulated to all municipalities in Ontario.

CARRIED

As per the above resolution, please accept a copy of this correspondence for your information and consideration.

Sincerely,

Courtenay Hoytfox
Municipal Clerk

CC: All Ontario Municipalities

From: Board Chair
To: Clerks
Subject: MPAC: 2022 Annual Report
Date: Thursday, April 27, 2023 10:24:18 AM
Attachments: o8bje2c151e2fd55e400985ebe955e1612172.png
Municipal Property Assessment Corporation - 2022-12-31 - FS - Final.pdf

CAUTION: This email originated from outside of the organization. Do NOT reply, click links (embedded links) or open attachment(s) unless you recognize the sender and know the content is safe.



Good morning Municipal,

MPAC is proud to share three documents with you today. The first document is our Annual Report. This year, MPAC focused on supporting our municipal partners, stakeholders and the people of Ontario. Innovation, ongoing data readiness initiatives and public education campaigns have prepared us to lead the way as Ontario's property market experts.

Through our ongoing efforts, we were also able to maintain a 0% increase to the total municipal levy for the third year in a row, while continuously capturing new assessment and showcasing our commitment to elevating the municipal experience.

You will also find included MPAC's Financial Statements for the year ended December 31, 2022. This is being provided as an addendum to the Annual Report above. If you have any questions, please contact Mary Meffe, Vice-President, Corporate and Information Services and Chief Financial Officer at mary.meffe@mpac.ca.

The third document is our second annual Performance Report. MPAC is committed to further enhancing our accountability and transparency. This document provides a wealth of statistics on how well we are meeting our goals on areas such as capturing new assessment, the proportion of property assessments that are accepted without going to appeal, Customer Contact Centre satisfaction and many more.

Should you have any questions regarding the reports, please do not hesitate to contact me.

Yours truly,

Alan Spacek
Chair, MPAC Board of Directors

Copy Nicole McNeill, President & CAO
Mary Meffe, VP Corporate and Information Services & CFO

West Lincoln
Your Future Naturally

318 Canborough St. P.O. Box 400
Smithville, ON L0R 2A0
T: 905-957-3346
F: 905-957-3219
www.westlincoln.ca

Apr 25, 2023

Hon. Doug Ford
Legislative Building
1 Queen's Park
Toronto, ON
M7A 1A1

Dear Hon. Doug Ford:

Re: Motion in Support of Bill 5 – Stopping Harassment and Abuse by Local Leaders Act

This is to confirm that at the April 24, 2023 Council Meeting the following resolution was adopted with respect to the above noted matter:

WHEREAS municipally elected leaders do not have an appropriate accountability structure when it comes to perpetrating violence and harassment in the workplace; and

WHEREAS a fundamental, underlying principle of broadening diversity, equity and inclusion in politics rests on the assumption that the workplace is safe; and

WHEREAS Bill 5, the *Stopping Harassment and Abuse by Local Leaders Act* would require Councillors to comply with the workplace violence and harassment policies of the municipality they represent, permit municipalities to direct the Integrity Commissioner to apply to the court to vacate a member's seat for failing to comply with the municipality's workplace violence and harassment polices as well as restrict officials whose seat has been vacated from seeking immediate subsequent re-election; and

WHEREAS over 40 municipalities have formally endorsed and communicated public support for Bill 5; and

WHEREAS Bill 5 would both hold accountable and protect all municipal officials;

NOW THEREFORE BE IT RESOLVED that the Township of West Lincoln Council express its support for Bill 5, *Stopping Harassment and Abuse by Local Leaders Act*;

FURTHER that this resolution be sent to the Hon. Doug Ford, Premier of Ontario, the Minister of Municipal Affairs and Housing, the Association of Municipalities of Ontario, and local area MPPs.

If any further information is required, please contact the undersigned at 905-957-3346, Ext 5136.

Yours Truly,



Joanne Scime
Director of Legislative Services/Clerk

cc. Steve Clark, Minister of Municipal Affairs and Housing
AMO
Sam Oosterhoff, MPP
Jennifer (Jennie) Stevens, MPP
Wayne Gates, MPP
Jeff Burch, MPP

From: Lindsay Raftis <lraftis@orangeville.ca>
Sent: Monday, May 1, 2023 11:14 AM
Subject: Town of Orangeville - Response to Bill 5 - Stopping Harassment and Abuse by Local Leaders Act

CAUTION: This email originated from outside of the organization. Do NOT reply, click links (embedded links) or open attachment(s) unless you recognize the sender and know the content is safe.

Good morning,

Please be advised that Bill 5 – Stopping Harassment and Abuse by Local Leaders Act, 2022 was considered by Council at its meeting held on April 17, 2023 and the Council adopted the following resolution:

> **Whereas Bill 5—Stopping Harassment and Abuse by Local Leaders Act, 2022 was introduced in the Ontario Legislature by MPP Stephen Blais through a Private Member's Bill on August 10, 2022;**
>
> **Whereas the Town of Orangeville and Council are committed to demonstrating good governance and greater accountability to its Code of Conduct and workplace policies;**
>
> **Now therefore be it resolved:**
>
> **1. That Orangeville Council endorses Bill 5—Stopping Harassment and Abuse by Local Leaders Act, 2022 which would require the Code of Conduct for municipal Councillors and members of local boards to include a requirement to comply with workplace violence and harassment policies and permit municipalities to direct the Integrity Commissioner to apply to the court to vacate a member's seat if the Commissioner's Inquiry determines that the member has contravened this requirement.**
>
> **2. That Orangeville Council expresses its support for Bill 5 by directing the Town of Orangeville Clerk to send this motion to the Premier of Ontario; the Ontario Minister of Municipal Affairs and Housing; the Association of Municipalities of Ontario (AMO); the local Members of Parliament (MP's); the local Members of Provincial Parliament (MPP's); the Ontario Big Cities Mayors Caucus (OBCM); the Large Urban Mayors' Caucus of Ontario; the Small Urban GTHA Mayors as well as Dufferin County Municipalities.**

Thank you,

Lindsay Raftis | Assistant Clerk | Corporate Services
Town of Orangeville | 87 Broadway | Orangeville, ON L9W 1K1
519-941-0440 Ext. 2242 | Toll Free 1-866-941-0440 Ext. 2215
lraftis@orangeville.ca | www.orangeville.ca

THE CORPORATION OF THE TOWN OF COBOURG

The Corporation of the Town of Cobourg
Legislative Services Department
Victoria Hall
55 King Street West
Cobourg, ON K9A 2M2

Brent Larmer
Municipal Clerk/
Director of Legislative Services
Telephone: (905) 372-4301 Ext. 4401
Email: blarmer@cobourg.ca
Fax: (905) 372-7558

SENT VIA EMAIL

May 1, 2023

Minister of Municipal Affairs and Housing
Premier Doug Ford
MP Philip Lawrence
MPP David Piccini
All Ontario municipalities

Re: Bill 5 - Stopping Harassment and Abuse by Local Leaders Act 2022

Please see attached Resolution adopted at the Cobourg Municipal Council meeting held on May 1, 2023.

If you have any questions regarding this matter, please do not hesitate to contact the undersigned at blarmer@cobourg.ca or by telephone at (905)-372-4301 Ext. 4401.

Sincerely,

Brent Larmer
Municipal Clerk/Director of Legislative Services
Returning Officer
Legislative Services Department

The Corporation of the Town of Cobourg

Resolution

Moved By	Councillor Adam Bureau	**Resolution No.:**	
Last Name Printed	BUREAU	145-23	
Seconded By	Councillor Miriam Mutton	**Council Date:**	
Last Name Printed	MUTTON	May 1, 2023	

THAT Council receive the correspondence from the Municipality of Mulmar and Duffer for information purposes; and

FURTHER THAT Council endorse and support Bill 5 - Stopping Harassment and Abuse by Local Leaders Act 2022 was introduced in the Ontario Legislature by MPP Steven Blaze through a private member's bill on August 10 2022; and

FURTHER THAT the Town of Coburg and Council are committed to demonstrating good governance and greater accountability for its Code of Conduct and workplace policies; and

NOW THEREFORE BE RESOLVED THAT the Council and the Corporation of the Town of Cobourg endorses Bill 5 Stopping Harassment and Abuse by Local Leaders Act 2022 which would require the code of conduct for municipal councillors and members of local boards to include or requirement to comply with workplace violence and harassment policies and permit municipalities to direct the integrity commissioner to apply to the court to vacate a member seat if the commissioners inquiry determines that the member has contravened this requirement; and

FURTHER THAT Council expresses its support for Bill 5 by directing the Clerk to send a copy of this motion to the Premier of Ontario the Ontario, Minister of Municipal Affairs and Housing, the Minister of Municipal Affairs and Housing the local members of parliament MPs the local members of provincial department and MPPS and all Ontario municipalities.

TOWNSHIP OF MULMUR

758070 2nd Line E
Mulmur, Ontario
L9V 0G8

Local (705) 466-3341
Toll Free from 519 only (866) 472-0417
Fax (705) 466-2922

April 6, 2023

Bill 5—Stopping Harassment and Abuse by Local Leaders Act, 2022

At the meeting held on April 5, 2023, Council of the Township of Mulmur passed the following resolution in support of Bill 5 – Stopping Harassment and Abuse by Local Leaders Act, 2022

Moved by Cunningham and Seconded by Clark

WHEREAS Bill 5—Stopping Harassment and Abuse by Local Leaders Act, 2022 was introduced in the Ontario Legislature by MPP Stephen Blais through a Private Member's Bill on August 10, 2022;

AND WHEREAS the Township of Mulmur and Council are committed to demonstrating good governance and greater accountability to its Code of Conduct and workplace policies;

NOW THEREFORE BE IT RESOLVED THAT the Council of the Corporation of the Township of Mulmur endorses Bill 5—Stopping Harassment and Abuse by Local Leaders Act, 2022 which would require the Code of Conduct for municipal Councillors and members of local boards to include a requirement to comply with workplace violence and harassment policies and permit municipalities to direct the Integrity Commissioner to apply to the court to vacate a member's seat if the Commissioner's Inquiry determines that the member has contravened this requirement;

AND THAT the Council of the Corporation of the Township of Mulmur expresses its support for Bill 5 by directing the Clerk to send this motion to the Premier of Ontario; the Ontario Minister of Municipal Affairs and Housing; the Association of Municipalities of Ontario (AMO); the local Members of Parliament (MP's); the local Members of Provincial Parliament (MPP's); and all Ontario Municipalities.

CARRIED.

Sincerely,

Roseann Knechtel

Roseann Knechtel, Deputy Clerk/Planning Coordinator

APR 2 0 2023
Info #6

Dufferin county

April 17, 2023

Honourable Doug Ford
Premier's OfficeRoom 281
Legislative Building, Queen's Park
Toronto, ON M7A 1A1

At it's regular meeting on April 13, 2023, Dufferin County Council passed the following resolution:

> THAT Dufferin County Council supports Bill 5 – Stopping Harassment and Abuse by Local Leaders Act;
>
> AND THAT this resolution be circulated to the Honourable Doug Ford, Premier of Ontario; the Honourable Steve Clark, Minister of Municipal Affairs and Housing; the Honourable Stephen Blais, and local MPPs.

Thank you,

Michelle Hargrave

Michelle Hargrave
Administrative Support Specialist

TOWN OF AJAX
REPORT OF THE GENERAL GOVERNMENT COMMITTEE

For consideration by the Council of the Town of Ajax on May 15, 2023

The General Government Committee met at 1:00 p.m. on May 8, 2023

Present:	Regional Councillor S. Lee, Chair Regional Councillor M. Crawford Councillor R. Tyler Morin Councillor L. Bower Councillor N. Henry Mayor S. Collier
Regrets:	Regional Councillor J. Dies

The General Government Committee recommends as follows:

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of Minutes

3.1 Regular Meeting

Moved by: L. Bower

That the Minutes of the regular meeting of the General Government Committee held on April 11, 2023 be adopted.

CARRIED

4. Consent Agenda

4.1 CAO-2023-07: Social Media Policy Update

Main Motion

Moved by: S. Collier

That the proposed update to Social Media Policy 055 (ATT-1) of the addition of section 3.3. *Management and Administration – Council Member Accounts* be approved.

Motion to Refer

Moved by: N. Henry

That amendments to the social media policy be referred to the Integrity Commissioner for their review and input respecting the application of Council's Code of Conduct and that staff report back to Council in September 2023.

CARRIED

4.2 CAO-2023-09: 2023 Council Member Remuneration

Moved by: S. Collier

That the attached 2023 Council Remuneration By-Law be brought forward to the May 15, 2023 Council Meeting for approval.

That the Clerk be directed to take the necessary steps to ensure that the Deputy Mayor role in Ajax is properly defined within the relevant Town by-laws and/or policies, and report back to Council for related approvals as necessary.

CARRIED

4.3 FIN-2023-07: 2022 Cash in Lieu of Parkland, Cash in Lieu of Parking and Community Benefits Charge – Annual Statement

Moved by: R. Tyler Morin

That the report “2022 Cash in Lieu of Parkland, Cash in Lieu of Parking and Community Benefits Charge - Annual Statement” be received for information.

CARRIED

4.4 FIN-2023-08: 2022 Canada Community-Building Fund Annual Report

Moved by: S. Collier

That the report “2022 Canada Community-Building Fund Annual Report” be received for information.

CARRIED

4.5 FIN-2023-09: 2022 Development Charge Reserve Funds – Treasurer’s Annual Statement

Moved by: S. Collier

That the report “2022 Development Charge Reserve Funds – Treasurer’s Annual Statement” be received for information.

CARRIED

4.6 FIN-2023-10: 2022 Operating Results and Year-end Reserve Allocations

Moved by: S. Collier

1. That the report on the 2022 Operating Results be received for information.

2. That Council approve the following 2022 Year End Allocations to Reserves, as recommended by the Director of Finance in accordance with the Financial Sustainability Plan:

Reserve	Allocation
Capital Contingency Reserve	$ 1,277,686
Vehicle & Equipment Reserve	$ 1,989,700
Building Maintenance Reserve	$ 1,647,481
Development Reserve	$ 930,000
Strategic Initiatives Reserve	$ 401,200

CARRIED

4.7 **FIN-2023-11: Capital Account Closing Report, March 31, 2023**

Moved by: S. Collier

1. That Council receive the attached listing of Capital Account closings as of March 31st, 2023 for information.

2. That funding transfers to/from the Reserves/Reserve Funds from the March 31st, 2023 Capital Account Closings, in accordance with the Financial Sustainability Plan, and changes in project funding sources as described in this report, be approved as follows:

Reserve / Reserve Fund	**Transfers to**	**Transfers from**	**Net Transfers**
Capital Contingency Reserve	($41,876.99)	$56,472.70	$14,595.71
Building Maintenance Reserve	($118,271.60)	$41,686.37	($76,585.23)
General Infrastructure Reserve	($148,901.70)	$35,491.06	($113,410.64)
Strategic Initiatives Reserve	($209,076.65)	-	($209,076.65)
Roads Maintenance Reserve	-	$20,355.47	$20,355.47
Vehicle/Equipment Replacement Reserve	($14,486.16)	$42,775.16	$28,289.00
Development Reserve	($118,158.01)	$3,954.06	($114,203.95)
Stormwater Maintenance Reserve	($24,147.02)	-	($24,147.02)
Development Charges 2018	-	$17,541.75	$17,541.75
Total Transfers	**($674,918.13)**	**$ 218,276.57**	**($456,641.56)**

3. That the over-expenditure of $7,448.81 (net of HST rebate) on 1014411 Automated Speed Enforcement, previously awarded to Signalisation Kalitec on May 10, 2021 by Council, be received for information.

CARRIED

4.8 **AFES-2023-02: Contract Award – Supply & Delivery – Pumper/Rescue Fire**

Truck

Moved by: L. Bower

1. That council award the contract for the supply and delivery of a Pumper/Rescue Fire Truck to Commercial Emergency Equipment in the amount of $1,521,611.67 (inclusive of all taxes).

2. That council approve funding of $36,158.43 to be allocated to Capital No. 1032411 from the Vehicle/Equipment Replacement Reserve.

CARRIED

4.9 **OES-2023-16: Contract Award – Range Line Road Reconstruction from Pickering Beach Road to Shoal Point Road**

Moved by: L. Bower

1. That Council award the contract for Range Line Road Reconstruction from Pickering Beach Road to Shoal Point Road including mill and overlay of Shoal Point Road to Dufferin Construction Company in the amount of $3,444,333.79 (inclusive of all taxes).

2. That Council approve funding of $1,817,295.24, to be allocated from the following Capital Accounts from the Canada Community Building Fund:

1034011 – Range Line Resurfacing – Cherry Road to Shoal Point Road	$1,821,711.96
1034111 – Range Line Recons - Pickering Beach Road to Cherry Road	($ 4,416.72)
Total	$ 1,817,295.24

3. That Council award the contract for the Contract Administration and Material Testing to R.V. Anderson in the amount of $290,797.31 (inclusive of all taxes) for the Range Line Road Reconstruction project.

CARRIED

4.10 **OES-2023-12: Contract Award – Buried Streetlight System Replacement**

Moved by: S. Collier

1. That Council award the contract for Buried Streetlight System Replacement, to Hastings Utilities Contracting Ltd. in the amount of $736,308.00 (inclusive of all taxes).

2. That Council award the contract for Contract Administration ~ Buried Streetlight System Replacement, to Morrison Hershfield Limited in the amount of $42,250.70 (inclusive of all taxes).

CARRIED

4.11 **OES-2023-17: Removal/Replacement of Digital Screens**

Main Motion

Moved by: S. Collier

1. That Council award the contract for the removal and/or replacement of four (4) digital screens, to Provincial Sign Systems in the estimated amount of $152,098.00 (inclusive of all taxes).

2. That Council approve funding of $148,060.00 to be allocated to a Capital Account from Capital Contingency Reserve.

CARRIED

Amendment

Moved by: M. Crawford

That the sign at the intersection of Highway 2/Westney Road be non-illuminated.

CARRIED

Main Motion as Amended

Moved by: S. Collier

1. That Council award the contract for the removal and/or replacement of four (4) digital screens, to Provincial Sign Systems in the estimated amount of $152,098.00 (inclusive of all taxes).

2. That Council approve funding of $148,060.00 to be allocated to a Capital Account from Capital Contingency Reserve.

3. That the sign at the intersection of Highway 2/Westney Road be non-illuminated.

CARRIED

4.12 **PDS-2023-19: Review of Underutilized Town Facilities Update**

Main Motion

Moved by: R. Tyler Morin

1. That the report titled “Underutilized Facilities Report Update” be received for information;

2. That Council direct staff to maintain Hartrick House based on current usage and expand promotion to better maximize usage during weekdays;

3. That staff be directed to report back following the approval of the Arts and Cultural Plan, on the long-term usage of the Sundial Sales Pavilion space.

CARRIED

Amendment

Moved by: S. Collier

That the motion be amended by adding the following:

That staff prepare a fulsome report identifying capital costs, maintenance costs, projected and incurred costs (3-years), highest and best use of residential usage, including affordable housing, on all 8 properties being:

- Hartrick House (120 Roberson Drive)
- Greenwood House (2280 Greenwood Road)
- Greenwood Pavilion
- Central Park Ajax Sales Pavilion (Ajax Plaza)
- Mill Street Firehall (25 Mill Street)
- Sundial Sales Pavilion (99 Barnham Street)
- Quaker Meeting House - Basement Level (457 Kingston Road)
- Village Library (58 Church Street North)

And report back to Council immediately following the approval of the Arts and Cultural Plan on these building capital and maintenance costs past and future as well as revenues from permitting.

CARRIED

Main Motion as Amended

Moved by: R. Tyler Morin

1. That the report titled “Underutilized Facilities Report Update” be received for information;

2. That Council direct staff to maintain Hartrick House based on current usage and expand promotion to better maximize usage during weekdays;

3. That staff be directed to report back following the approval of the Arts and Cultural Plan, on the long-term usage of the Sundial Sales Pavilion space; and

4. That staff prepare a fulsome report identifying capital costs, maintenance costs, projected and incurred costs (3-years), highest and best use of residential usage, including affordable housing, on all 8 properties being:

    - Hartrick House (120 Roberson Drive)
    - Greenwood House (2280 Greenwood Road)
    - Greenwood Pavilion
    - Central Park Ajax Sales Pavilion (Ajax Plaza)
    - Mill Street Firehall (25 Mill Street)
    - Sundial Sales Pavilion (99 Barnham Street)
    - Quaker Meeting House - Basement Level (457 Kingston Road)
    - Village Library (58 Church Street North)

    And report back to Council immediately following the approval of the Arts and Cultural Plan on these building capital and maintenance costs past and future as well as revenues from permitting.

    CARRIED

4.13 **LIS-2023-09: Updates to Noise By-law**

Moved by: M. Crawford

That the proposed updated Noise By-law (ATT-1) be brought forward to the May 15, 2023 meeting of Council for approval.

CARRIED

4.14 LIS-2023-10: Updates to Public Nuisance and Safety By-law

Moved by: N. Henry

That the proposed updated Public Nuisance and Safety By-law (ATT-1) be brought forward to the May 15, 2023 meeting of Council for approval.

CARRIED

5. Discussion

5.1 OES-2023-15: Snow Removal Program for Seniors and Qualified Residents

Main Motion

Moved by: R. Tyler Morin

1. That staff be authorized to modify the current Snow Removal Program for Seniors and Qualified Residents to only include the clearing of windrows and municipal sidewalks;

2. That staff be authorized to recruit the required staffing and procure the required equipment to enable the service modifications in Recommendation 1, as detailed in this report; and

3. That new staffing costs be managed through the operating budget management policy, and included as new seasonal Part time staff in the 2024 operating budget.

Motion to Refer

Moved by: N. Henry

That the report be referred back to staff to:

- Establish a revised Seniors Snow Clearing Program with service levels options and associated costing; and
- Once determined by staff, consult with the Accessibility Advisory Committee, Age Friendly Steering Committee and current program participants; and
- Consult with other municipalities to understand how they deliver snow clearing services and the subsidy level incurred by the municipality; and
- Report back to Committee in September 2023.

CARRIED

6. Presentations

6.1 Council Decision Dashboard Demo

There was no motion regarding this item.

6.2 **OES-2023-02: Urban Forest Study Update – Technical Report**

Moved by: M. Crawford

That Council endorse the Urban Forest Study Update – Technical Report prepared by the Toronto and Region Conservation Authority, dated March 24th, 2023.

CARRIED

6.3 **PDS-2023-18: Community Improvement Plans Review: Program Recommendations**

Main Motion

Moved by: N. Henry

1. That staff be authorized to undertake the required consultation process to amend the Downtown and Pickering Village Community Improvement Plans to realign them with the Town's strategic objectives, as prescribed under Section 28(5) of the *Planning Act*;

2. That program suspensions under the Downtown and Pickering Village Community Improvement Plans be extended until December 31, 2023 (or to the date of approval for any amended Community Improvement Plan, whichever is sooner) for the following programs:

    a. Downtown Community Improvement Plan
        i. Rehabilitation Grant Program;
        ii. Planning and Development Fees Grant Program;
        iii. Development Charge Exemption/Grant Program;
        iv. Reduced Parkland Dedication Requirements Program;

    b. Pickering Village Community Improvement Plan
        i. Development Tax Rebate Program;
        ii. Planning and Development Fees Rebate Program;
        iii. Development Charge Exemption/Reduction Program;
        iv. Reduced Parkland Dedication Requirements Program;

3. That unspent funds from future Downtown and Pickering Village CIP annual budgets be redirected to the CIP Development Improvement Fund, and that these funds be made available for future Town-led initiatives in either CIP area.

CARRIED

Amendment

Moved by: L. Bower

That the motion be amended by adding the following:

That any applications from within the Downtown CIP over the upset limit come to Council for approval.

CARRIED

Main Motion as Amendment

Moved by: N. Henry

1. That staff be authorized to undertake the required consultation process to amend the Downtown and Pickering Village Community Improvement Plans to realign them with the Town's strategic objectives, as prescribed under Section 28(5) of the *Planning Act*;

2. That program suspensions under the Downtown and Pickering Village Community Improvement Plans be extended until December 31, 2023 (or to the date of approval for any amended Community Improvement Plan, whichever is sooner) for the following programs:

   a. Downtown Community Improvement Plan
      i. Rehabilitation Grant Program;
      ii. Planning and Development Fees Grant Program;
      iii. Development Charge Exemption/Grant Program;
      iv. Reduced Parkland Dedication Requirements Program;

   b. Pickering Village Community Improvement Plan
      i. Development Tax Rebate Program;
      ii. Planning and Development Fees Rebate Program;
      iii. Development Charge Exemption/Reduction Program;
      iv. Reduced Parkland Dedication Requirements Program;

3. That unspent funds from future Downtown and Pickering Village CIP annual budgets be redirected to the CIP Development Improvement Fund, and that these funds be made available for future Town-led initiatives in either CIP area.

4. That any applications from within the Downtown CIP over the upset limit come to Council for approval.

CARRIED

7. Closed Session

None

8. Adjournment (5:10 p.m.)

Moved by: L. Bower

That the May 8, 2023 meeting of the General Government Committee be adjourned.

CARRIED

S. Lee, Chair

Town of Ajax
Summary of Advisory Committee Activities

Report To: Council

Prepared By: Sarah Moore, Legislative Specialist

Date of Meeting: May 15, 2023

Heritage Advisory Committee – April 5, 2023

Meeting Highlights

- Members discussed a resident request to consider **designation of heritage trees** in the Peak-Greenlaw Cemetery at Simcoe Point. M. Sawchuck reviewed options for designation under the *Ontario Heritage Act* and through Forests Ontario. Members agreed additional clarification from the resident would be required to identify the intent and which trees are of interest and M. Sawchuck agreed to follow-up and report back to the Committee.

- The Committee discussed logistics and decided to host a **D.I.L. Walking Tour** on May 6, 2023 in recognition of Jane's Walks.

- M. Sawchuck presented information on the **Heritage Permit for 497 Kingston Road West (Field-Bertrand House),** including review of the scope of work to replace the front porch, install a new portico, and complete complimentary landscape work. Members discussed proposed materials and access routes.

- M. Sawchuck shared research findings from a Heritage Report prepared by Branch Architects with the Committee that indicated that the accurate age of the oldest building in Ajax, **356 Kingston Road East (Old Post Inn)** c. 1815 was questionable. Members discussed the future opportunity to update the historical and designation plaques for the property.

- M. Sawchuck provided an update on **775 Kingston Road East (Nicholas Austin Property)** and discussed the impact of recently-enacted Provincial government legislation to remove the greenbelt land designation from the property to permit residential redevelopment. Members discussed the impact of development on the designation, servicing, and potential archeological significance of the property.

- S. Moore reminded Members of the **April 15, 2023 Municipal Heritage Committee Workshop** hosted by Bert Duclos. M. Sawchuck noted that the workshop was an opportunity for Members to gain a better understanding of their role on the Committee and related legislation.

- S. Moore shared details of the opportunity for 1-2 Members to attend the **Ontario Heritage Conference**, to be hosted in London, Ontario, June 15 -17, 2023.

- L. McEwan provided a status update on the transfer of the **Ajax Archives** to the Ajax Public Library.

Recommendation(s)

4. Presentation/Discussion

4.4 Heritage Permit: 497 Kingston Road West (Field-Bertrand House)

Moved by: R. Tyler Morin
Seconded by: B. Balsdon

That staff approve Heritage Permit HP0/23 to authorize the construction of a front porch/portico and front yard landscaping upgrades at 497 Kingston Road West.

CARRIED

Accessibility Advisory Committee – April 19, 2023

Meeting Highlights

- A. di Francia facilitated **consultation** with the Committee in relation to **e-bikes and e-scooters** including a review of adaptive cycling options. Michael Jenkins, Ontario Tech University, presented research on the benefits of e-bikes to older adult populations. Members discussed concerns with limited enforcement of e-scooters if allowed on multi-use paths, licensing, insurance, increased congestion on pedestrian paths of travel, identification of devices, and logistics of a shared service (third-party vendor).

- A. di Francia shared a brief update on the **Driver Awareness Campaign**, noting she will provide additional information on the opportunity for the Committee's involvement once finalized. Members expressed interest in a discussion with By-law Services relative to vehicle parking impeding pedestrian sidewalks.

- S. Moore sought feedback from the Committee on a draft **letter of support** to accompany the Town's application for funding from the **Inclusive Communities Grant** to install powered change tables, Hoyer lifts, and multisensory equipment at Town of Ajax recreation facilities.

- S. Moore provided an overview of the **Power Up, Ajax! Mobility device charging station project**, noting that installation of receptacles has started. She shared details of the program launch, scheduled for Thursday, June 1, 2023 at McLean Community Centre.

- Members discussed programming, events and activities in recognition **National AccessABILITY Week 2023**. May 29 – June 2, recognition will include a flag raising ceremony, participation in Easter Seals Red Shirt Day, the Mobility Device Charging Station launch, a free film screening at St. Francis Centre, and colouring contest. Members discussion presenters for the May 15, 2023 delegation presentation to Council.

- S. Moore shared details of several forthcoming **events and dates of interest** with Members, including those in relation to an Emergency Preparedness Workshop, Global Accessibility Awareness Day, Region of Durham Power of Inclusion Conference, 55+ BBQ, and Trailfest.

Recommendation(s)

4. Presentation/Discussion

4.3 Inclusive Communities Grant Application – Letter of Support

Moved by: R. Smith
Seconded by: A. Lambert

That the Committee approve the letter of support to accompany the Town's application for Inclusive Community Grant funding to install powered change tables, Hoyer lifts, and multisensory equipment at Town of Ajax recreation facilities.

CARRIED

4.5 National AccessAbility Week Recognition – Event Planning

Moved by: A. Lambert
Seconded by: R. Smith

That the 2023 National AccessABILITY Week recognition plan be approved.

CARRIED

Town of Ajax Report

Report To:	Council
Prepared By:	Liam Nichols Grants and Strategic Initiatives Coordinator
Report #:	CAO-2023-10
Subject:	**2023 Town of Ajax Community Survey**
Ward(s):	All
Date of Meeting:	Monday, May 15, 2023
Reference:	CAO-2023-05: 2022-2026 Strategic Plan (Action 26)

Recommendation:

That Council receive the report entitled “2023 Town of Ajax Community Survey” for information.

Background:

Council has conducted customer satisfaction polling since 2005.

Polling residents has helped shed light on our strengths and areas of improvement, as well as provide data on the changing needs and priorities of the Town. Polling routinely and with consistent questions gives the town insight into trends and changes year over year.

Public opinion polling is a valuable tool to validate our perceptions of what our customers want and need. Polling ensures that we hear from a broad range of residents and helps us focus our attention on fine tuning service delivery to meet their diverse needs.

The questions focus on services, programs, initiatives, events, community safety, financial assistance for recreation programs and services, priorities for municipal government, diversity and community engagement, and the waterfront.

As part of this year’s 2022-2026 strategic planning process, preliminary results from the polling were provided to the senior management team and Council to provide complementary, high-level context to their deliberations.

Discussion:

Environics Research was retained earlier this year to conduct another poll of Ajax residents. The customer polling exercise was conducted between February and March 2023.

The sampling method was designed to complete approximately 600 interviews within the Town’s boundaries. The final sample was distributed equitably among the three wards.

Many of the questions in this year's poll were asked in the same way as in the previous polls to determine, by popular opinion, whether we're improving in the delivery of services to the residents of Ajax.

During this initiative, we specifically targeted several topic areas of particular interest as outlined below:

- Satisfaction with the Town of Ajax
- Areas of Concern
- Service Delivery
- Perceptions of the Town of Ajax
- Contact with the Town
- Communication
- Community Safety
- Special Topics

A sample of 601 produces results that are statistically reliable to within plus or minus 4.0 percentage points, 19 times out of 20 (i.e., at a 95% confidence interval). The margin of error is larger for small sub-segments of the total sample.

Polling Summary / Highlights

The Environics report "Town of Ajax – Community Survey 2023" has been attached as ATT - 1. Highlights of the polling results are summarized as follows:

Satisfaction with the Town of Ajax
Residents continue to be highly satisfied with the Town of Ajax (79%) though this number has decreased slightly (2 points) since 2019. Residents name access to community facilities and amenities, as well as access to waterfront and greenspaces, as the things they like most about their community. Almost all residents feel being safe in one's neighbourhood and being near greenspace are the most important offerings in their community. This is followed by the Town's recreation opportunities, the importance of one's surroundings, and helping those in need.

Areas of concern
Traffic congestion continues to be a top concern for residents in Ajax, though concern has decreased since 2019. Business development and the economy continues on a downwards trend, with only 1% of residents mentioning it this year. Residents mention taxes as the single most important issue facing Ajax today, which has jumped since 2019. Healthcare also rises to the top as a new important issue within the Town, which may be due to the recent pandemic and difficulty accessing healthcare.

Service delivery
Residents claim having the most satisfaction with fire prevention services (88%) networks of roads (85%) parks (83%) the number of walking and biking trails (81%) as well as the Town's road and sidewalk maintenance in the spring, summer and fall (83%). Residents remain the most concerned about services for seniors, with only 42% saying they are satisfied with these services. More than two thirds want to see more spending on senior services.

Perceptions of the Town of Ajax
Residents have positive impressions of the Town, with most agreeing that it treats residents fairly (71%) and provides good quality services (70%). However, fewer agree it does a good job managing tax dollars (53%). Providing a larger description of the reasons for property tax increases this year, the Town sees a great jump in those who think the Town should increase

property taxes to reflect the rising cost of service delivery, moving over 12 points since 2019 (from 52% to 64%). The proportion of residents who feel that Town programs should be paid for through user fees has stayed relatively consistent since 2014 (about half).

Contact with the Town
More than half of residents have not had contact with the Town. For those who have, they hold positive impressions of Town staff. Contact with the Town is mostly focused on snow removal, incident reporting, and the status of a service or program delivery.

Communication
The Town website remains a top resource for finding out information about Town services, followed by the local newspaper. Those who have used the website compliment it on all aspects from ease of finding information, to the website being a central source for all information residents need. The website also remains the most effective way of communicating about programs and services, with 27% of residents saying it is their preferred method. This is followed by Ads in the paper (17%) and social media (16%).

Community Safety
A majority of Ajax residents feel safe in their community (88%). For those that identify safety concerns, residents believe that the most important safety issues in the Town are crime rates, crimes against persons, homelessness and panhandling, as well as shootings. Car theft also comes as a top mention as compared to prior years.

Special Topics
Residents allocate the most importance for the Ajax Partnership Fund to support community safety and well being (92%) seniors (92%) and youth (86%). These factors match with community concerns and importance of services in previous sections of this report. Just under half of Ajax residents have visited the waterfront at least once a month (46%). Two-thirds believe in the importance of the advocacy around algae on the waterfront (66%). Two-thirds of residents are aware of Ajax's free parking in designated areas (66%) and a majority are satisfied with this offer (74%).

Financial Implications:

There are no financial implications related to the recommendations in this report.

Communication Issues:

The Town will communicate the results of the 2023 Town of Ajax Community Survey through internal and external communication channels.

Relationship to the Strategic Plan:

4.2 Ensure an efficient and effective service delivery.

Conclusion:

Overall, satisfaction levels have been maintained and, in many areas, increased over the last four years. The Town is committed to undertake further review and action in those areas where improvement is needed and implement those improvements as part of future strategic initiatives. Customer polling results/findings will also become part of the discussions and dialogue during annual planning and resident consultation sessions.

The Town wishes to thank all residents who took part in the Customer Polling exercise and who provided their insight and valuable feedback.

Attachments:

ATT-1: Town of Ajax – Community Survey 2023, Environics Research Group

Prepared by:
Liam Nichols – Grants and Strategic Initiatives Coordinator

Submitted by:
Christie McLardie – Manager of Public and Strategic Affairs

Approved by:
Shane K. Baker – Chief Administrative Officer

TOWN OF AJAX: **COMMUNITY SURVEY**

FINAL REPORT
MARCH 2023

ENVIRONICS RESEARCH

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OVERVIEW:
METHODOLOGY AND KEY INSIGHTS

The Town of Ajax commissioned Environics Research to do a community survey with Town residents as part of a larger tracking study.

This survey gauged citizen satisfaction of services, perceptions of importance of services, as well as experiences with Town staff, feelings towards community safety, and a series of special topics.

RESEARCH METHODS

Environics Research conducted a telephone survey with a representative sample of **N601** Ajax residents.

Quotas were implemented by ward, age, and gender. Prior to analysis, the data was weighted according to 2022 Census data to address any deviations. The survey was live from **February 15th to March 4th, 2023.**

A sample of 601 produces results that are statistically reliable to within ±4.0 percentage points, 19 times out of 20 (i.e., at a 95% confidence interval). The margin of error is larger for smaller sub-segments of the total sample.

In this report, results are expressed as percentages unless otherwise noted. Results may not add to 100% due to rounding or multiple responses. Labels for values less than or equal to three percentage points are not shown in stacked bar charts.

KEY FINDINGS

Satisfaction with the Town of Ajax. Residents continue to be highly satisfied with the Town of Ajax (79%), though this number has decreased 2 points since 2019. Residents name access to community facilities and amenities, as well as access to waterfront and greenspaces, as the things they like most about their community. Almost all residents feel being safe in one's neighbourhood and being near greenspace are the most important offerings in their community. This is followed by the Town's recreation opportunities, the importance of one's surroundings, and helping those in need.

Areas of concern. Traffic congestion continues to be a top concern for residents in Ajax, though concern has decreased since 2019. Business development and the economy continues on a downwards trend, with only 1% of residents mentioning it this year. Residents mention taxes as the single most important issue facing Ajax today, which has jumped since 2019. Healthcare also rises to the top as a new important issue within the Town, which may be due to the recent pandemic and difficulty accessing healthcare.

Service delivery. Residents claim having the most satisfaction with fire prevention services (88%) networks of roads (85%) parks (83%) the number of walking and biking trails (81%) as well as the Town's road and sidewalk maintenance in the spring, summer and fall (83%). Residents remain the most concerned about services for seniors, with only 42% saying they are satisfied with these services. More than two thirds want to see more spending on senior services.

KEY FINDINGS

Perceptions of the Town of Ajax. Residents have positive impressions of the Town, with most agreeing that it treats residents fairly (71%) and provides good quality services (70%). However, fewer agree it does a good job managing tax dollars (53%). Providing a larger description of the reasons for property tax increases this year, the Town sees a great jump in those who think the Town should increase property taxes to reflect the rising cost of service delivery, moving over 12 points since 2019 (from 52% to 64%). The proportion of residents who feel that Town programs should be paid for through user fees has stayed relatively consistent since 2014 (about half).

Contact with the Town. More than half of residents have not had contact with the Town. For those who have, they hold positive impressions of Town staff. Contact with the Town has mostly focused snow removal, incident reporting, and the status of a service or program delivery.

Communication. The town Website remains a top resource for finding out information about Town Services, followed by the local newspaper. Those who have used the website compliment it on all aspects from ease of finding information, to the website being a central source for all information residents need. The website also remains the most effective way of communicating about programs and services, with 27% of residents saying it is their preferred method. This is followed by Ads in the paper (17%), and social media (16%).

Community Safety. A majority of Ajax residents feel safe in their community (88%). For those that identify safety concerns, residents believe that the most important safety issues in the Town are crime rates, crimes against persons, homelessness and panhandling, as well as shootings. Car theft also comes as a top mention as compared to prior years.

KEY FINDINGS

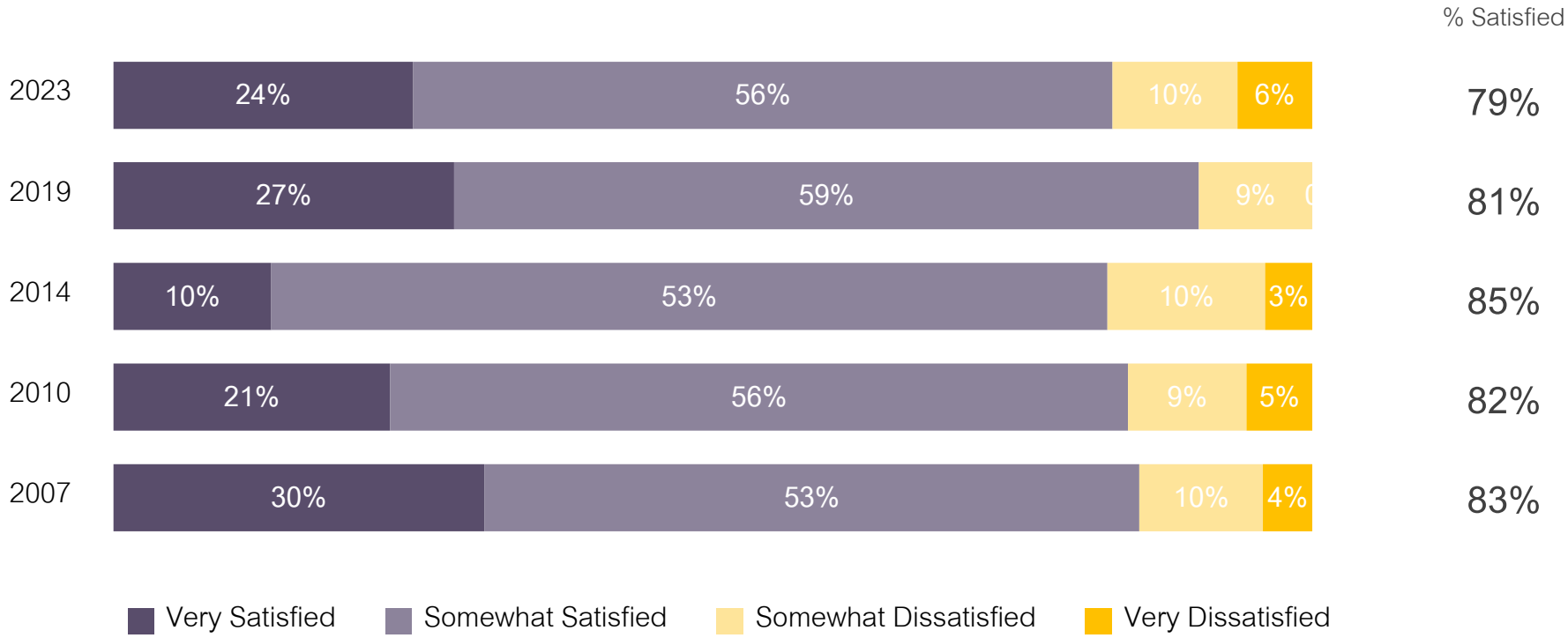
Special Topics. Residents allocate the most importance for the Ajax Partnership Fund to support community safety and well being (92%) seniors (92%) and youth (86%). These factors match with community concerns and importance of services in previous sections of this report. Just under half of Ajax residents have visited the waterfront at least once a month (46%). Two-thirds believe in the importance of the advocacy around algae on the waterfront (66%). Two-thirds of residents are aware of Ajax's free parking in designated areas (66%) and a majority are satisfied with this offer (74%).

PERCEPTIONS OF THE TOWN OF AJAX

Perceptions of the Town | **Satisfaction**

Satisfaction with the local government has decreased since 2019 by 2 points. The proportion of residents, however, who are 'very satisfied' with the Region, has stayed consistent as compared to other years.

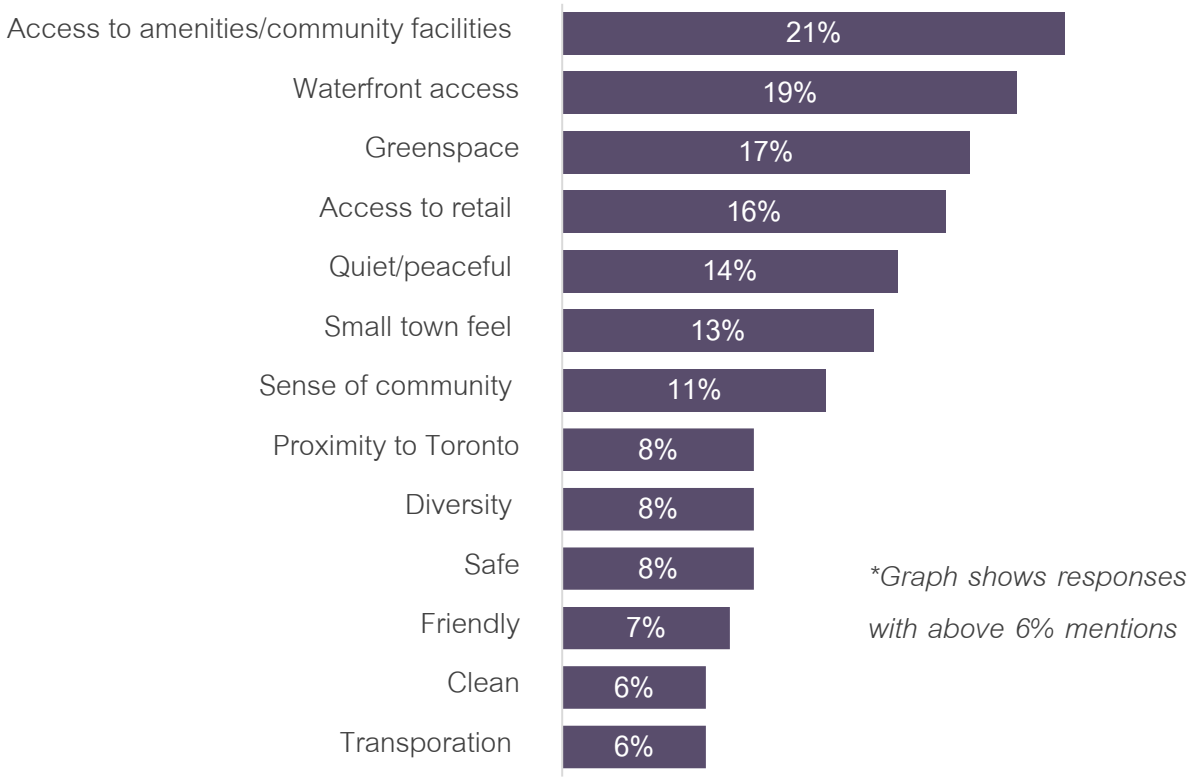
Q6. Would you say that you are… with the Town of Ajax local municipal government? (N=601)



Perceptions of the Town | **Like Most About Community**

Residents name access to community facilities and amenities, as well as access to waterfront and greenspaces, as the things they like most about their community. Ward 3 residents stand out as those most likely to say they like their access to waterfront, and students are most likely to mention enjoying a quiet and peaceful neighbourhood.

Q4. Thinking about the whole community of Ajax, what are the two or three things you LIKE the MOST? (N=601)



**Graph shows responses with above 6% mentions*

Most Likely to Mention: Waterfront Access

- Ward 3 residents (37%)

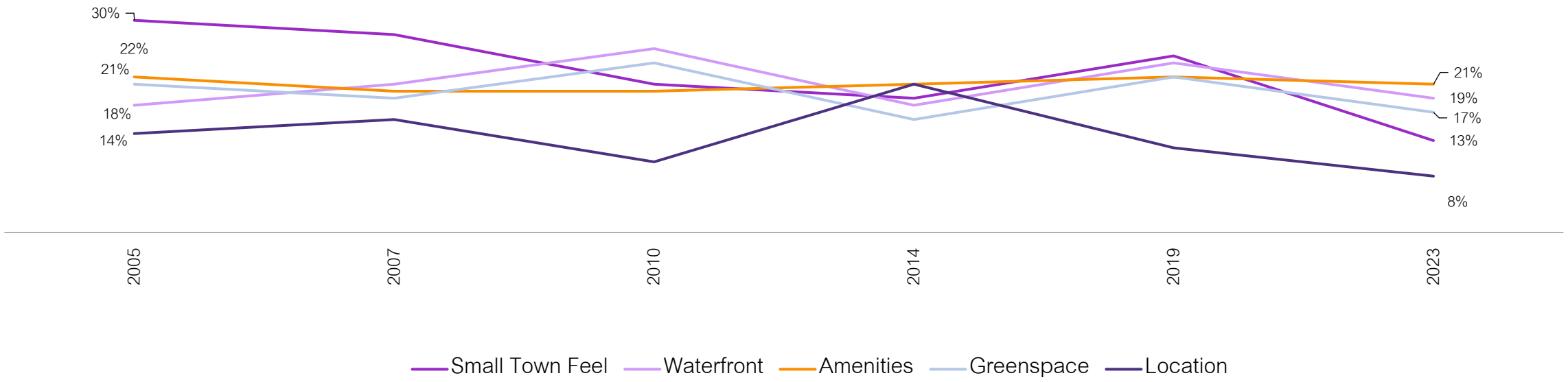
Most Likely to Mention: Quiet/Peaceful

- Students (37%)
- Income <$50k (22%)

Perceptions of the Town | **Like Most About Community Trend**

Likeness to Ajax having a 'small-town feel' has decreased steadily since 2005. Likewise, Ajax's location is on a downwards trend as something residents like most about Ajax. Instead, residents are most likely to mention their access to amenities and the waterfront as the aspects they like most about living in Ajax.

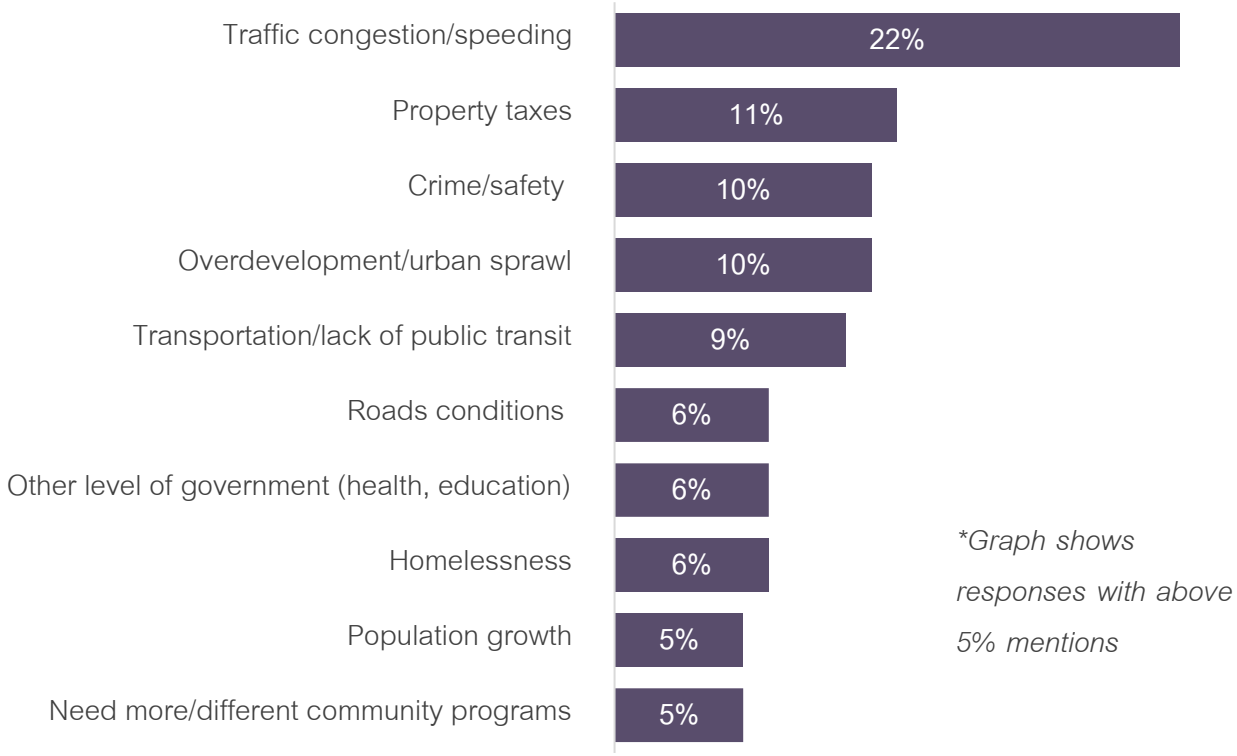
Q4. Thinking about the whole community of Ajax, what are the two or three things you LIKE the MOST? (N=601)



Perceptions of the Town | **Dislike Most About Community**

Strong distaste for traffic congestion is mentioned more than double any other aspect about living in the community. Property taxes comes close behind, alongside crime and safety concerns.

Q5. Thinking about the whole community of Ajax, what are the two or three things you DISLIKE the MOST? (N=601)



**Graph shows responses with above 5% mentions*

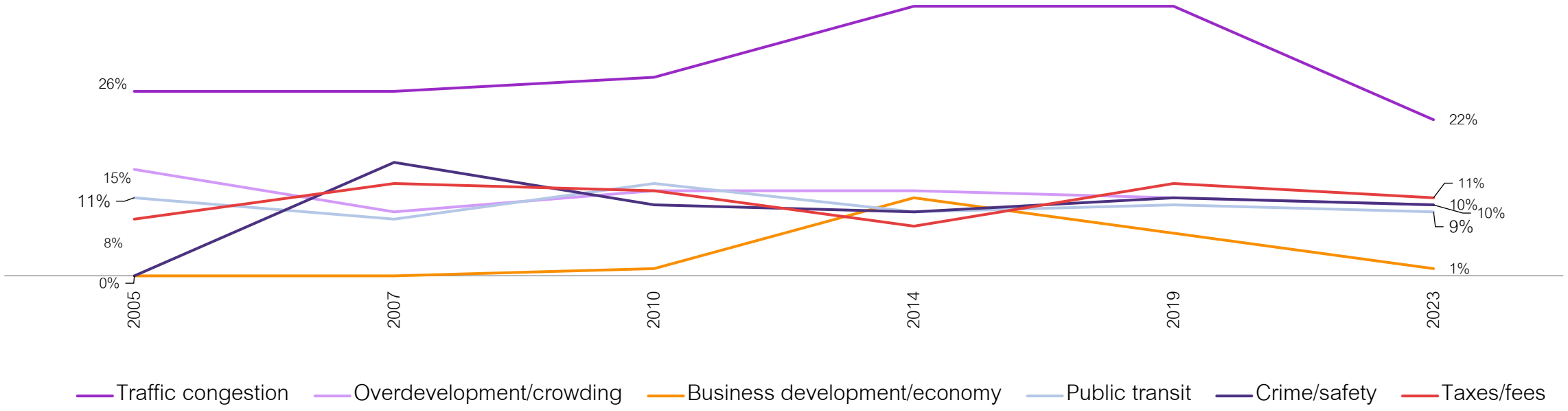
Most Likely to Mention: Property Taxes

- Ward 2 residents (20%)
- Income >$100k (17%)
- Those who do not identify as a visible minority (15%)

Perceptions of the Town | **Dislike Most About Community Trend**

Traffic congestion continues to be a top concern for residents in Ajax, though concern has decreased since 2019. Business development and the economy continues on a downwards trend, with only 1% of residents mentioning it this year.

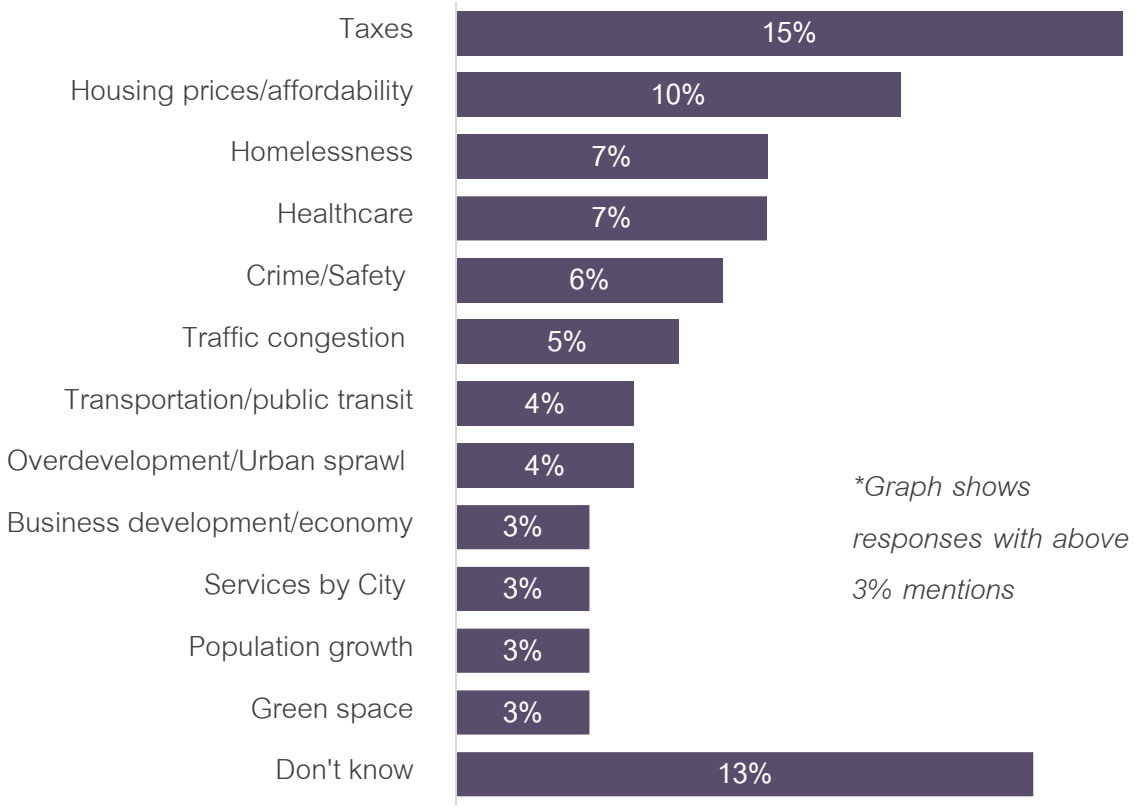
Q5. Thinking about the whole community of Ajax, what are the two or three things you DISLIKE the MOST? (N=601)



Perceptions of the Town | **Most Important Issue**

Residents mention taxes as the single most important issue facing Ajax today. As seen on the following slide, this number has jumped since 2019. Healthcare also rises to the top as a new important issue within the Town, which may be due to the recent pandemic that passed between this wave of research and the last.

Q3. In your opinion, what is the single most important issue facing Ajax today? (N=601)



**Graph shows responses with above 3% mentions*

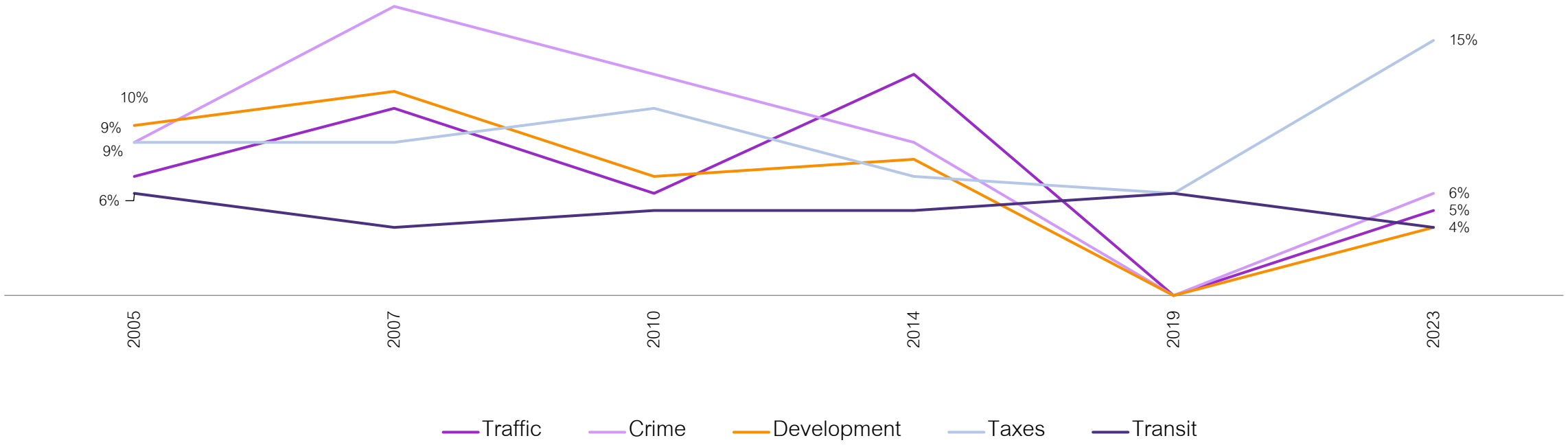
Most Likely to Mention: Taxes

- Ward 2 Residents (18%)
- Men (17%)

Perceptions of the Town | **Most Important Issue Trend**

Residents mention taxes as the single most important issue facing Ajax today. As seen on the following slide, this number has jumped since 2019. Healthcare also rises to the top as a new important issue within the Town, which may be due to the recent pandemic that passed between this wave of research and the last.

Q1. In your opinion, what is the single most important issue facing Ajax today? (N=601)

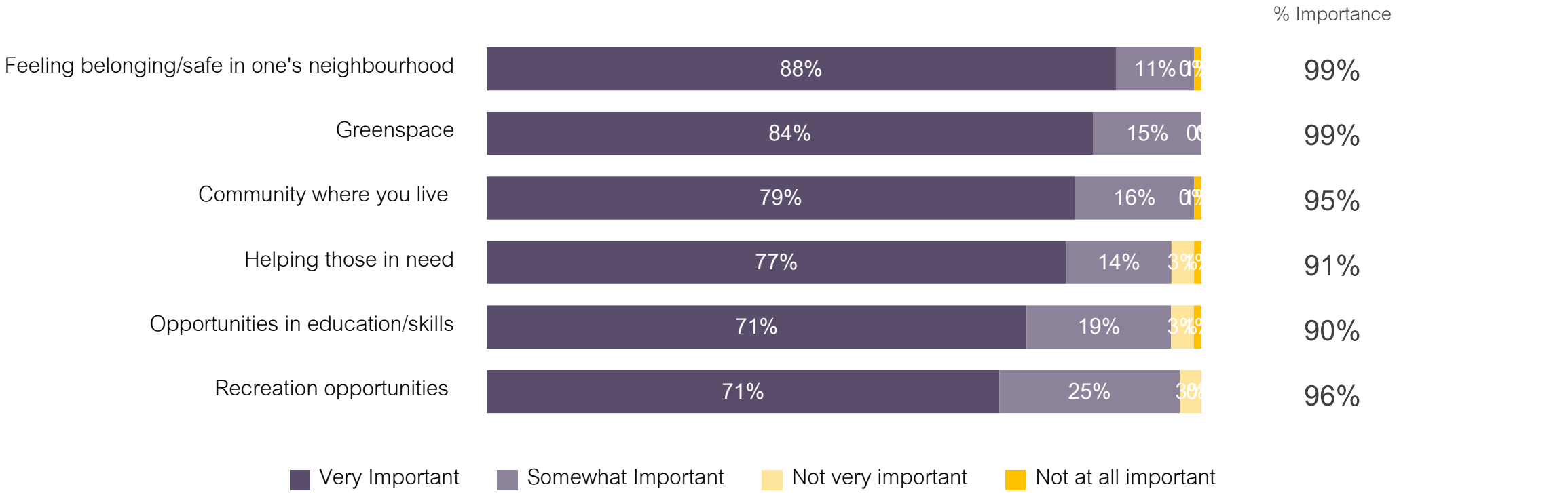


QUALITY OF LIFE FACTORS

Quality of Life Factors | **Importance of Community Offerings**

Almost all residents feel match feeling safe in one's neighbourhood and being near greenspace as the most important offerings in their community. This is followed by the Town's recreation opportunities, the importance of one's surroundings, and helping those in need.

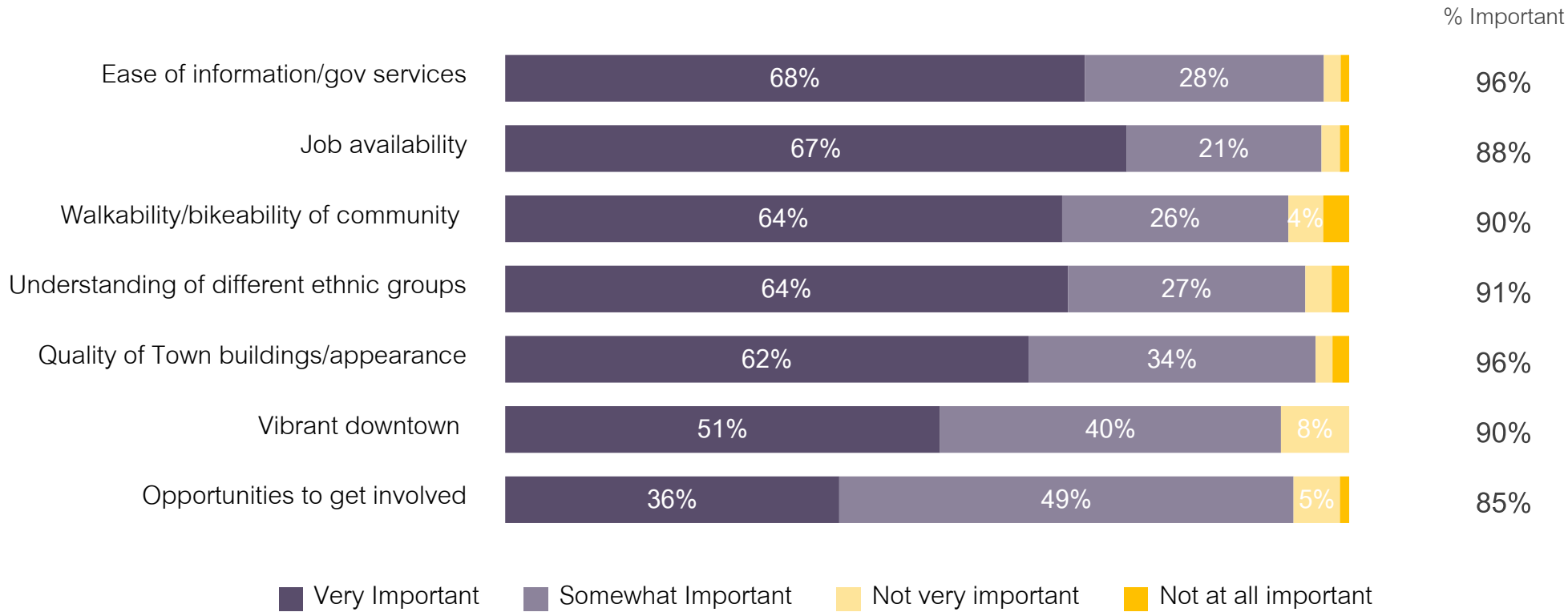
*Q7A. First, in general, how important are each of the following factors in making any community a good place to live and work? (N=601) – SPLIT SAMPLE ACROSS ITEMS**



Quality of Life Factors | **Importance of Community Offerings**

Almost all residents feel match feeling safe in one's neighbourhood and being near greenspace as the most important offerings in their community. This is followed by the Town's recreation opportunities, the importance of one's surroundings, and helping those in need.

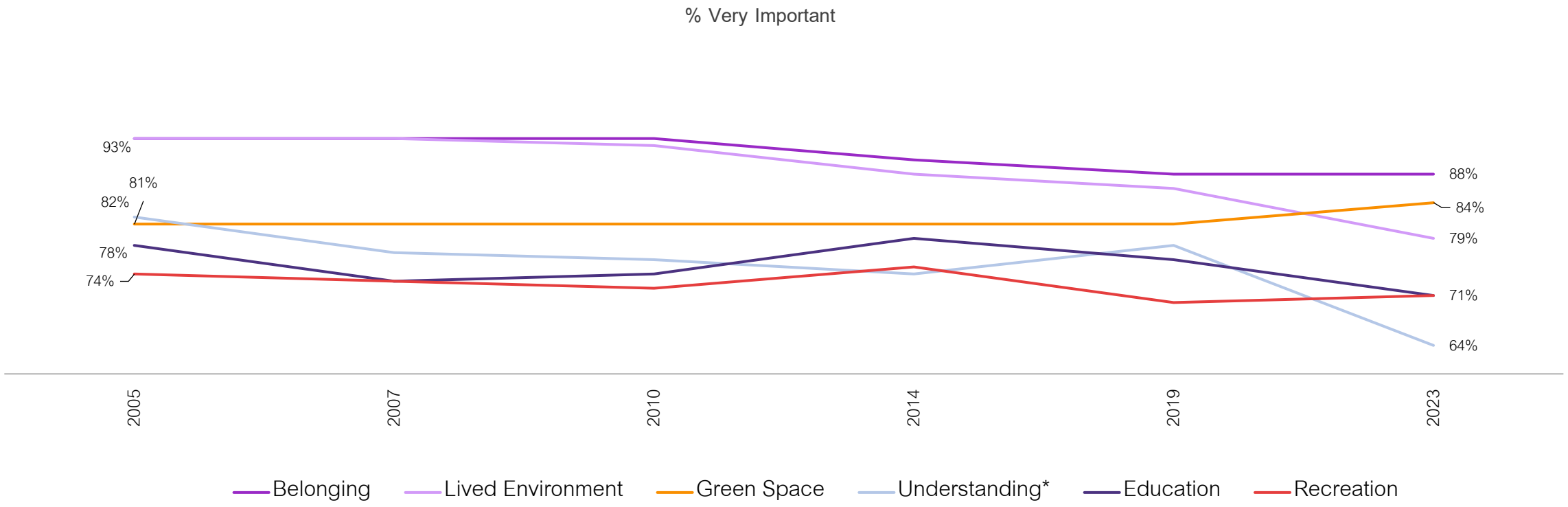
Q7A. First, in general, how important are each of the following factors in making any community a good place to live and work? (N=601) – SPLIT SAMPLE ACROSS ITEMS



Quality of Life Factors | **Importance of Offerings (Trend)**

One's lived environment has slowly lost its lead as the most important factor in making a community a good place to live, being surpassed by a steady proclamation of the importance of feeling that one belongs in their community.

Q7. First, in general, how important are each of the following factors in making any community a good place to live and work? (N=600)

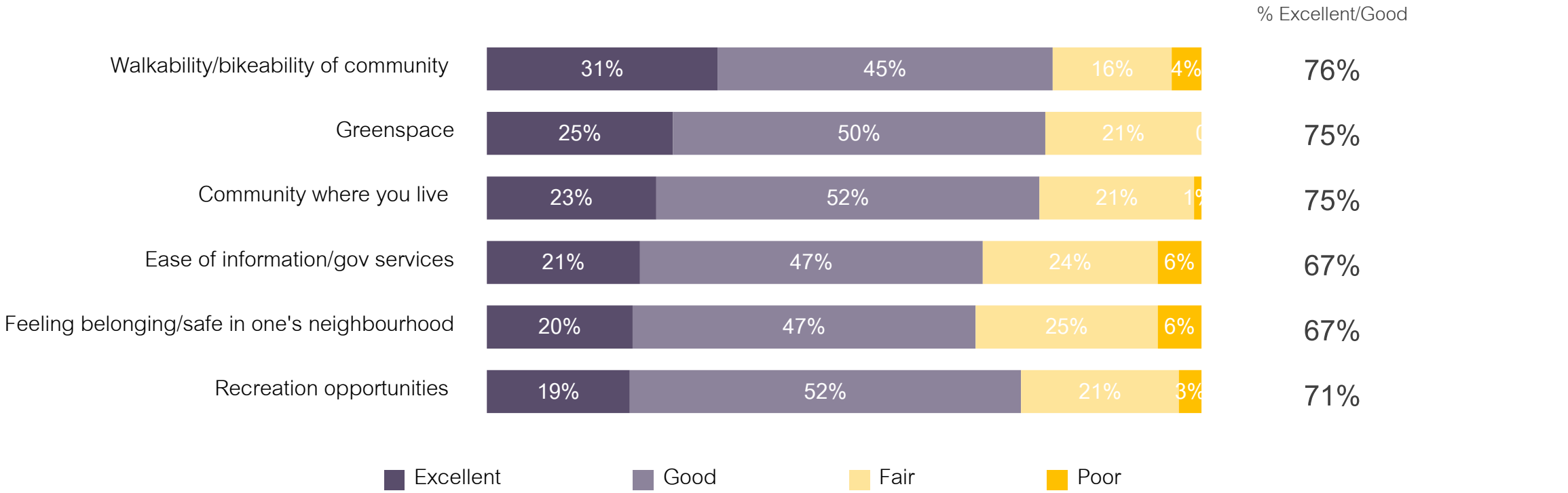


*Note: Prior tracking point was 'tolerance'. This language is not appropriate for further tracking and has since been changed.

Quality of Life Factors | **Delivery of Community Offerings**

Ajax receives the highest ratings in the walkability and bikeability of the community, its green space ,and the general environment in which people live.

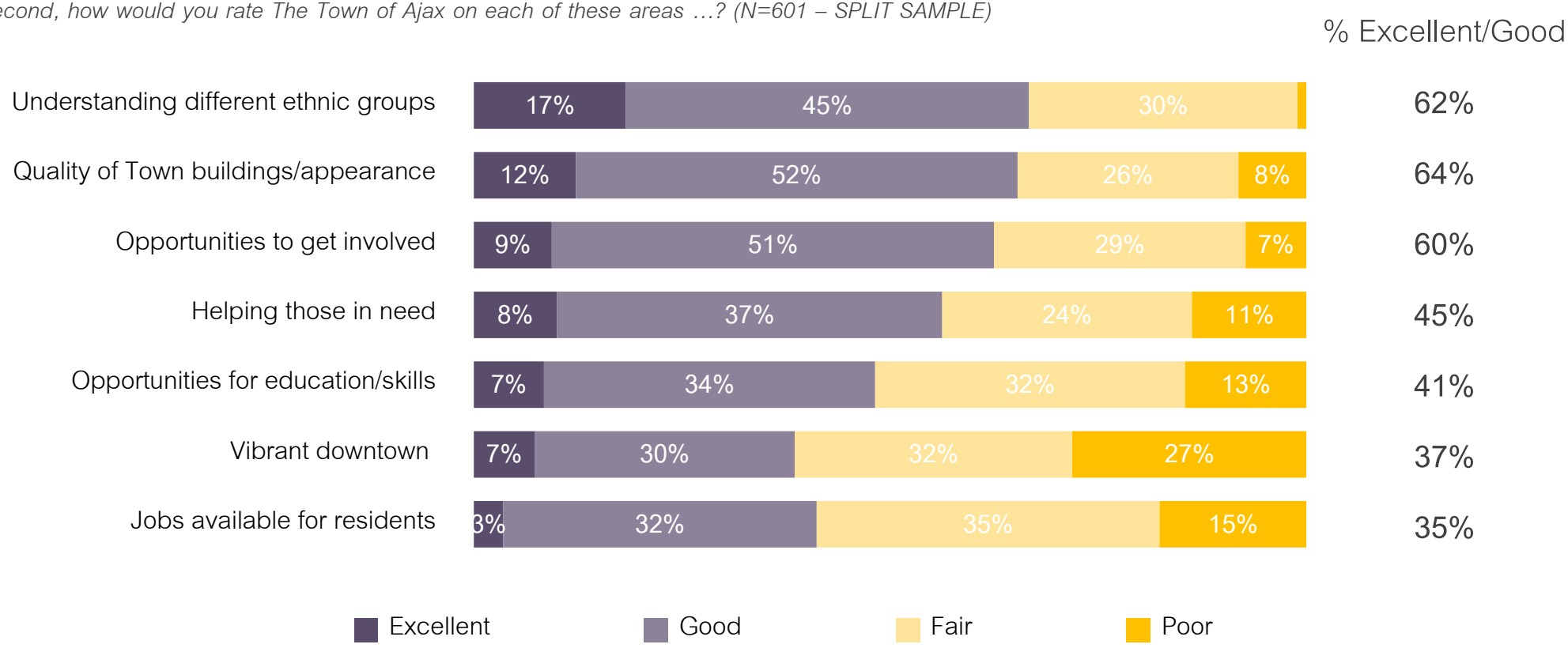
Q7B. Second, how would you rate The Town of Ajax on each of these areas …? (N=601 – SPLIT SAMPLE)



Quality of Life Factors | **Delivery of Community Offerings**

Ajax receives the lowest ratings in having a vibrant downtown core, as well as the number of jobs available for residents.

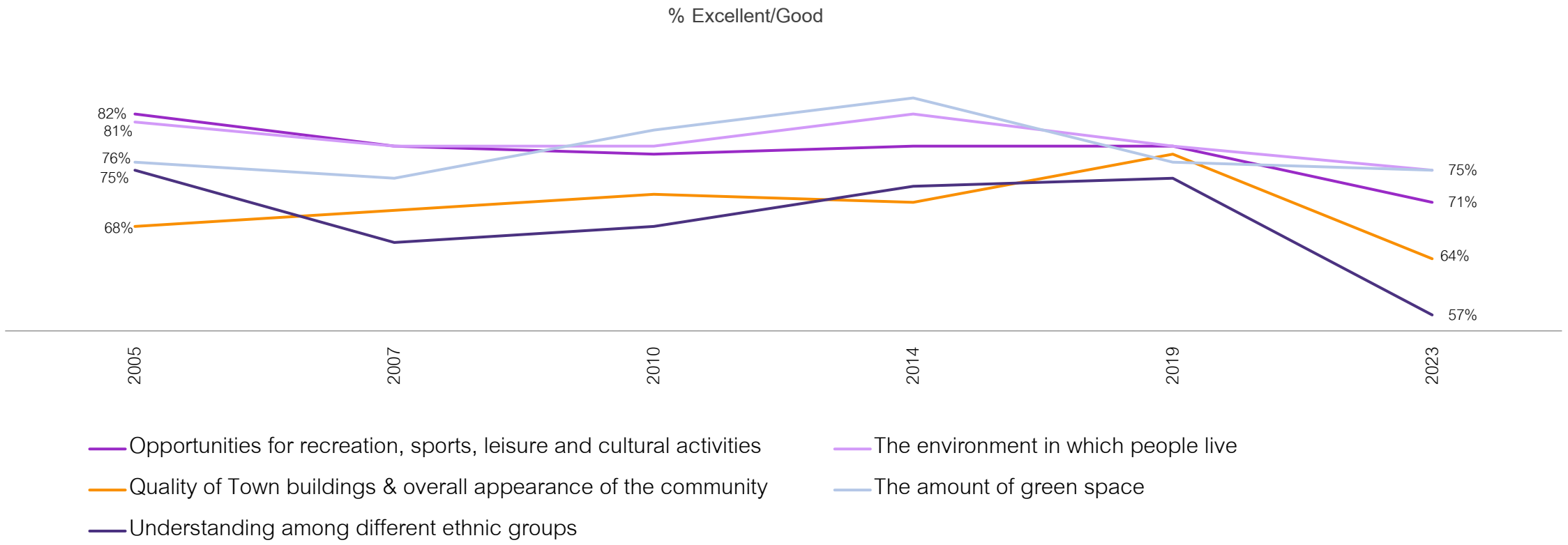
Q7B. Second, how would you rate The Town of Ajax on each of these areas …? (N=601 – SPLIT SAMPLE)



Quality of Life Factors | **Importance of Offerings (Trend)**

This year sees a sharp decrease in perceptions of the Town's understanding among different ethnic groups. Opportunities for recreation, as well as the environment in which people live, remain at the top of the charts relatively steadily since 2005.

Q7B. Second, how would you rate The Town of Ajax on each of these areas …? (NSPLIT SAMPLE)

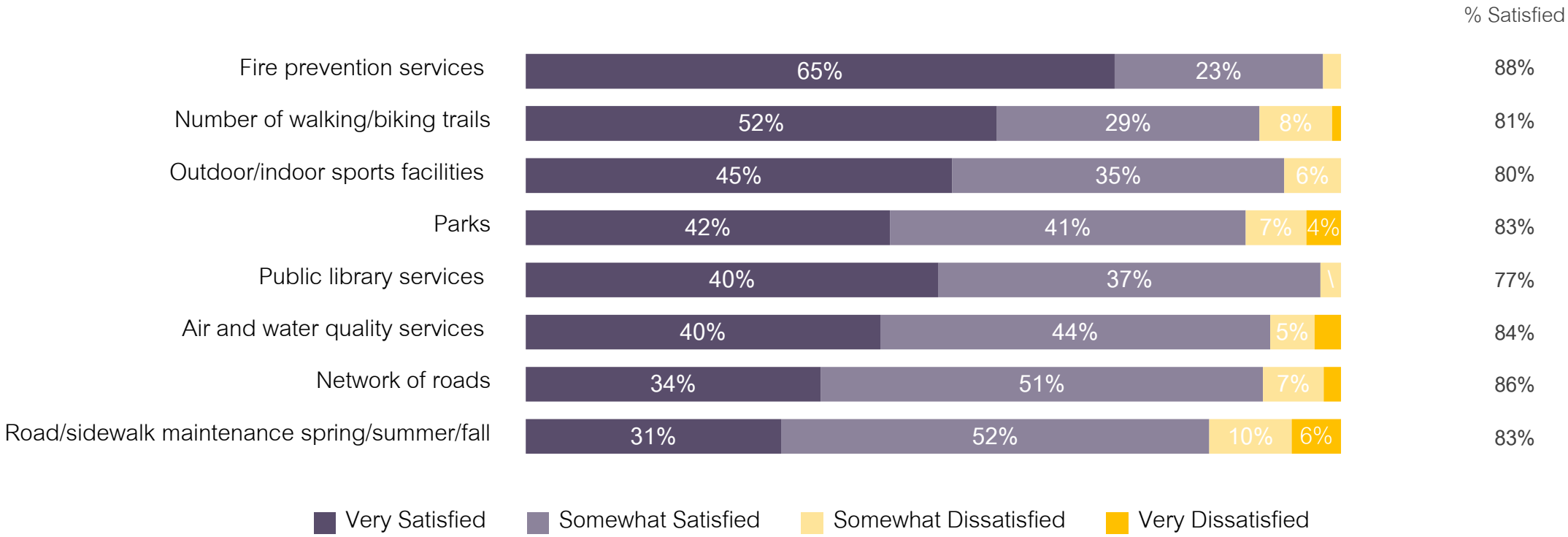


EVALUATION OF SERVICES

Evaluation of Services | **Satisfaction**

Residents claim having the most satisfaction with fire prevention services (88%), networks of roads (85%), parks (83%) the number of walking and biking trails (81%), as well as the Town's road and sidewalk maintenance in the spring, summer and fall (83%).

*Q14. Now I would like to ask you a two-part question about specific services. A) Are you satisfied/dissatisfied… B) Should the Town be spending more/less on… (N=602)***

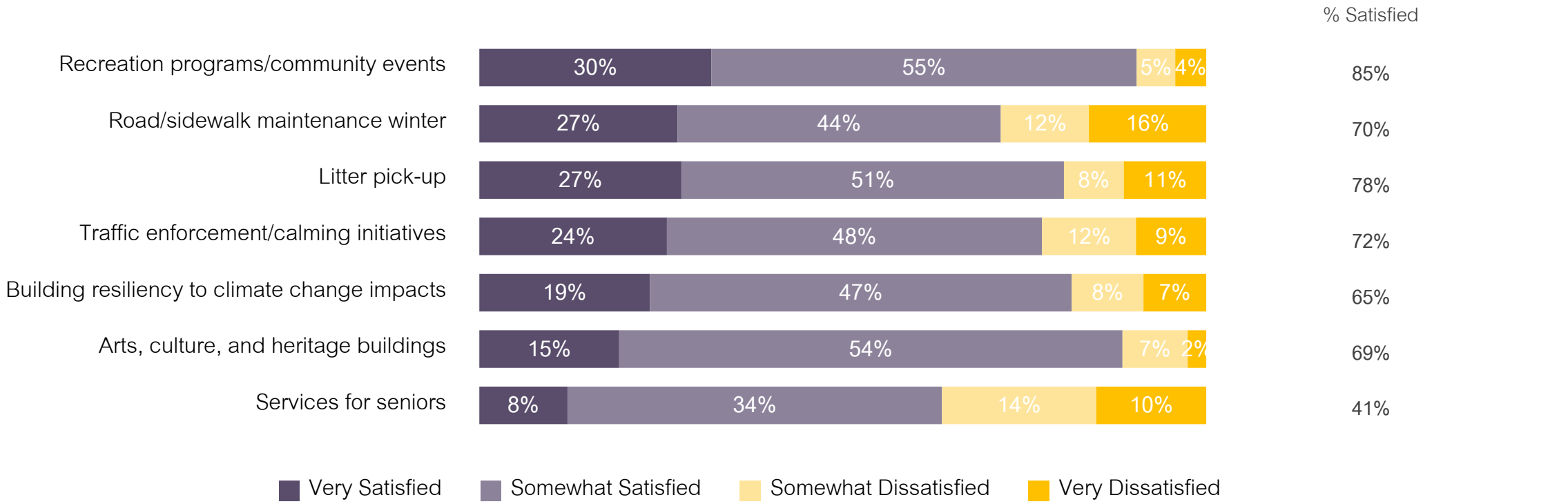


***New scale metric as of 2023 – rating from 1-4, instead of 1-5.*

Evaluation of Services | **Satisfaction**

Residents are least satisfied with traffic enforcement for the Town, alongside the Town's efforts to build climate resiliency and its arts culture and heritage scene. The Town receives the lowest satisfaction for its services for seniors.

*Q14. Now I would like to ask you a two-part question about specific services. A) Are you satisfied/dissatisfied… B) Should the Town be spending more/less on… (N=602)***

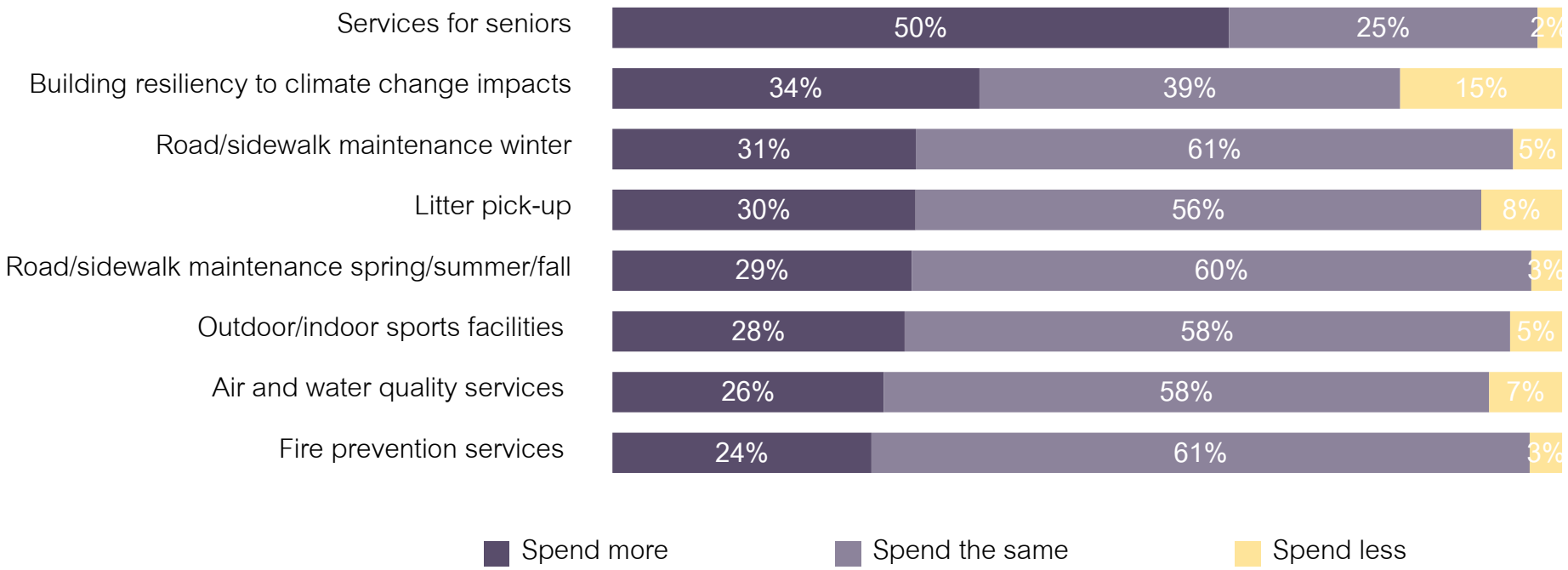


***New scale metric as of 2023 – rating from 1-4, instead of 1-5.*

Evaluation of Services | **Spending on Specific Services**

Aligning with dissatisfaction with this Town offering, half of residents want to see more spending in the Town's services for seniors. This is followed by a desire for the Town to put greater effort in building resilience to climate change impacts.

*Q14. Now I would like to ask you a two-part question about specific services. A) Are you satisfied/dissatisfied… B) Should the Town be spending more/less on… (N=602)***

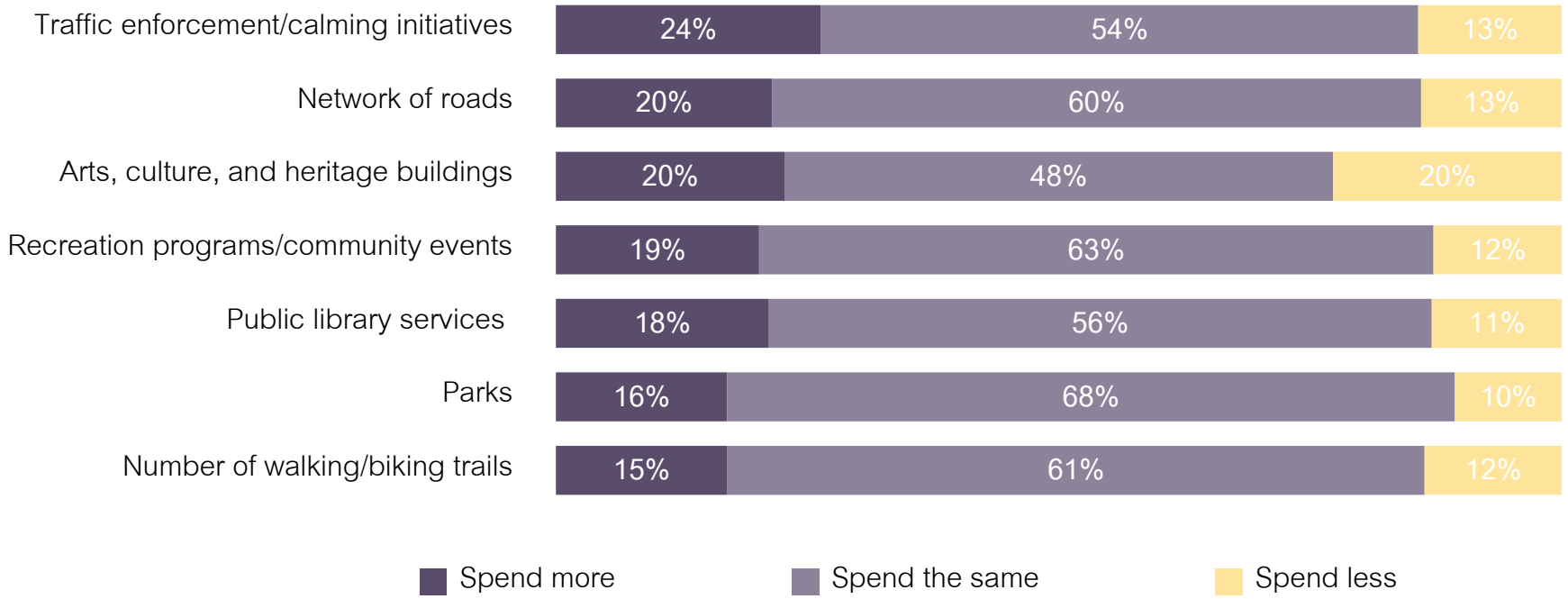


***New scale metric as of 2023 – rating from spend more to spend less.*

Evaluation of Services | **Spending on Specific Services**

Residents are content with the town keeping their spending the same on recreation programs, the number of biking trails, as well as the network of roads in the Town.

*Q14. Now I would like to ask you a two-part question about specific services. A) Are you satisfied/dissatisfied… B) Should the Town be spending more/less on… (N=602)***

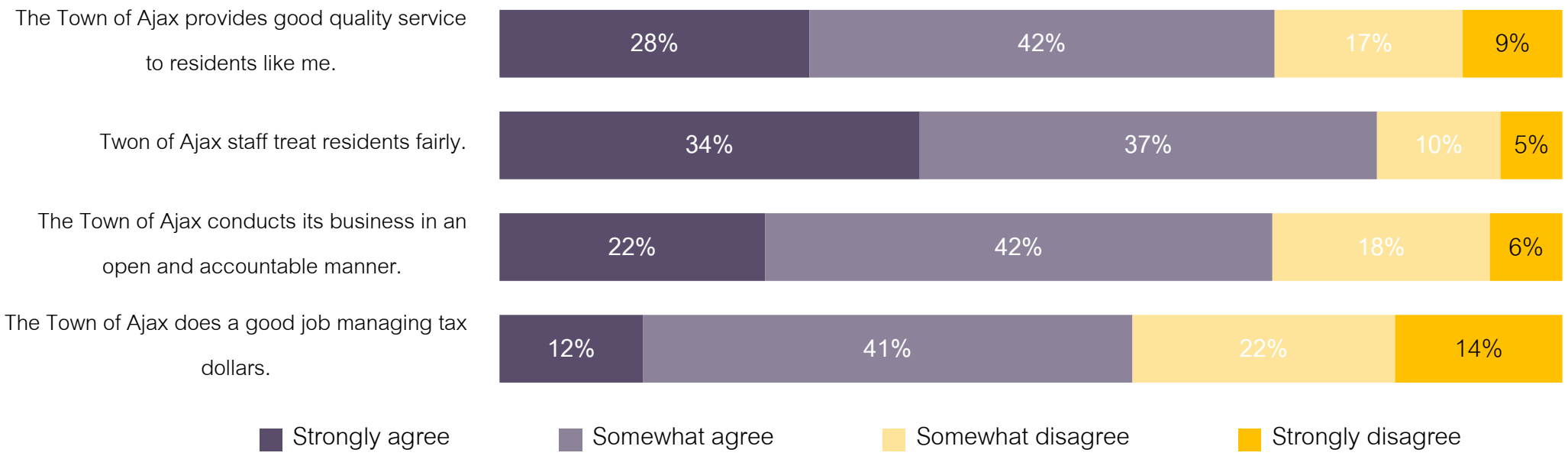


***New scale metric as of 2023 – rating from spend more to spend less.*

Perceptions of the Town | **General Impressions**

Almost three quarters of Ajax residents feel that Ajax staff treat residents fairly. Ajax residents express the greatest disagreement with the statement that the Town does a good job managing tax dollars, although half of residents still applaud the Town in this area.

Q15. Please indicate your level of agreement/disagreement with each of the following statements. (N=601)

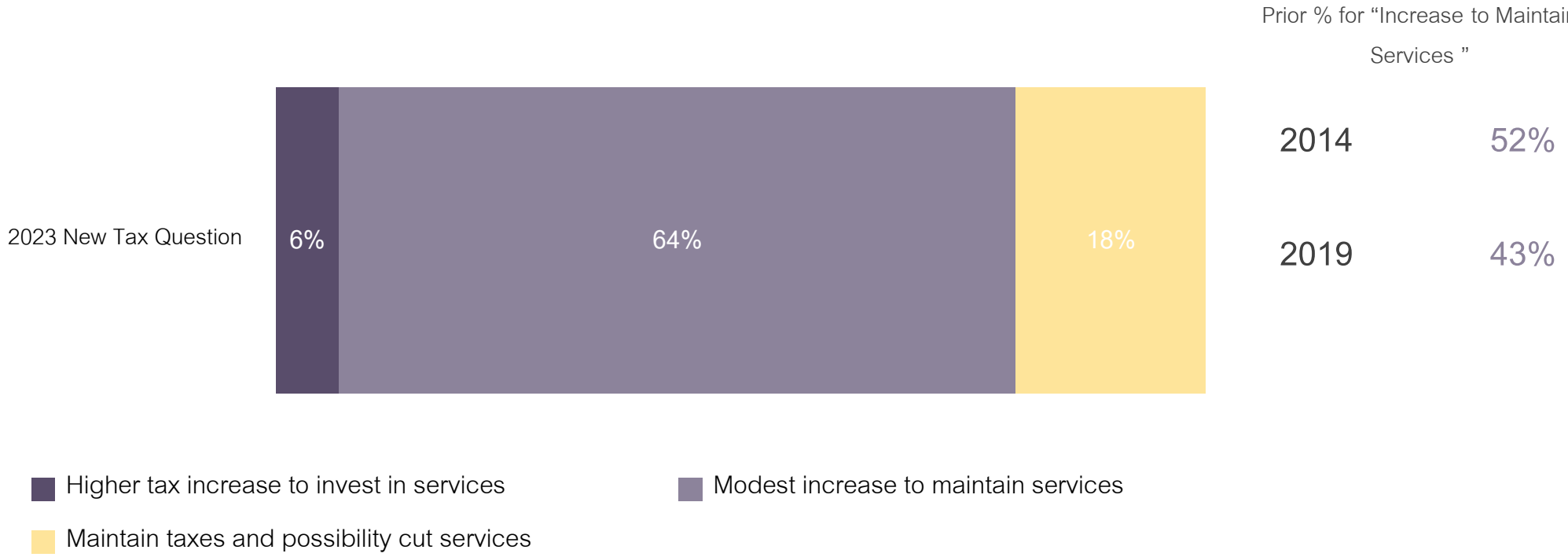


***New scale metric as of 2023 – rating from 1 to 4 instead of 1 to 5.*

Perceptions of the Town | **Taxation for Services**

The Town sees a great jump in those who think the Town should increase property taxes to reflect the rising cost of service delivery, moving over 12 points since 2019. Question wording this wave, being more explanatory, may have had an impact on responses.

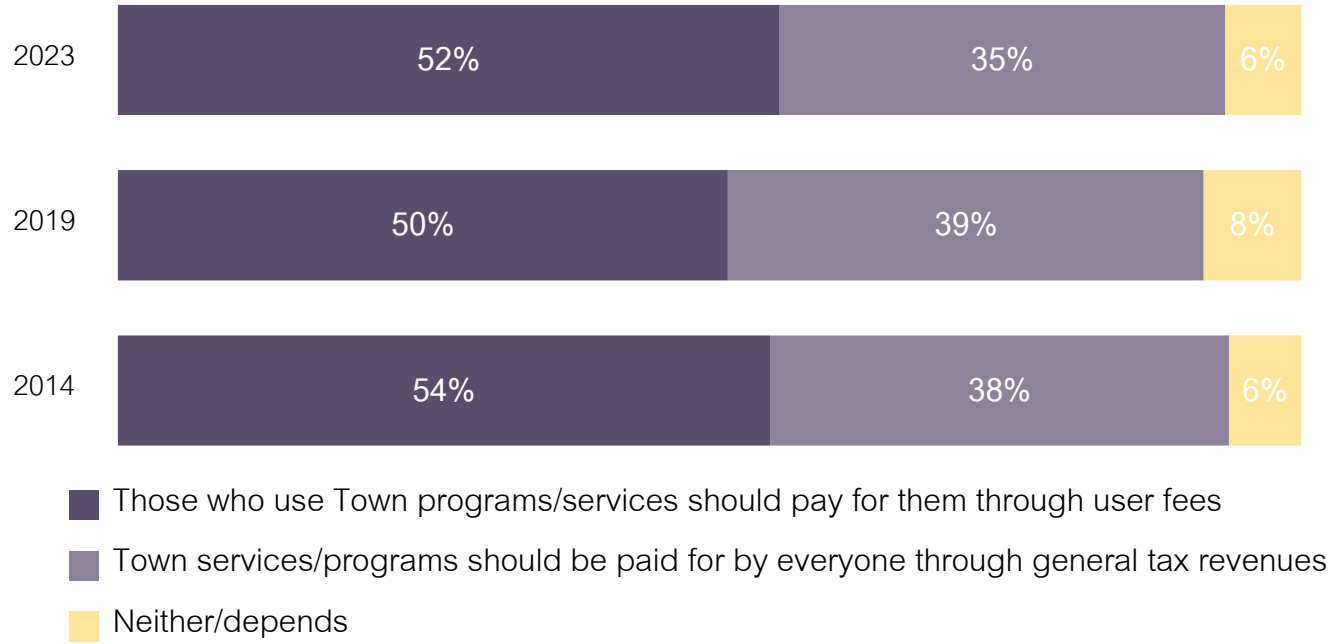
*8. *NEW TAX QUESTION* Each year, the Town of Ajax typically targets a modest increase to property taxes in order to reflect the rising cost of service delivery. Which of the following options would you most prefer in your town? (N=601)*



Perceptions of the Town | **Paying for Services**

The proportion of residents who feel that Town programs should be paid for through user fees has stayed relatively consistent since 2014.

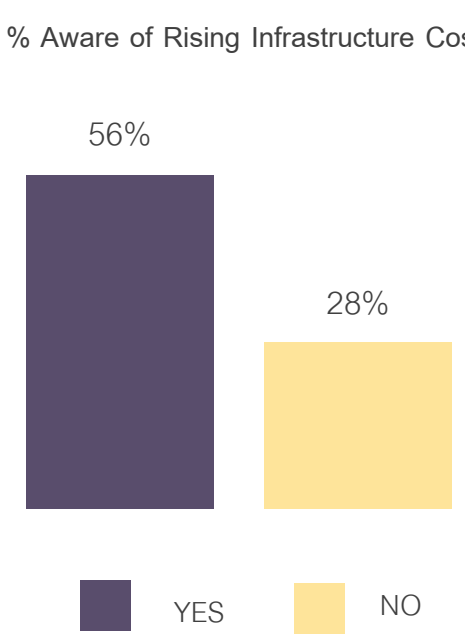
9. Which of the following is closer to your own opinion? (N=601)

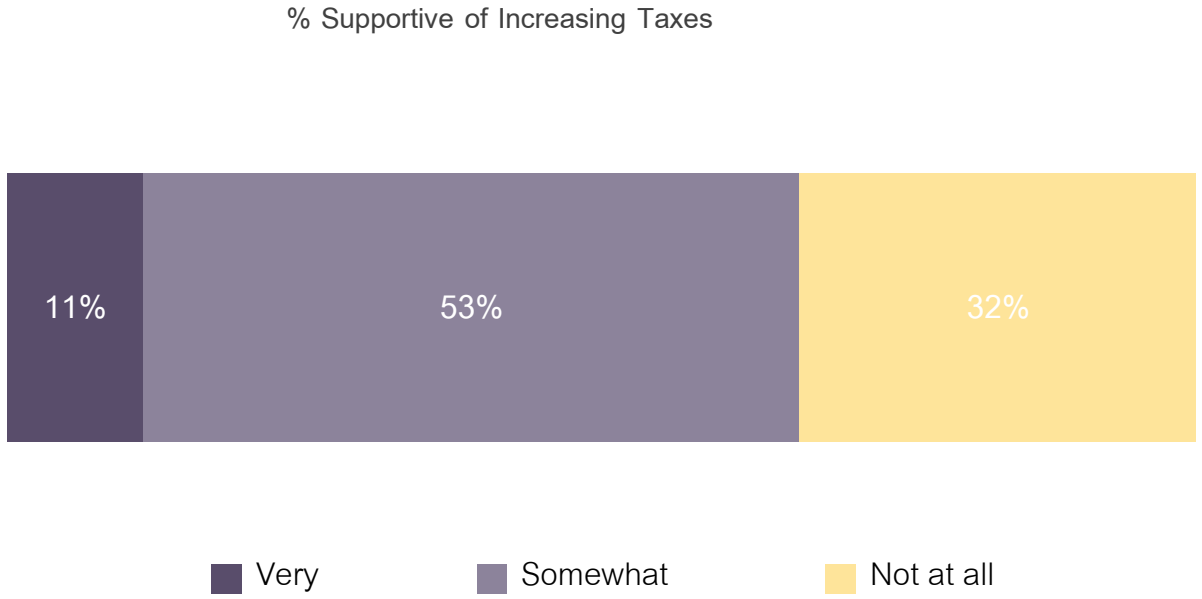


Perceptions of the Town | **Paying for Services**

Just over half of residents are aware of the rising infrastructure costs in the Town, and about three in five are either somewhat or very supportive of these rises in property taxes.

Q10a/b. Property taxes are facing upward pressure from rising infrastructure costs., due in part to provincially legislated changes to development charges , stormwater management planning, and other expanding infrastructure to support our community, such as roads, sewer, parks, trails, maintenance. Were you aware of these rising costs? …Please state whether you are [xx] supportive of increasing property taxes to invest in the Town's infrastructure, such as roads, buildings and playgrounds. (N=601)



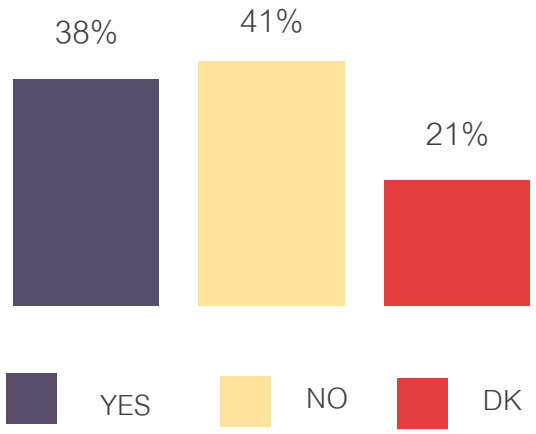


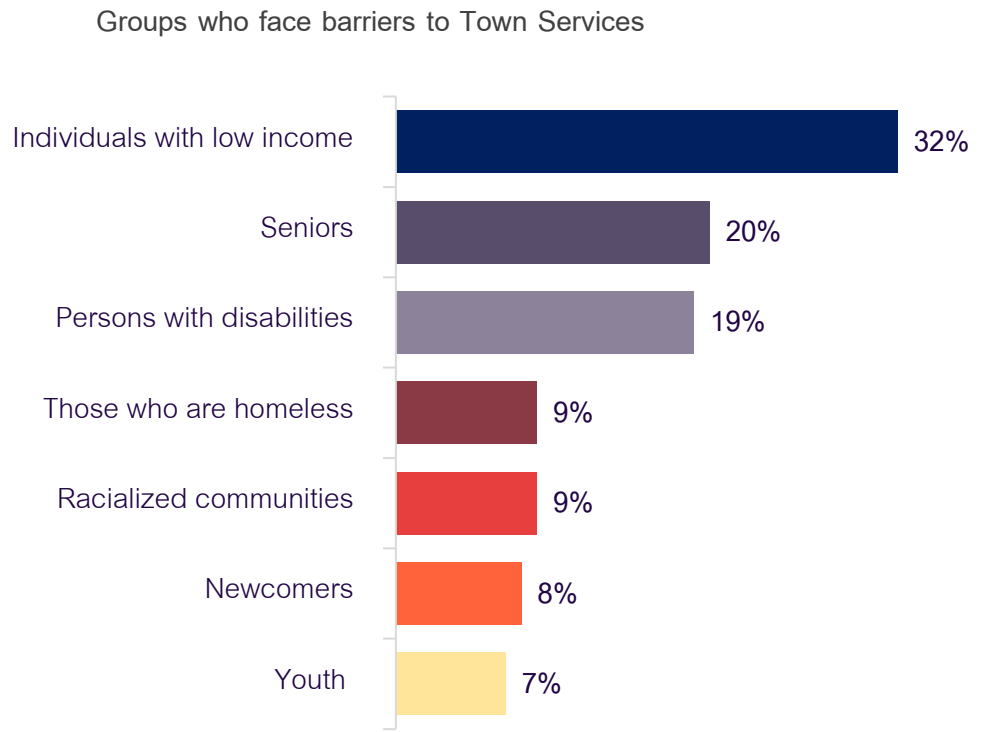
BARRIERS TO SERVICE

Barriers to Service | **Perceptions of Barriers**

Two in five residents feel there are residents who face barriers to programs and services offered by the Town, identifying residents with low-income, Seniors, and those with disabilities as those most likely to face these barriers.

Q23. Do you feel that there are groups who face barriers to the various programs and services offered by the Town? (N=601)/Which groups do you feel face barriers? (N=227)

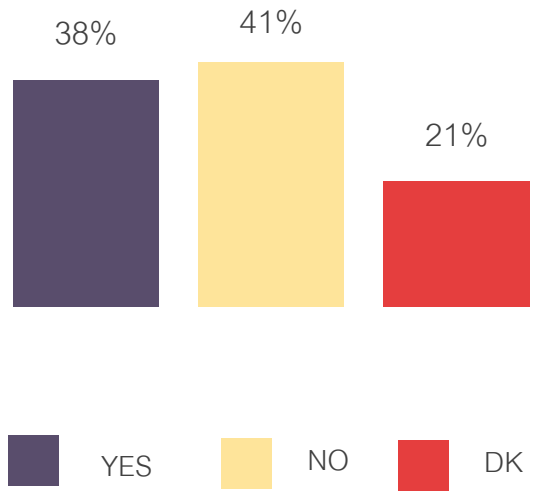


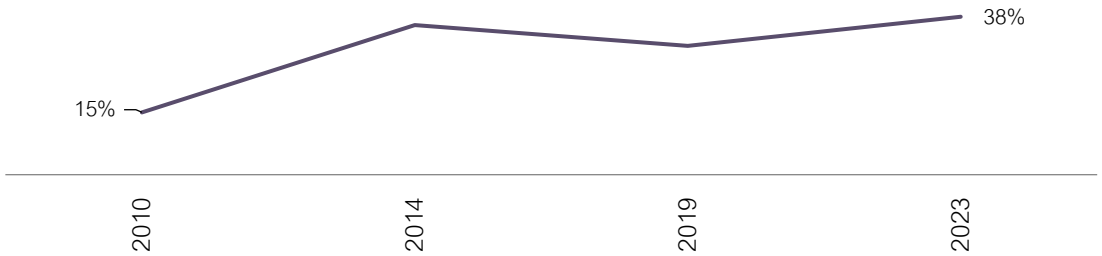


Barriers to Service | **Perceptions of Barriers (Trend)**

The number of residents who feel there are groups who face barriers to programs and services has steadily risen since 2010.

Q23. Do you feel that there are groups who face barriers to the various programs and services offered by the Town? (N=601)/Which groups do you feel face barriers? (N=227)

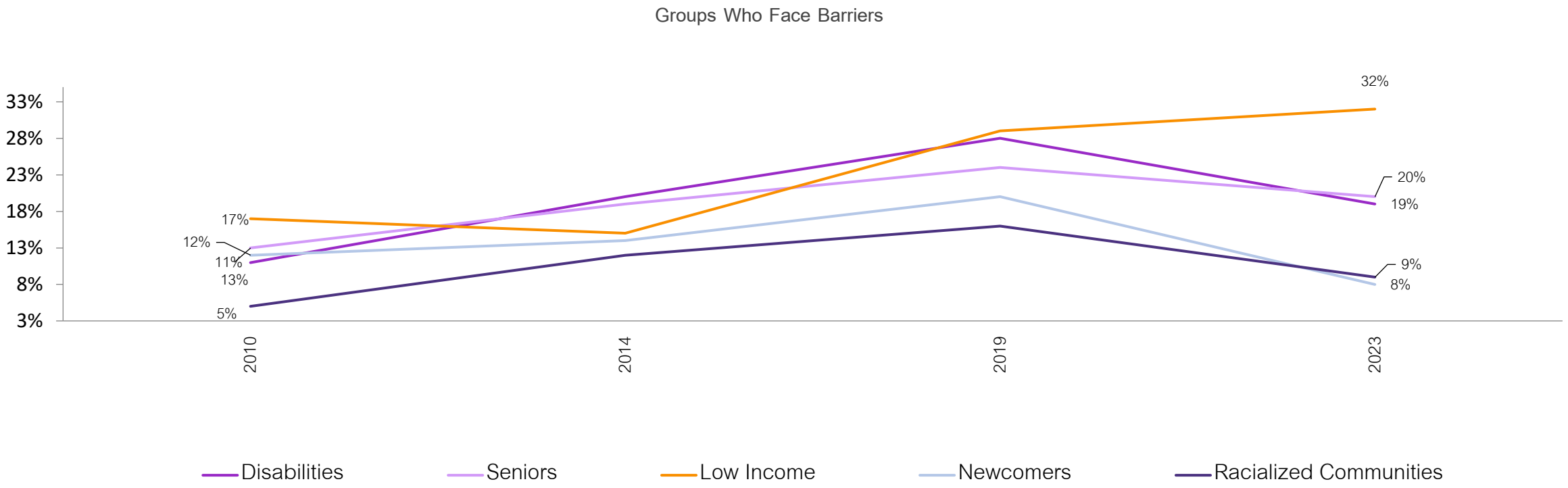




Barriers to Service | **Perceptions of Barriers (Trend)**

Those with low-income continue to be the group names as facing the most barriers to programs offered by the Town. Perceptions of barriers for those with disabilities has gone down since 2019.

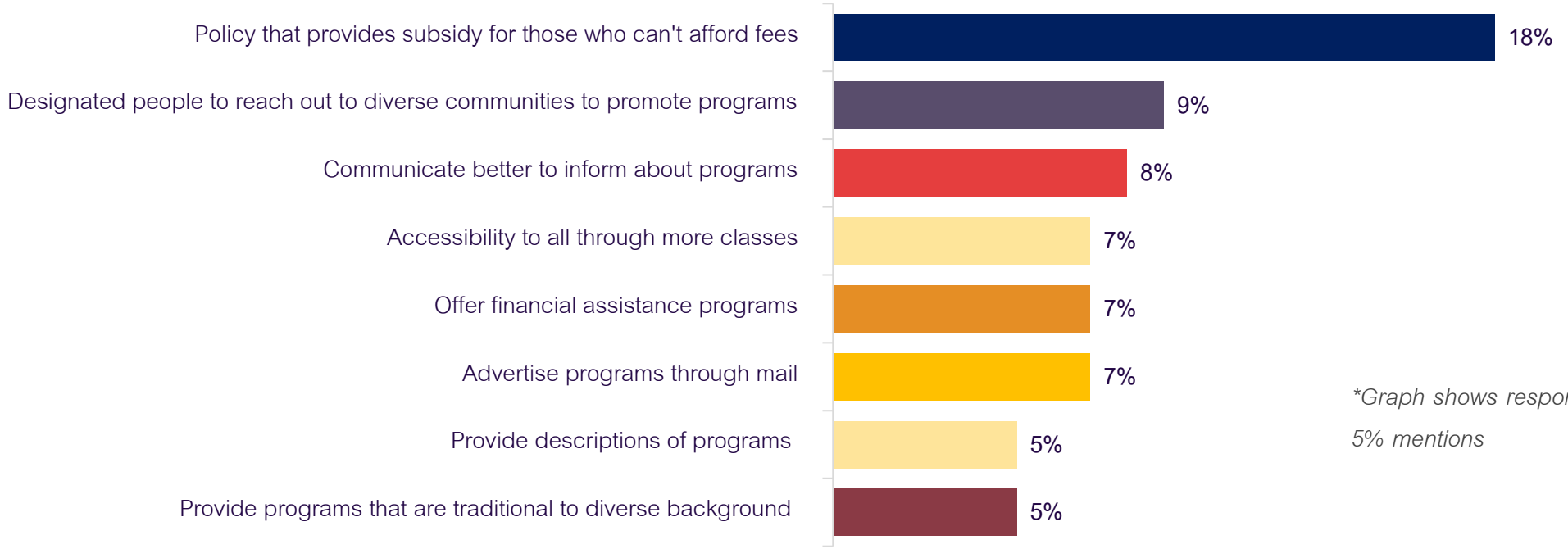
Q23. Do you feel that there are groups who face barriers to the various programs and services offered by the Town? (N=601)/Which groups do you feel face barriers? (N=227)



Barriers to Service | **Approaches for Town to Mitigate Barriers**

About one in five residents believe that the Town can make policies to provide subsidies for those who can't afford fees as away of making Town programs more inclusive.

23C. What approaches can the Town make to make services and programs offered by the Town more inclusive for these groups (N=227)

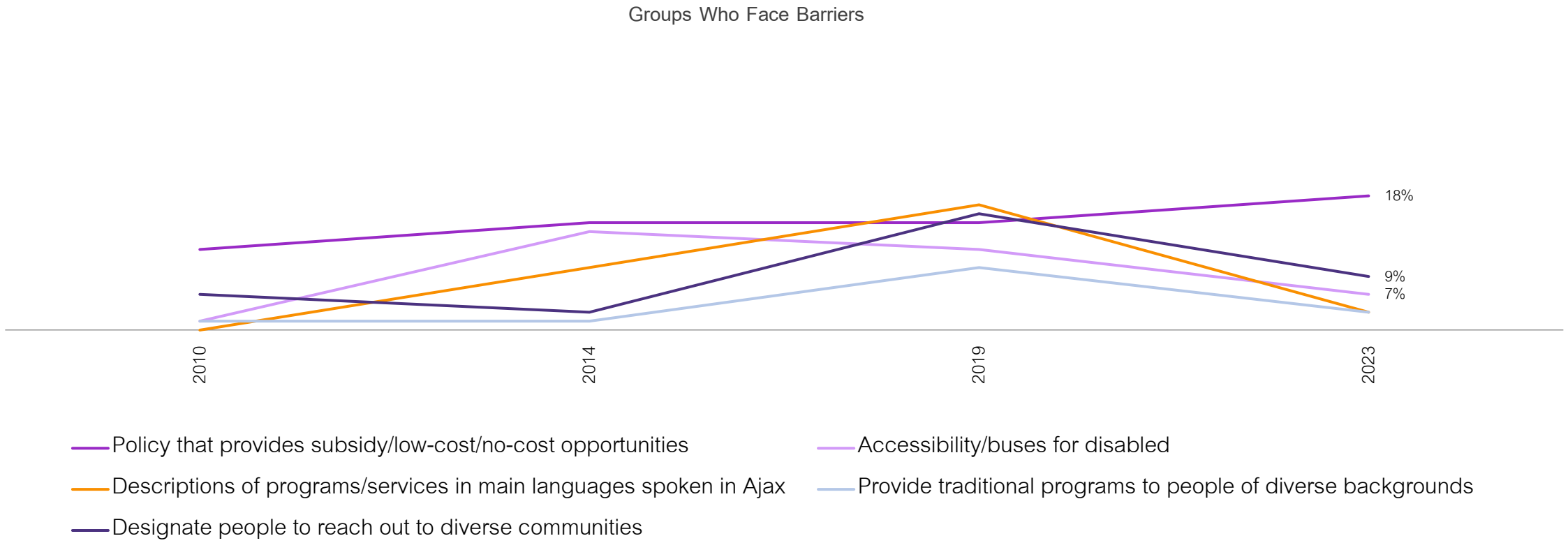


**Graph shows responses with above 5% mentions*

Barriers to Service | **Approaches to Mitigate Barriers (Trend)**

Sentiments towards providing policies that will give subsidies or no-cost opportunities to those who are low income continues to rise since 2019 as an approach for the Town to make services more inclusive.

23C. What approaches can the Town make to make services and programs offered by the Town more inclusive for these groups (N=227)

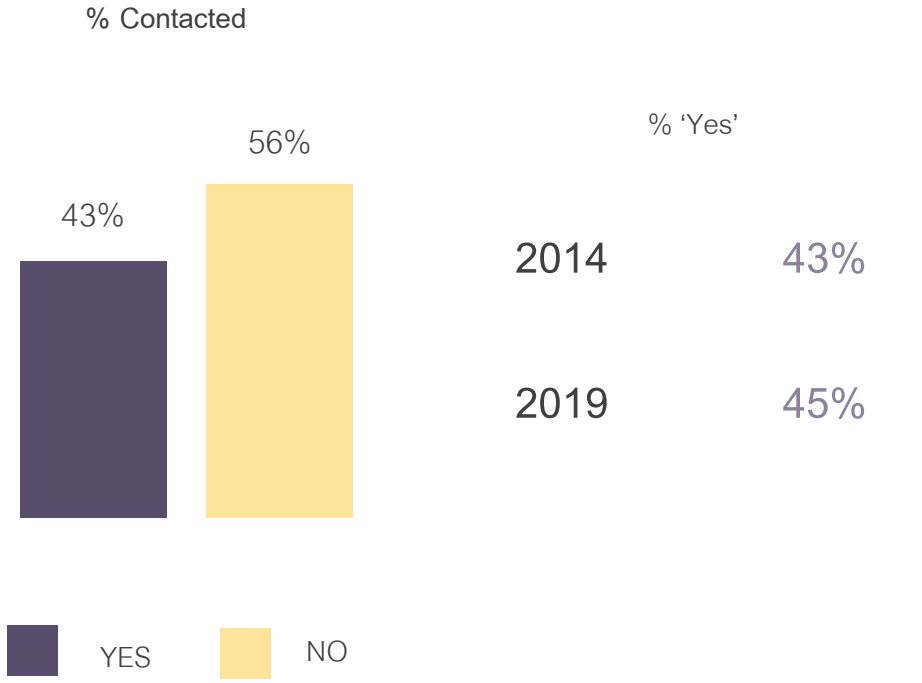


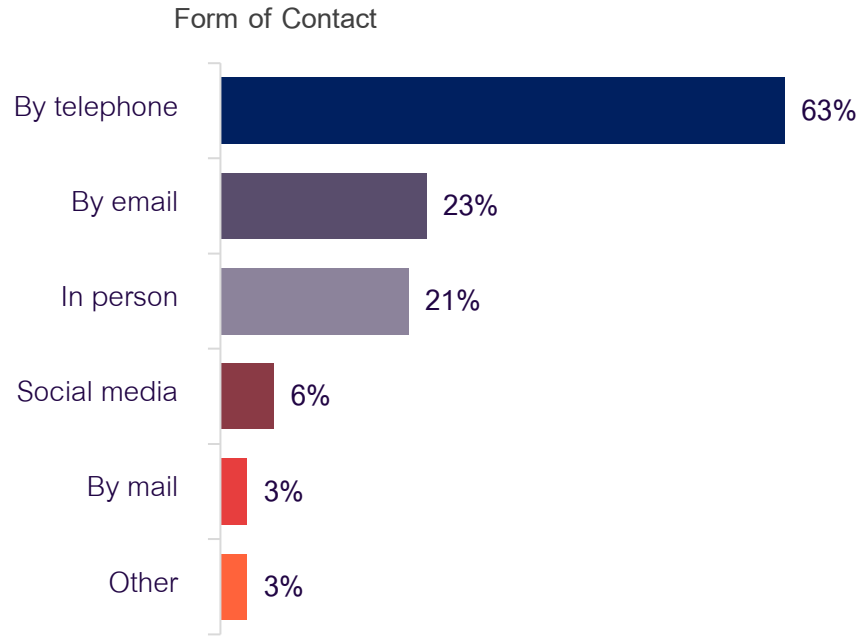
CONTACT WITH TOWN

Contact with Town | **Paying for Services**

More than half of residents have not contacted the Town in the past year (increasing from 2019). For those who do contact the Town, they are most likely to contact the Town via telephone.

Q11A/B. Within the past year have you contacted the Town of Ajax? …Was your most recent contact…(N=600/N=257)

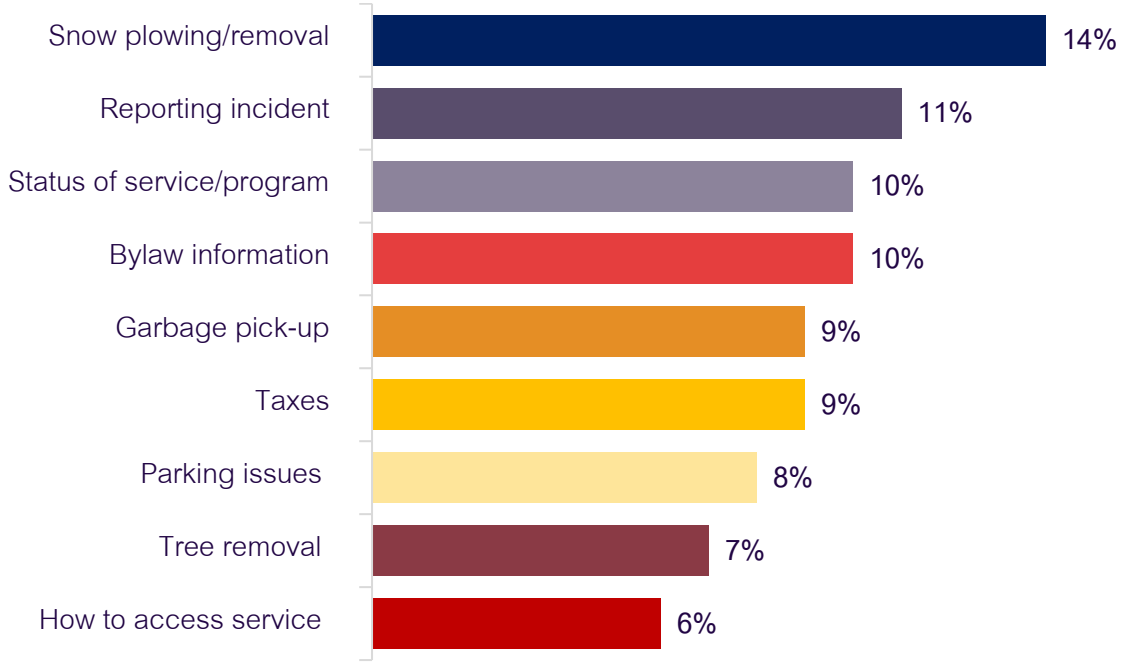




Contact with Town | **Reason for Contacting the Town**

In the last year, residents were most likely to seek the Town for questions regarding snow removal, incident reporting, and the status of a service or program delivery.

11C. What information, if any, were you seeking when you contacted the Town of Ajax? (N=257)

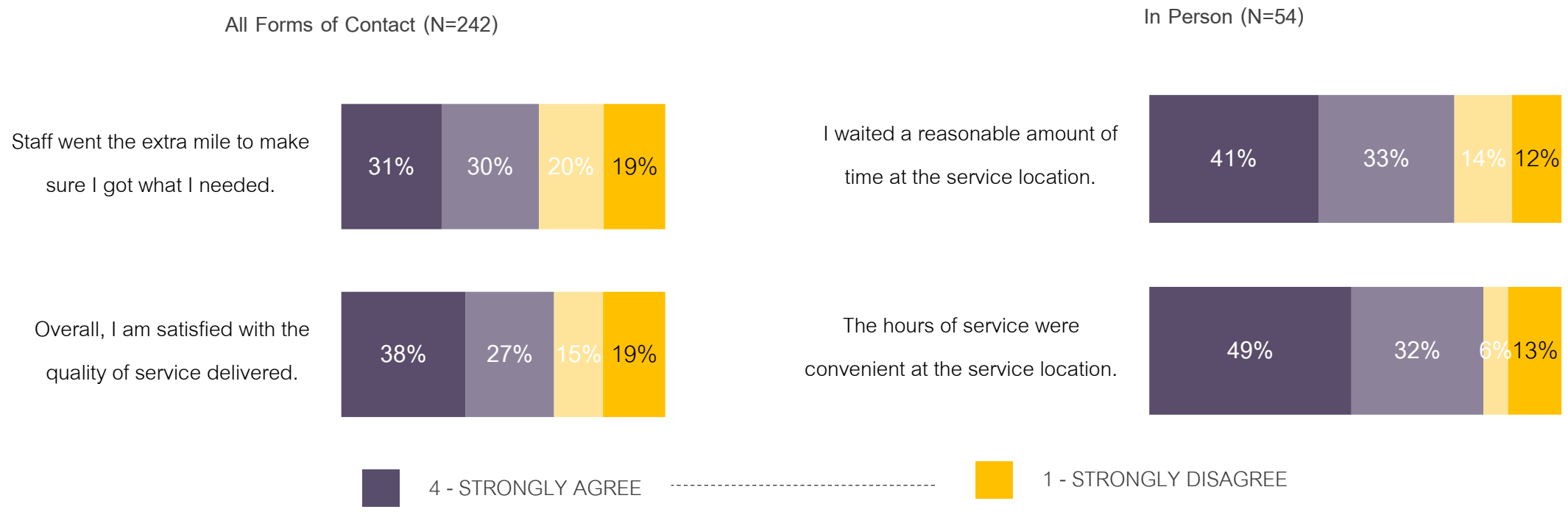


**Graph shows responses with above 5% mentions*

Contact with Town | **Experience with Contact**

Most residents express positive sentiment towards their contact with the Town – specifically regarding hours of service and wait times.

*Q12. Based on recent experience… please indicate level of agreement or disagreement with each of the following statements on a scale of *1 to 4*.*

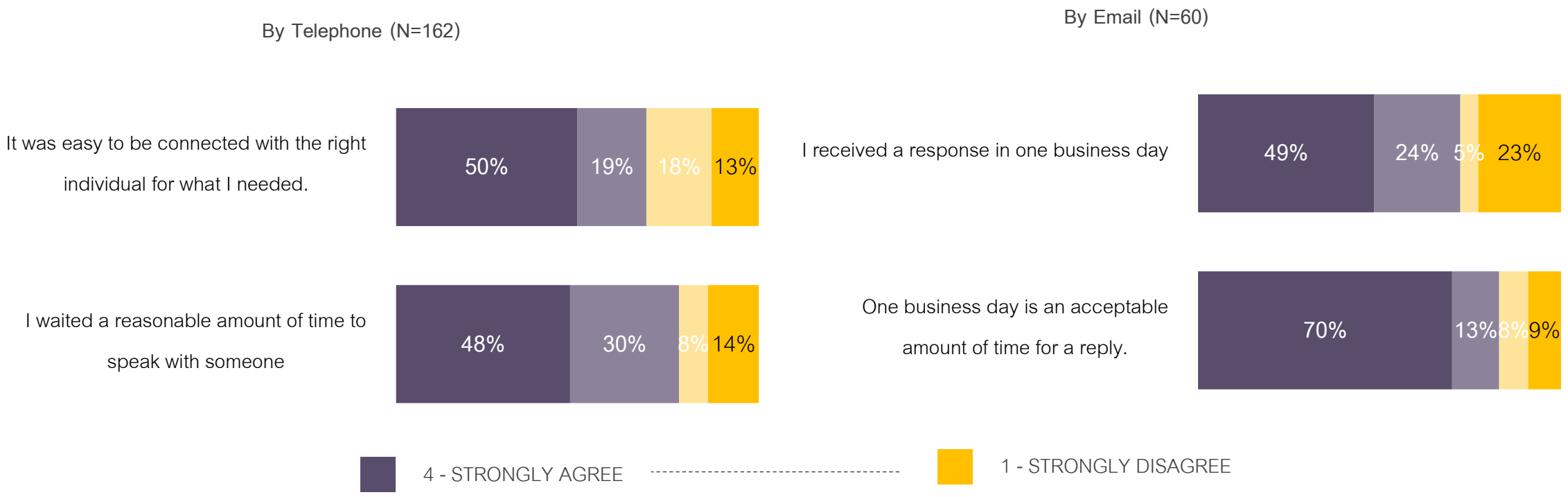


**New scale metric as of 2023 – rating from 1-4, instead of 1-5.*

Contact with Town | **Experience with Contact**

Residents strongly agree that one business day is an acceptable amount of time for reply for an email request, and those who contact the Town by telephone are mostly in agreement that it was easy to get in contact with the right person for their needs.

*Q12. Based on recent experience… please indicate level of agreement or disagreement with each of the following statements on a scale of *1 to 4*.*

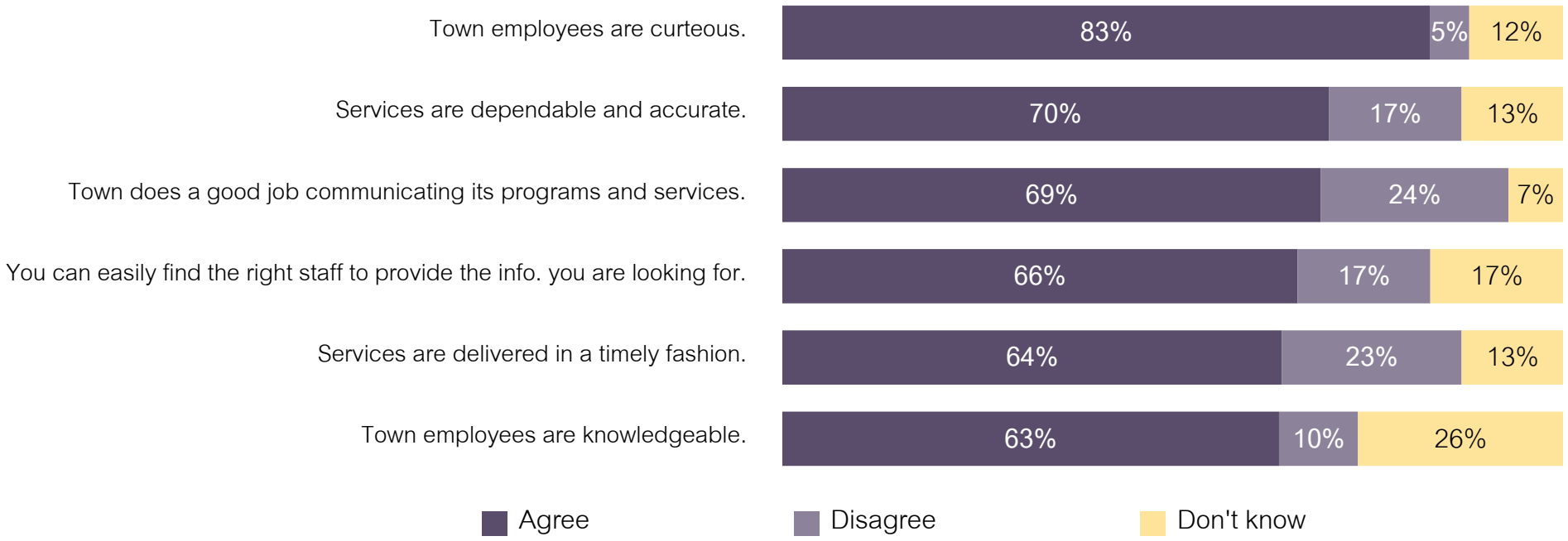


*New scale metric as of 2023 – rating from 1-4, instead of 1-5.

Contact with Town | **Perceptions of Town Staff**

Most residents agree that Town employees are curteous, and that services are dependable and accurate.

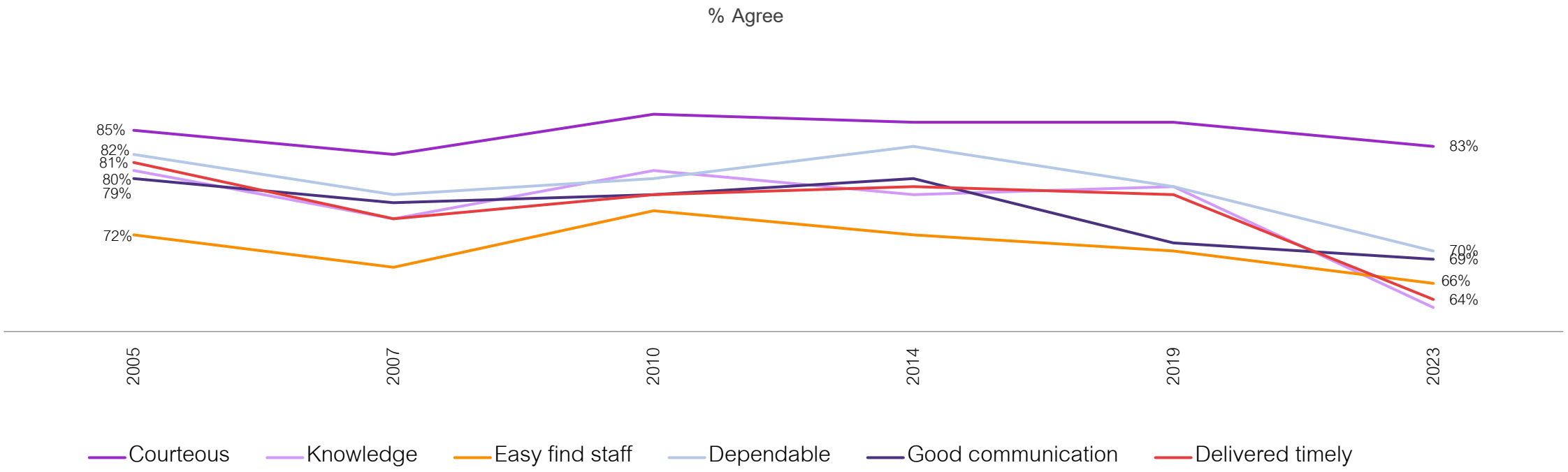
Q13. Based on your recent contact…or what you have read or heard… would you agree or disagree with the following statements?



Contact with Town | **Perceptions of Town Staff (Trend)**

Perceptions of curteousness of staff remains a top quality of communications with Town Staff. Perceptions of services delivered in a timely fashion has decreased since 2019.

Q13. Based on your recent contact…or what you have read or heard… would you agree or disagree with the following statements?

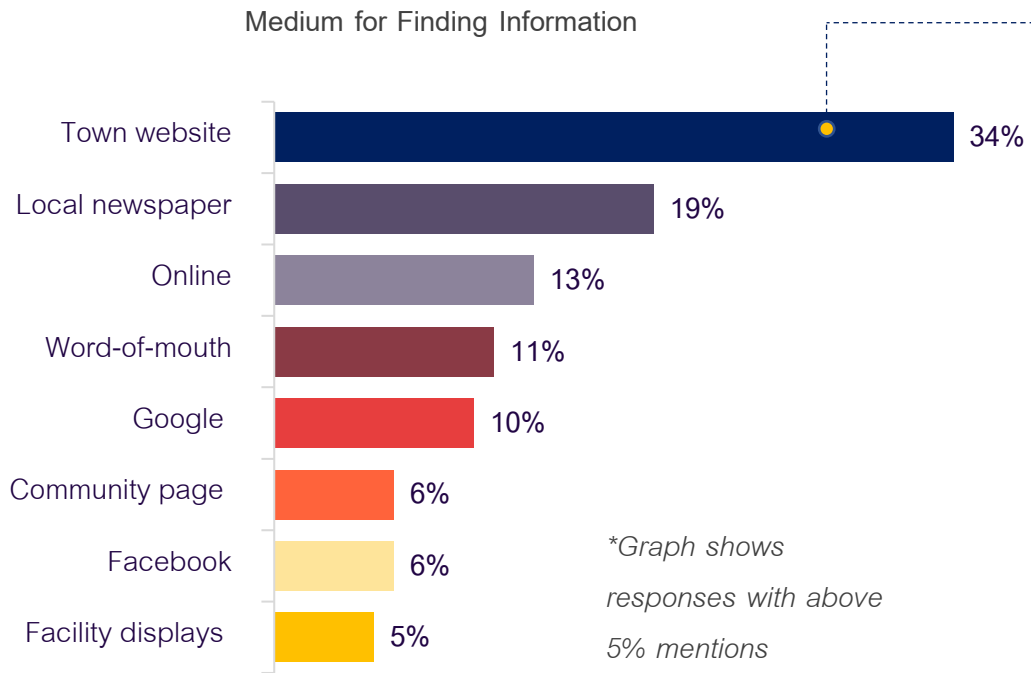


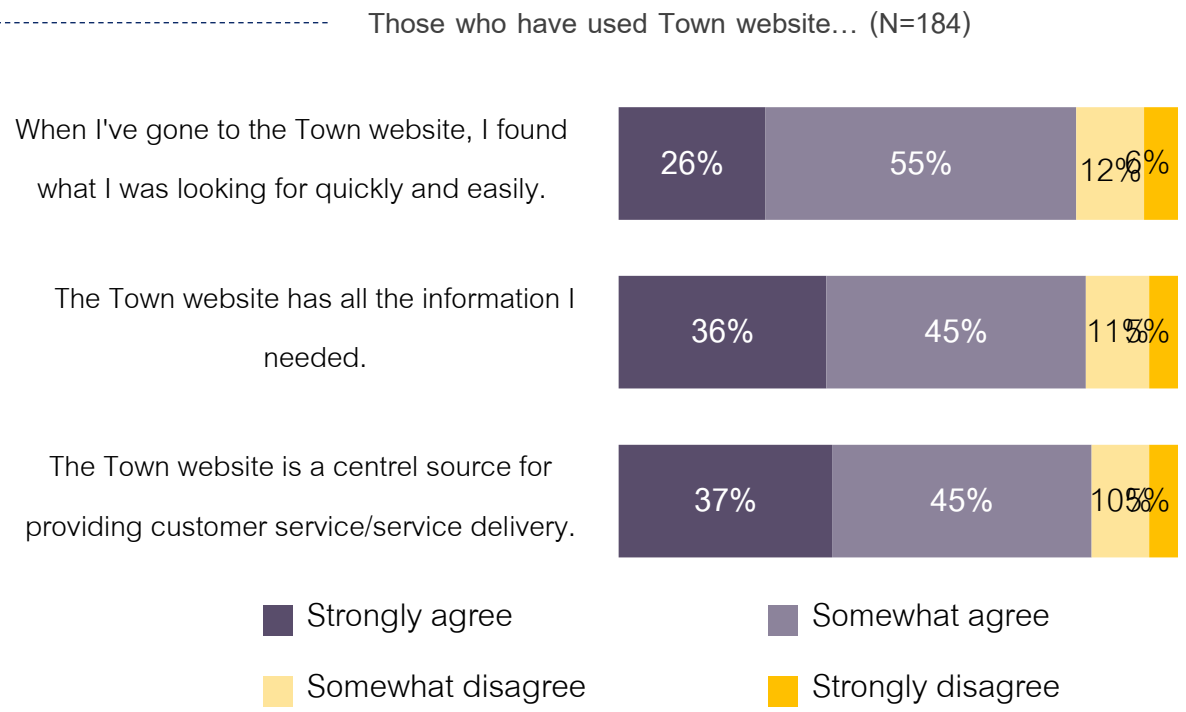
COMMUNICATIONS

Communications | **Form of Finding Information**

The town Website remains a top resource for finding out information about Town Services.

Q16. How do you find out information about Town services, programs, initiatives and events? (N=601)

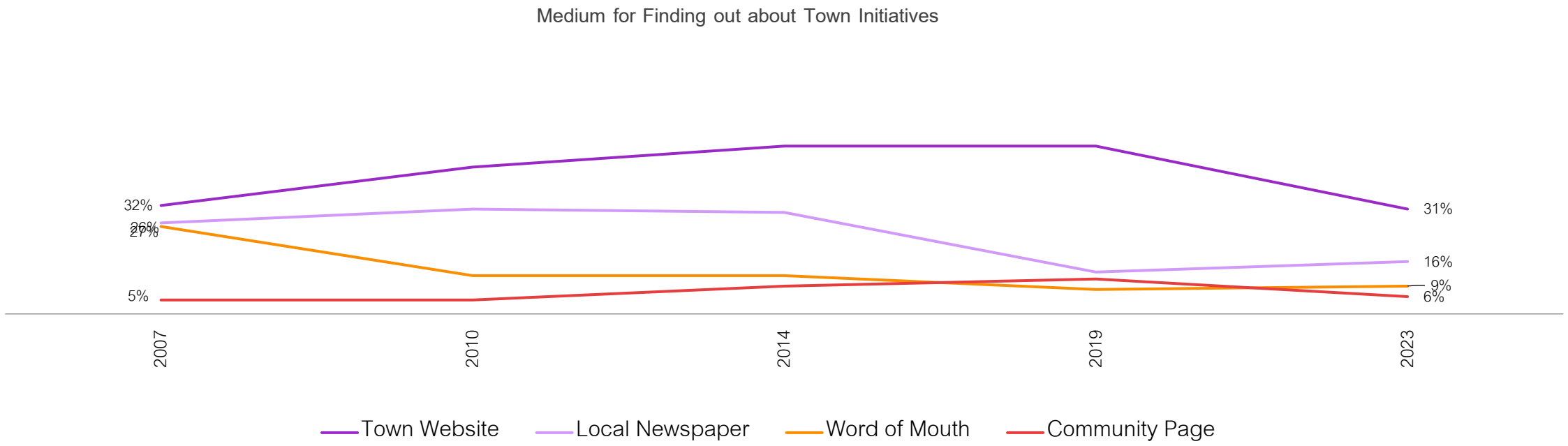




Communications | **Form of Finding Information (Trend)**

The town Website remains a top resource for finding out information about Town Services.

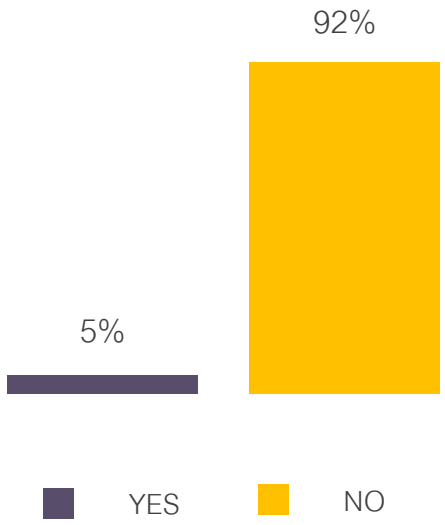
Q16. How do you find out information about Town services, programs, initiatives and events? (N=601)

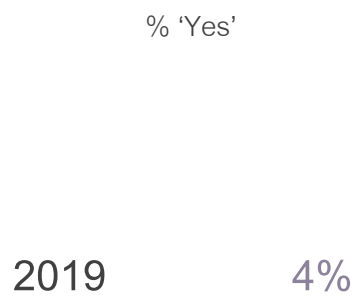


Communications | **Use of In My Opinion Hub**

Only 5% of residents have gone to the Town's public engagement platform, In My Opinion Hub. This number has risen 1% in four years.

Q18. Have you gone to the Town's public engagement platform – In My Opinion Hub? (N=601)

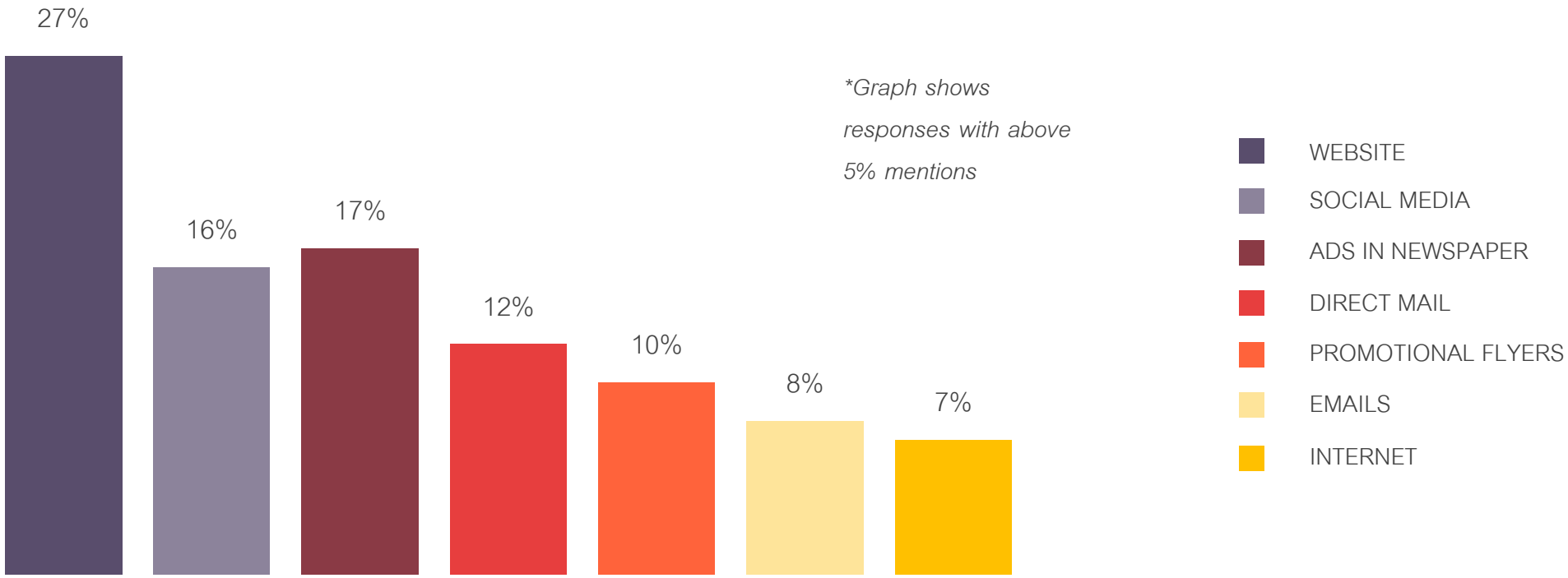




Communications | **Effective Communication Preference**

Town residents say that the most effective way of communicating about programs and services is via the Town Website. This is followed by Ads in the paper, and social media.

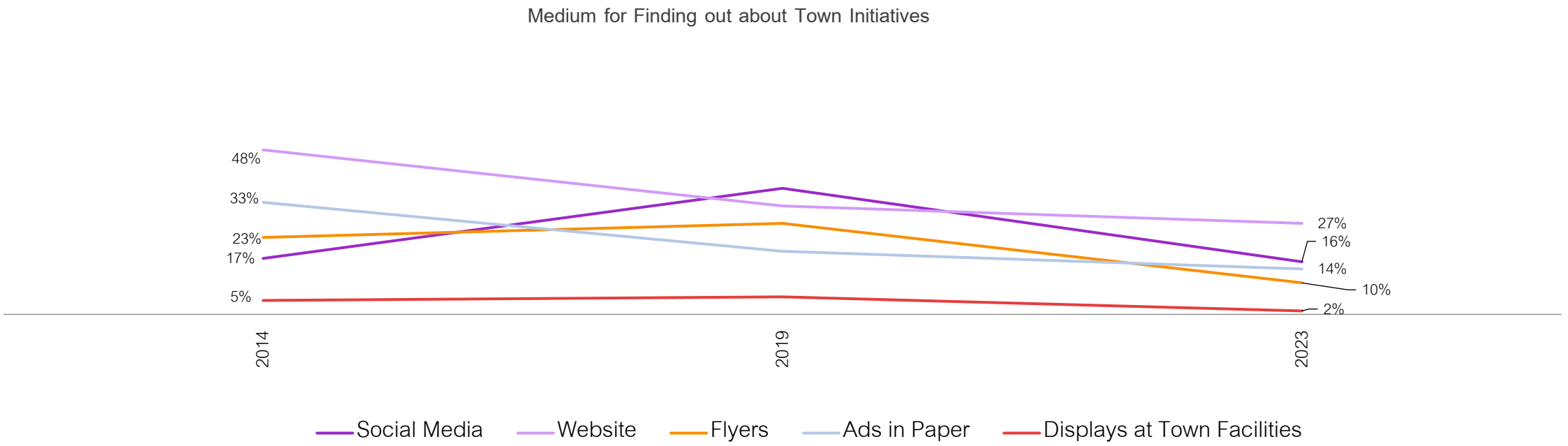
Q19. What would you say is the most effective way of communicating about our programs and services? (N=601)



Communications | **Communication Preference (Trend)**

Using social media to find out about Town initiatives has gone down, while using the website has remained a main source since 2014.

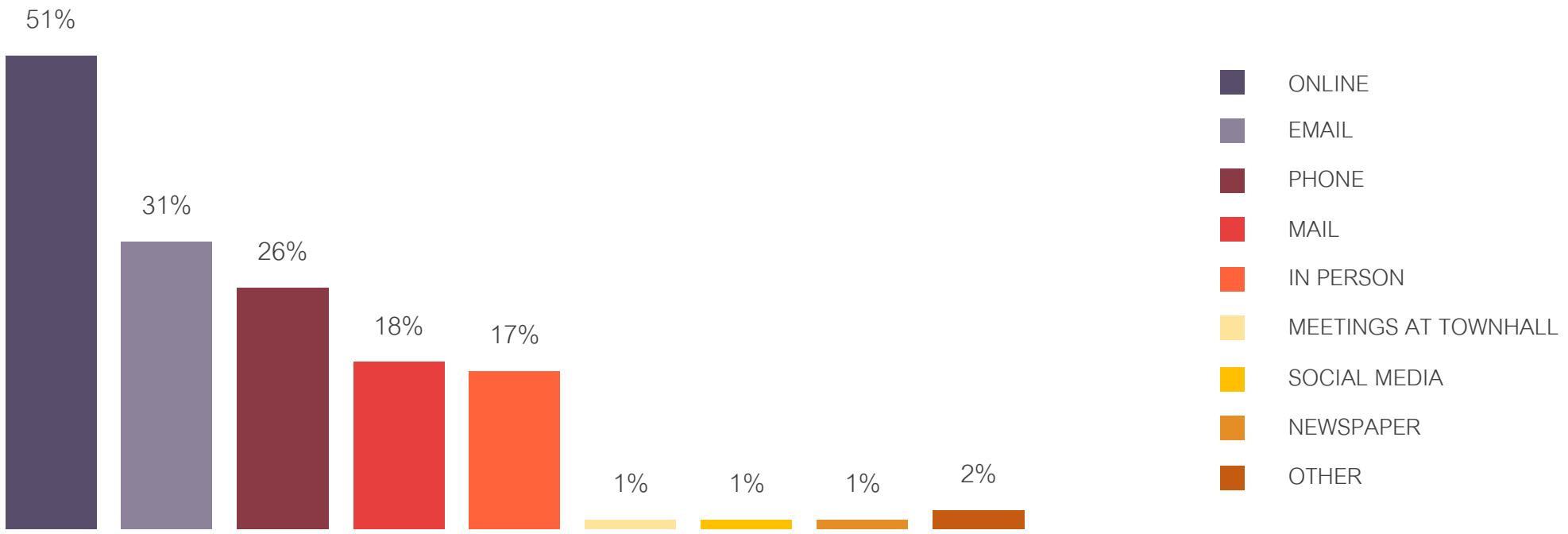
Q16. How do you find out information about Town services, programs, initiatives and events? (N=601)



Communications | **Preferences for Hearing about Town Plans**

Over half of residents prefer to provide input on Town initiatives online. This is followed by contributing via email.

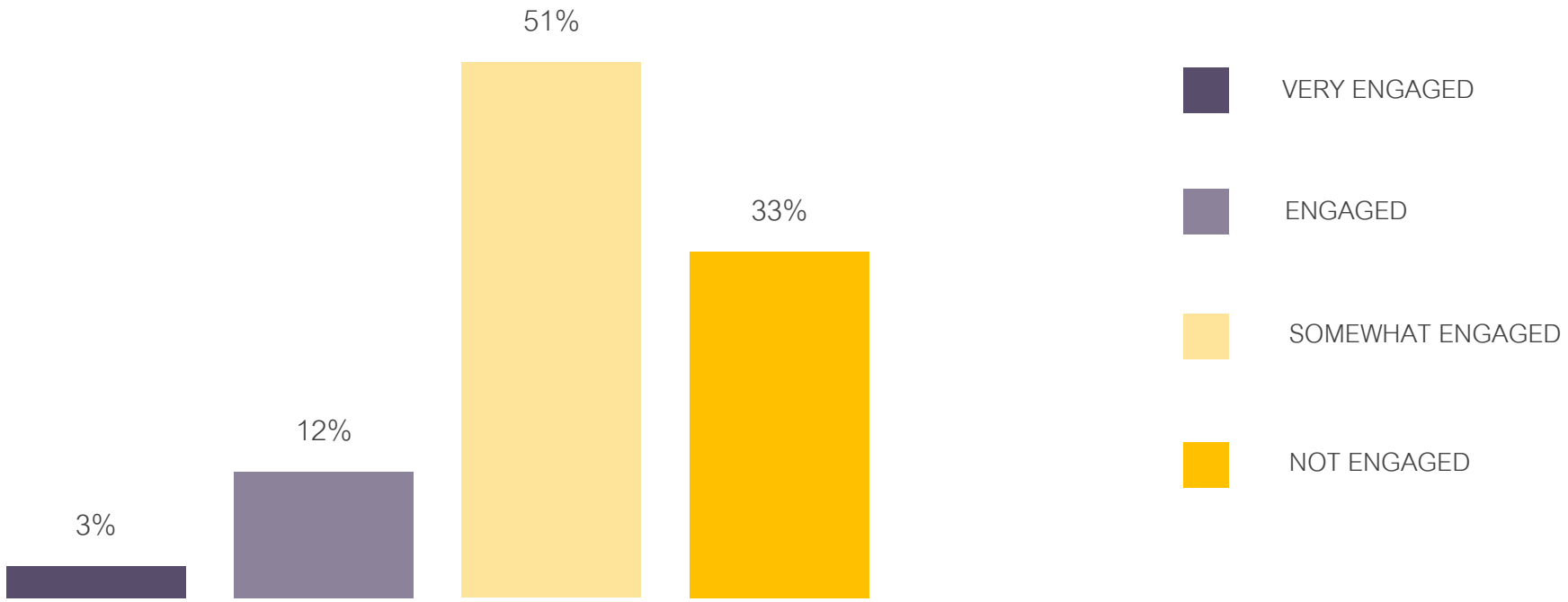
Q20A. What methods do you prefer to provide input on Town initiatives, projects, plans and developments?



Communications | **Level of Engagement**

Over four in five Ajax residents describe themselves as not engaged with the Town.

Q20B. What best describes your level of engagement with the Town? (N=601)

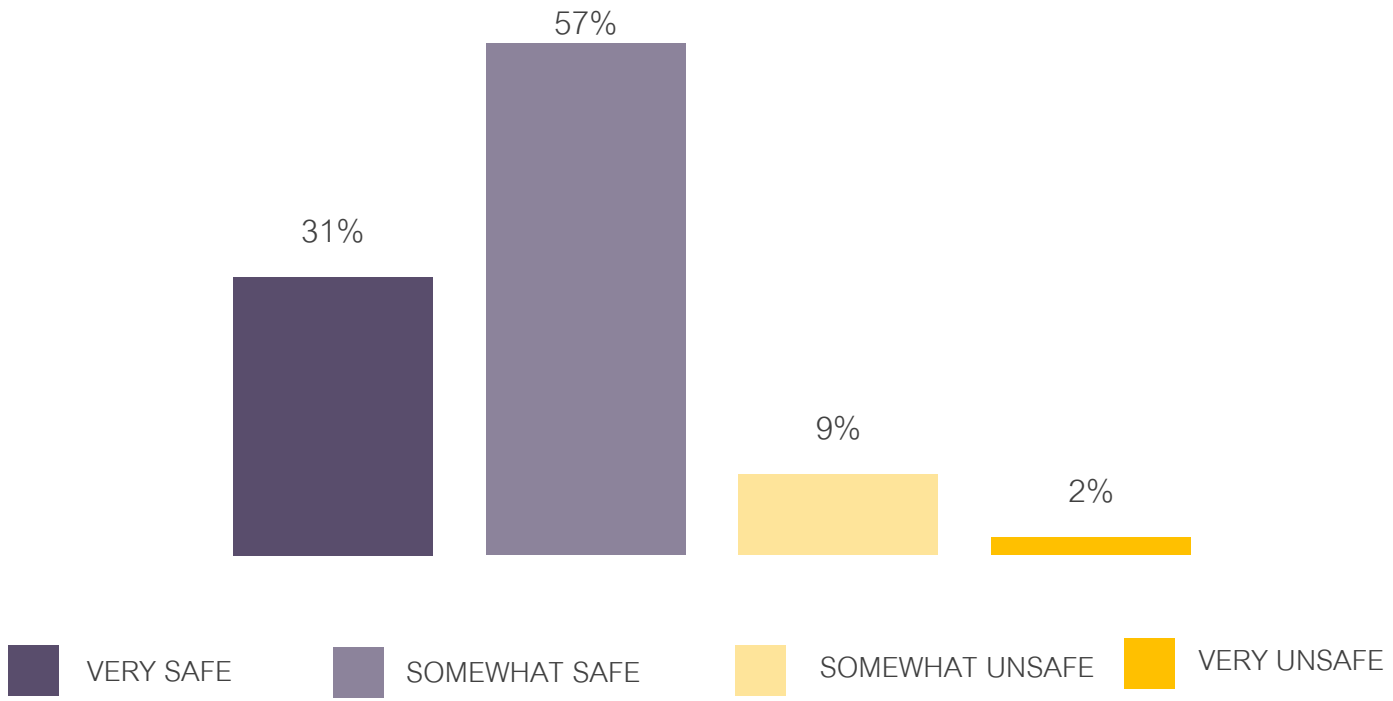


COMMUNITY SAFETY

Community Safety | **Perceptions of Safety in Community**

Most Ajax residents feel that the Town of Ajax is a safe community. Few think the community is unsafe.

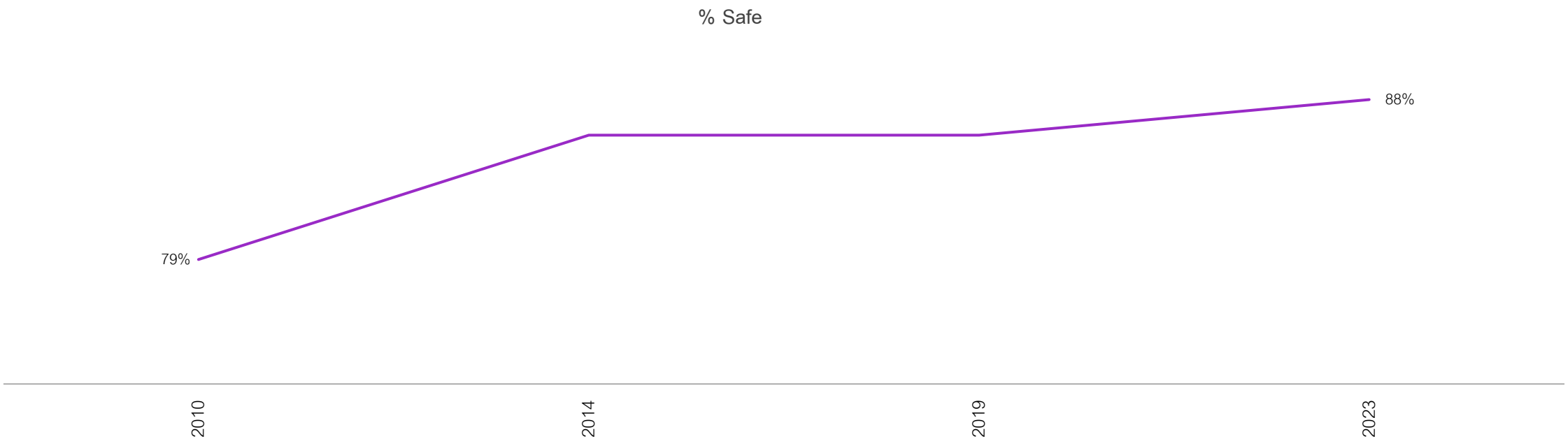
Q21. Please select one of the following statements. I feel The Town of Ajax is… (N=601)



Community Safety | **Perceptions of Safety in Community (Trend)**

Perceptions of safety have risen almost 10% since 2010 as the trend continues on an upward climb.

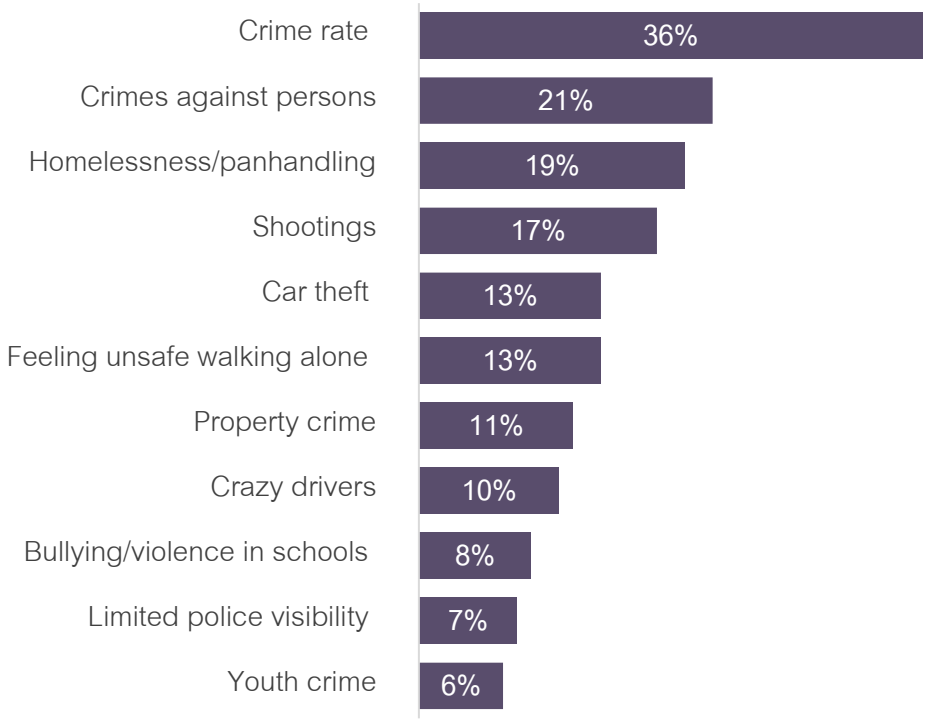
Q21. Please select one of the following statements. I feel The Town of Ajax is… (N=601)



Community Safety | **Top Safety Issues**

Residents believe that the most important safety issues in the Town are crime rates, crimes against persons, homelessness and panhandling, as well as shootings. Car theft also comes as a top mention as compared to prior years.

Q22. What do you believe are the most important safety issues in your community/neighbourhood specifically? (N=69)



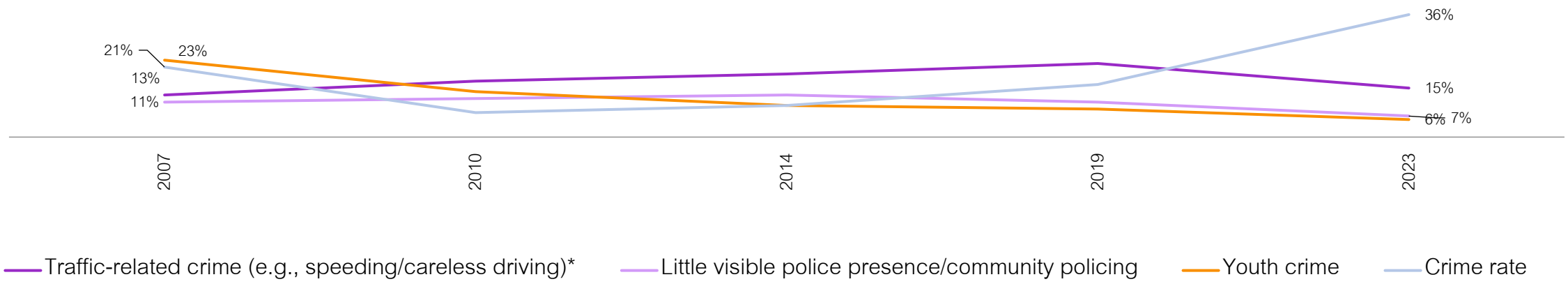
Most Likely to Mention: Unsafe Walking Alone

- Ages 35-54 (32%)
- Post-graduate residents (42%)
- Income >$100k (16%)

Community Safety | **Top Safety Issues**

Most perceptions of safety issues have remained the same since 2007, with crime rates being the only factor that have jumped since 2019.

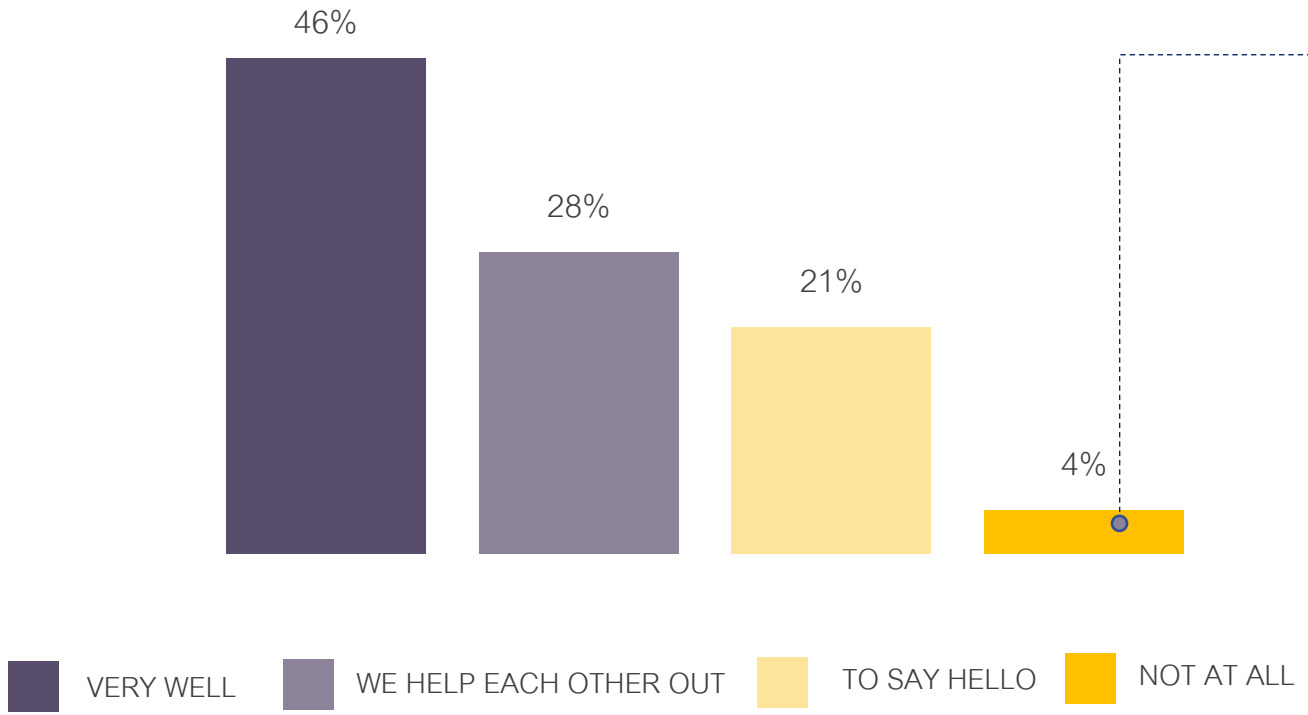
Q22. What do you believe are the most important safety issues in your community/neighbourhood specifically? (N=69)

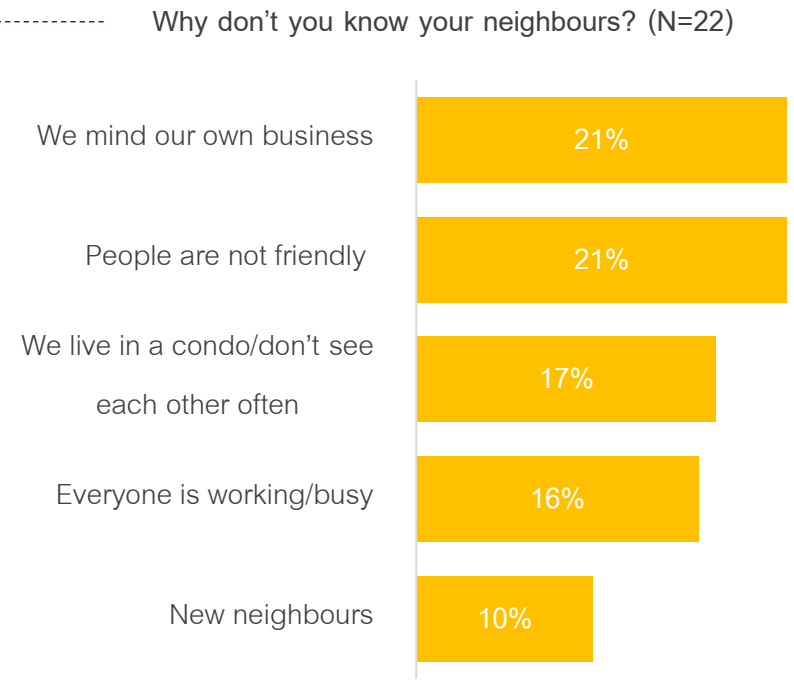


Community Safety | **Familiarity with Neighbours**

Most residents say that they know their neighbours well of very well. For those who do not know their neighbours, reasons include wanting to mind their own business, or feeling that their neighbours are not friendly.

Q24. How well do you know your neighbours? (N=601)



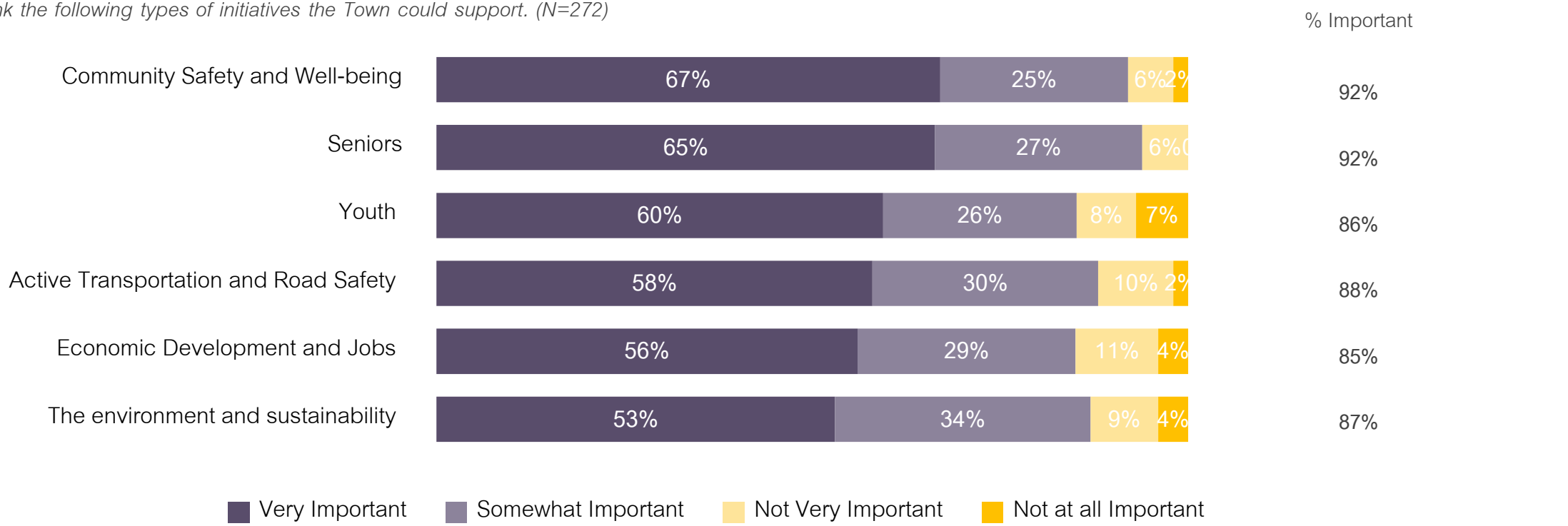


SPECIAL TOPICS

Special Topics | **Ajax Partnership Fund**

Residents allocate the most importance for the Ajax Partnership Fund to support community safety and well-being, seniors, and youth. These factors match with community concerns and importance of services in previous sections of this report.

Q25. The Newly launched Ajax Partnership Fund is an opportunity for organizations and individuals to partner with the Town on initiatives of shared importance. On a scale of 1-4… rank the following types of initiatives the Town could support. (N=272)

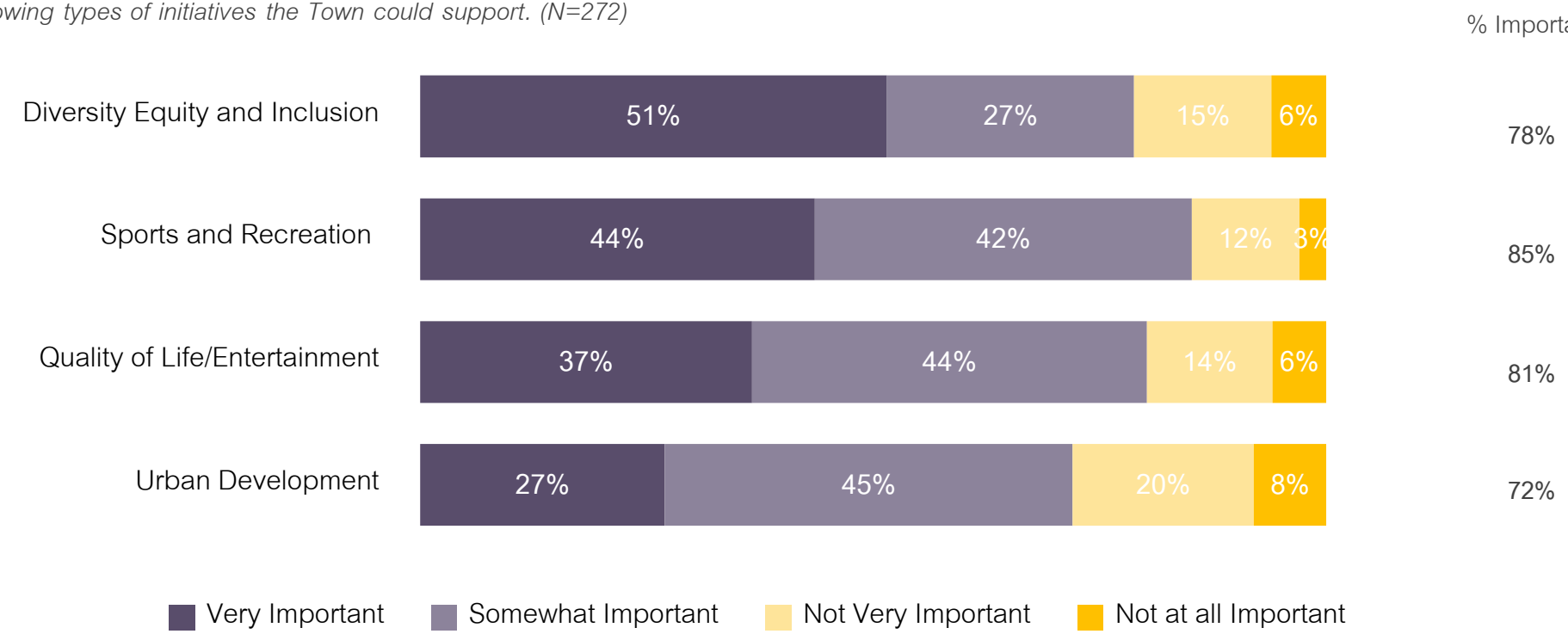


***New scale metric as of 2023 – rating from 1-4, instead of 1-5.*

Special Topics | **Ajax Partnership Fund**

Residents allocate the least importance for the Ajax Partnership Fund to support urban development.

Q25. The Newly launched Ajax Partnership Fund is an opportunity for organizations and individuals to partner with the Town on initiatives of shared importance. On a scale of 1-4… rank the following types of initiatives the Town could support. (N=272)

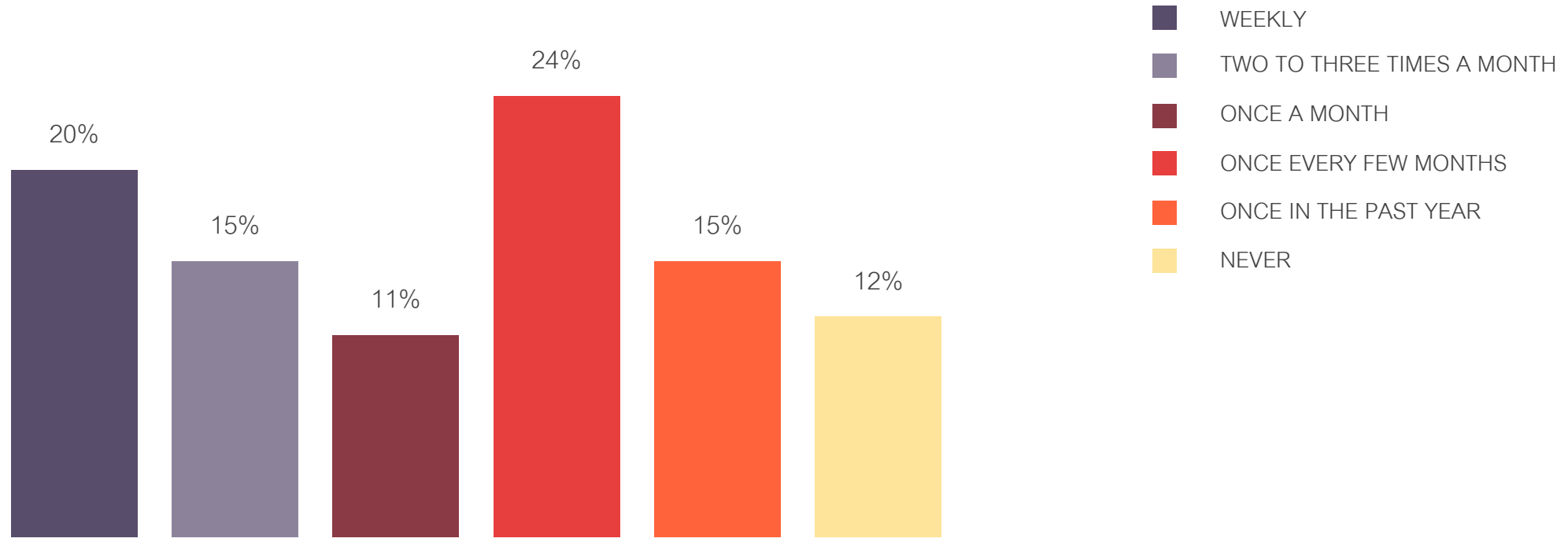


***New scale metric as of 2023 – rating from 1-4, instead of 1-5.*

Special Topics | **Waterfront**

Just under half of Ajax residents have visited the waterfront at least once a month.

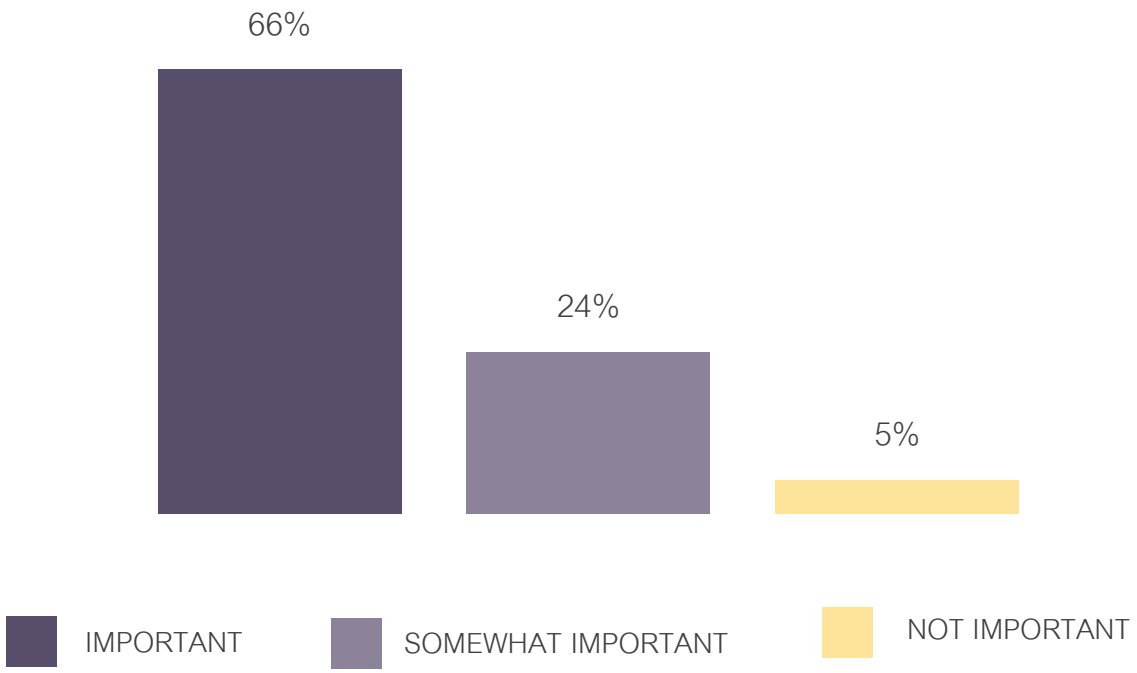
Q26. In the past year, how often have you visited the waterfront in the Town of Ajax? (N=601)



Special Topics | **Algae Issue**

Two thirds of residents think the Town's level of advocacy and investment on the issue of algae along the waterfront is important.

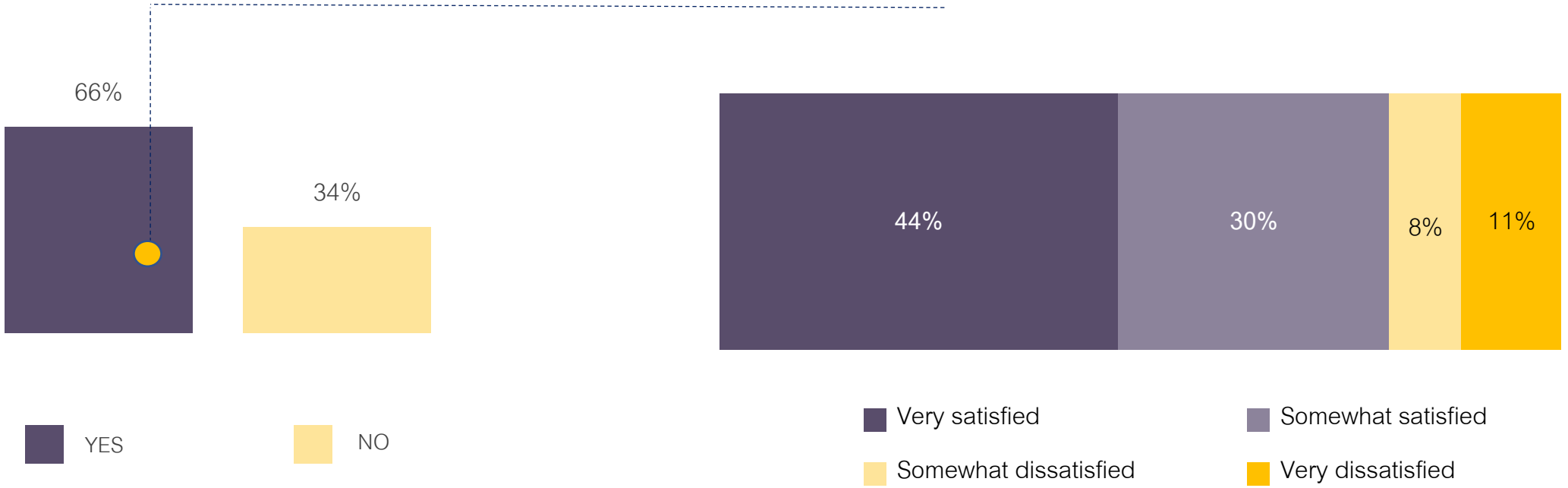
Q27. Do you think the Town's level of advocacy and investment on the issue of algae along the Ajax Waterfront is… (N=601)



Special Topics | **Parking**

Two thirds of residents are aware of Ajax's free parking in designated areas – and a majority are satisfied with this offer.

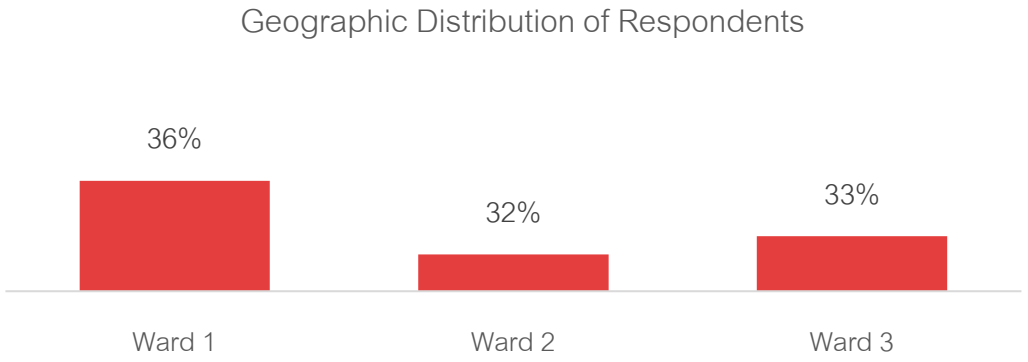
Q28/29. Before today, were you aware that Ajax residents can park for free at designated areas at the waterfront by registering their license plates online? (N=601)..How satisfied are you? (N=397)

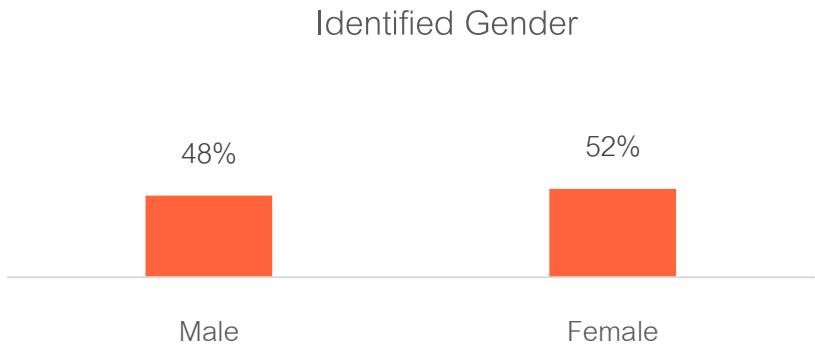


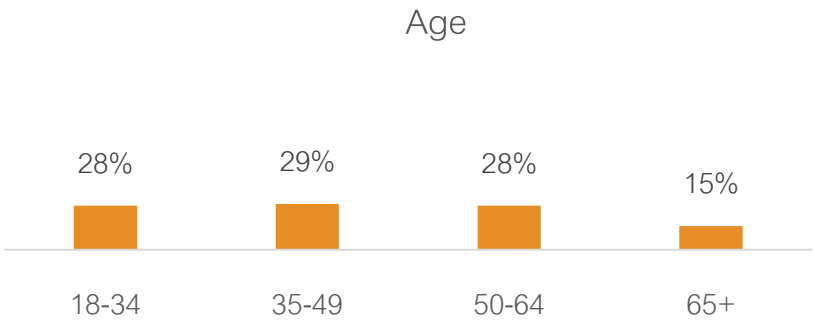
DEMOGRAPHICS

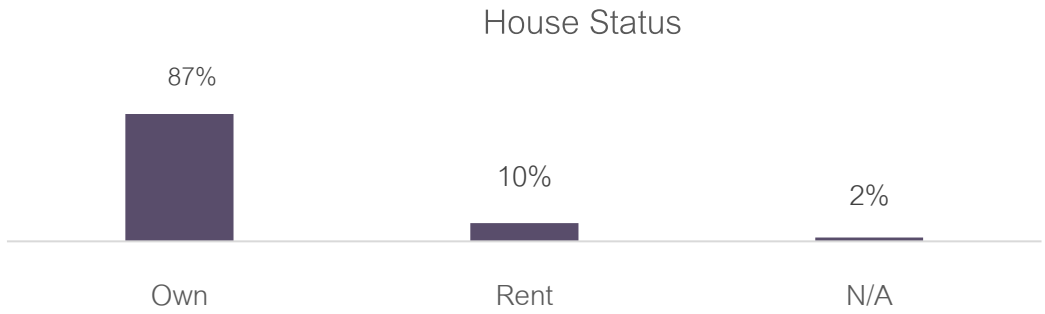
Demographics | **Survey Respondents**

Demographics of survey participants are below:



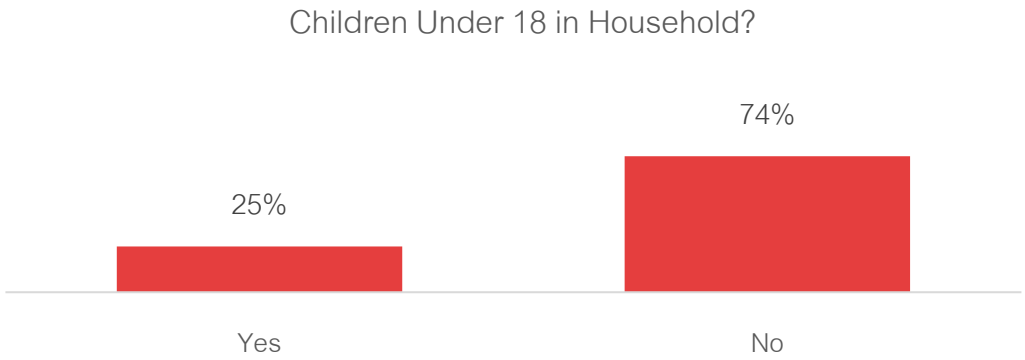


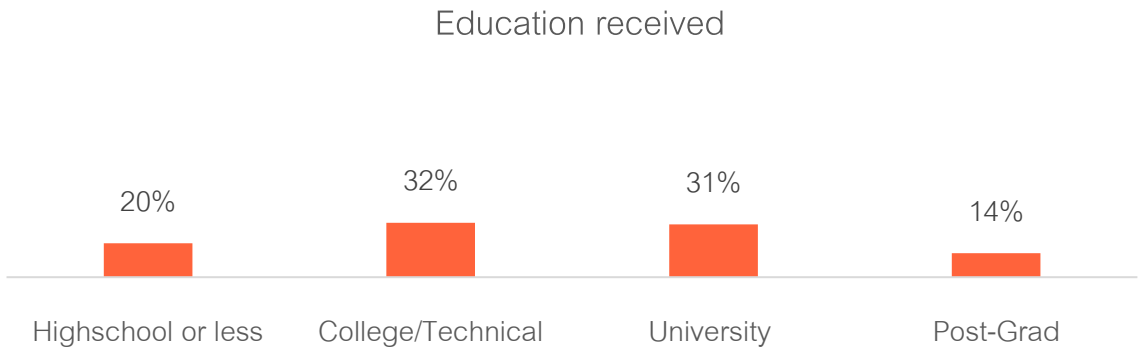


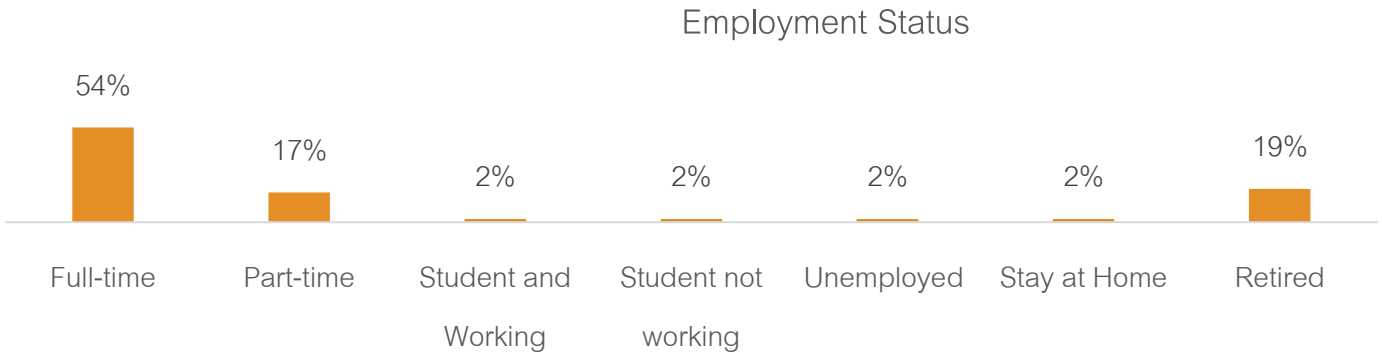


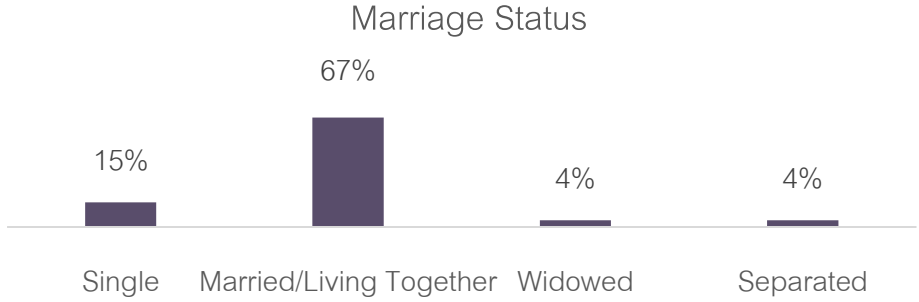
Demographics | **Survey Respondents**

Demographics of survey participants are below:



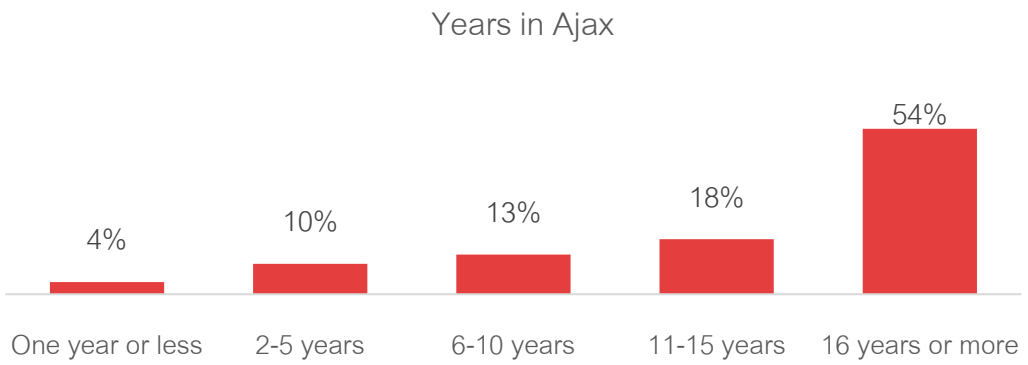


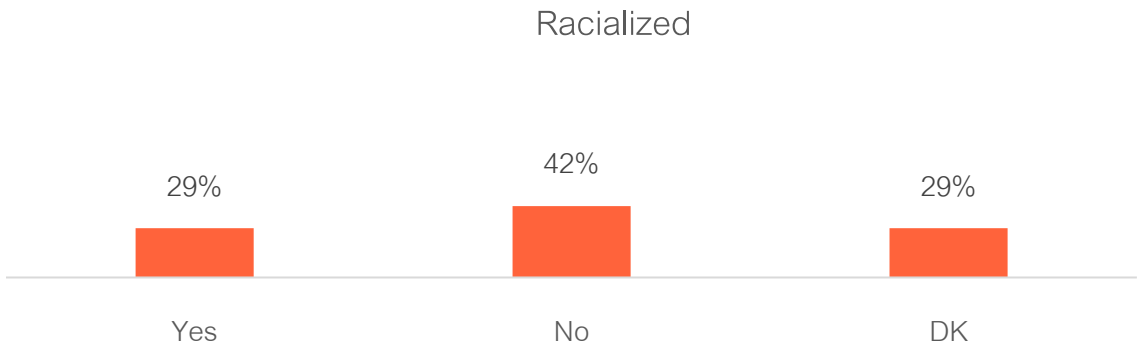


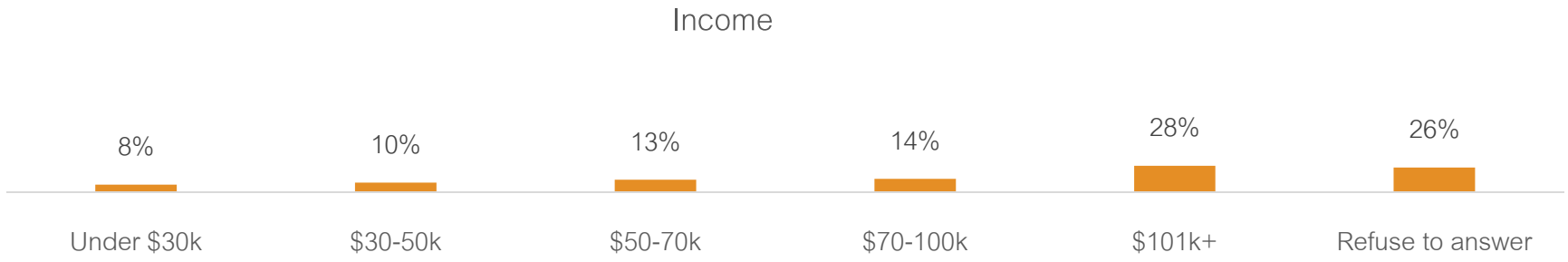


Demographics | **Survey Respondents**

Demographics of survey participants are below:







CONTACT US



Victoria Sicilia
Director
Consultation and Engagement, Environics Research
Victoria.sicilia@environics.ca

Town of Ajax Report

Report To:	Council
Prepared By:	Dianne Valentim, CPA, Director of Finance/ Treasurer
Report #:	FIN-2023-12
Subject:	**Banking Signing Officers**
Ward(s):	All
Date of Meeting:	May 15, 2023
Reference:	

Recommendation:

That the bank signing officers for the Town of Ajax be updated to include title only as follows:

Elected Officers
Mayor
3 Regional Councillors

Appointed Officials
Director of Finance/Treasurer
Manager of Budgets & Accounting Services
Manager of Taxation
Manager of Procurement

Background:

The bank signing officers are typically updated after each municipal election (if required) and when an appointed signing officer has left the Town's employ. The signing officers for the Town have been the same positions for decades, with different individuals holding those positions. There was no change to the composition of the elected officials with banking signing authority in the last election.

Discussion:

All cheques, bank drafts and banking agreements require the signature of one elected official and one appointed official, while all day to day and other administrative banking transactions are authorized by appointed officials and/or designated staff.

Historically, the report to Council had identified individuals and titles as bank signing officers. However, there has been significant turnover in the appointed officials in the last term, and as a result a review of other municipality signing officers was completed. It has been noted that not all municipalities name individuals in their by-laws or Council appointments, but rather only name

positions. In naming positions, this will eliminate the need to bring a report back to Council each time an appointed official or member of Council changes.

The bank requires the individual name, title and sample signature on a signature card to be on file and up to date. This has been achieved with the changes in appointed individuals over the last term, however, a formal report to Council has not been completed since 2018.

Finance will continue to manage signature cards as required by the Town's financial institution with any changes to individuals in positions to ensure that banking activities continue to be administered without delay.

The changes recommended in this report will ensure administrative requirements continue to be met.

Financial Implications:

There are no financial implications associated with this report.

Communication Issues:

N/A

Relationship to the Strategic Plan:

Modernizing our Community - Item 5 – Demonstrate sound financial Management

Conclusion:

It is recommended that the update to the banking signing officers be approved.

Attachments:

n/a

Prepared and submitted by:

Dianne Valentim, CPA, Director of Finance / Treasurer

Approved by:

Shane Baker - Chief Administrative Officer

The Corporation of the Town of Ajax
May 15, 2023

Motion

Flag Raising Requests

Moved by: **Regional Councillor Lee**
Seconded by: **Councillor Tyler Morin**

WHEREAS the Town provides opportunity for flag raisings to acknowledge recognition of national and independence days, art, community and cultural events and celebrations, charitable fundraising/public awareness campaigns, civic events, and other celebrations and commemorations recognized by the Ontario Provincial Legislature;

AND WHEREAS a formal operating procedure (LIS-WI-026) is in place to recognize the steps to approve or deny flag raising requests, and hold formal ceremonies as requested;

AND WHEREAS flag raisings are considered as Town-run events and the contents of the associated programming should align with the beliefs and values of the Council and the Town;

THEREFORE BE IT RESOLVED THAT:

The Office of the CAO, in consultation with Legislative and Information Services, update the Town's operating procedure for Flag Raising Requests to:

i. differentiate the criteria for raising flags at Ajax Town Hall from Pat Bayly Square;
ii. establish guidelines for flag raising ceremonies and photos opportunities, and
iii. ensure the appropriate oversight of flag raising programming by the Diversity and Inclusion Coordinator

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 21-2023

A By-law to regulate temporary signs and other advertising devices in and for the Corporation of the Town of Ajax

WHEREAS pursuant to the Municipal Act, 2001, S.O. 2001, c. 25, as amended, the Council of a local municipality may pass a By-law to regulate or prohibit signs and other advertising devices;

WHEREAS pursuant to the Municipal Act 2001, S.O. 2001, c. 25, as amended, a municipality may prohibit and regulate with respect to public nuisances, including matters that, in the opinion of Council, are or could become or cause public nuisances;

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. Short Title

1.1 This by-law may be cited as the "Temporary Sign By-law".

2. Interpretation

2.1 Any reference in this by-law to any statutes, regulations or by-laws shall be deemed to be a reference to such statues, regulations or by-laws, as amended, restated or replaced from time to time.

3. Definitions

3.1 Unless otherwise defined in this by-law definitions from the Town's most recent Zoning By-law, as amended, shall apply to terms used in this by-law.

3.2 In this By-law:

a) "a-frame sign" means any sign that is designed to stand freely by means of two board faces or one board face and a supporting leg(s);

b) "abandoned or obsolete sign" means any temporary sign located on a property which becomes vacant and unoccupied for a period of 90 days or more, or any temporary sign which pertains to a time, event, or purpose which no longer applies;

c) "advertising device" means any device or object erected or located so as to attract public attention to any goods, services, facilities or events but does not include a temporary sign;

d) "alter" means any change to the sign structure or sign face including the addition, deletion or re-arrangement of parts;

e) "animated " means any action or motion or colour changes of all or any part of a temporary sign;

f) "approved message" means the message indicated on the application for a portable sign permit;

g) "area" means:

i. the area of the display surface including the border or the frame;

ii. all of the area of the display surface lying within the extremities of the sign, if the sign does not have a border or frame;

iii. in the case of a free standing number, letter or shape, the smallest rectangle which will enclose the number, letter or shape;

iv. in the case of groupings of free standing numbers, letters or shapes, or combinations thereof, the sum of the area of the smallest rectangle which will enclose the grouping of letters, numbers or shapes; and

v. where used in connection with a sign having two display surfaces and a thickness not greater than necessary to accommodate the sign structure and with the thickness not used as a display surface, means the area of one display surface.

h) “daylighting triangle” means an area of private land on a corner lot, which area is to be determined by measuring from the point of intersection of the street lines, 7.5 metres along each such street line and joining such points with a straight line. The triangular shaped land between the intersecting street lines and the straight line joining the points at the required distance along the street line is the daylighting triangle;

i) "development directional sign" means an advertising device directing the general public to a specific place for the purposes of new residential property sales;

j) “digital display” means an electronic device that displays multimedia content and includes, but is not limited to, characters and numbers, graphics, slide show, animation;

k) “display surface" means the entire temporary sign area which encloses the extreme limits of the message or announcement displayed on a temporary sign. Decorations related to the specific nature of the message or announcement shall be included;

l) “temporary sign” means a sign for an temporary or by-temporary or a registered third party advertiser that promotes, supports or opposes a candidate, political party, or a "yes" or "no" answer to a question on a ballot;

m) "erect" means display, attach, affix, post, alter, construct, place, locate, install or relocate;

n) "height" means:

i. the height of a sign with border or frame shall be the vertical distance from the ground on which it stands to the highest extremity of the sign; or

ii. the height of the sign, without border or frame, that is affixed to or mounted upon any building or other approved mounting, shall be the vertical distance from the ground to the top of the letter, symbol or other part of the sign that is highest.

o) “illumination” means artificial light directly or from a source of light connected with a temporary sign, or light focused upon or chiefly directed at the surface of the temporary sign or is lit by lights or comprised of a material that glows or lights up, including but not limited to a neon sign;

p) “inflatable sign” means any sign filled by air or other gas and either designed to be airborne or tethered to the ground, a vehicle, a roof or any other structure and includes balloons;

q) "Officer" means a Municipal Law Enforcement Officer appointed by the Council of the Town of Ajax to enforce municipal by-laws;

r) "open house directional sign" means an advertising device directing the general public to a specific place for the purpose of property sales or open houses;

s) "portable sign" means any sign which is specifically designed or intended to be readily moved from one location to another and which does not rely on a building or fixed concrete foundation for its structural support, and includes, but is not limited to, the type of signs which are commonly known as a portable trailer, mobile, and read-o-graph signs;

t) "person" means an individual, a firm, corporation, association or partnership;

u) "poster sign" means a sign conveying information intended to be displayed for a temporary period of time and includes, but is not limited to a bill, handbill, leaflet and placard;

v) “setback” means the horizontal distance measured at right angles to the boundary of a parcel, lot or block of land, between the said boundary and the temporary sign structure;

w) “step stake sign” means an advertising device consisting of a frame of wire, flat bar or unpainted wood pushed into the ground to support a sign;

x) “teardrop flag” means an advertising device consisting of a flag type banner that is a large teardrop-shaped flag, supported on the ground on solid bases with any custom design printed on the flag material and includes, but not limited to feather flag and fish fin flag type signs;

y) “temporary sign” means a portable sign, a-frame sign, an inflatable sign, poster sign or a yard sale sign;

z) "Town" means The Corporation of the Town of Ajax;

aa) ”yard sale sign” means a sign advertising the sale of personal merchandise on a property zoned residential;

bb) “zone” means the area of a defined land use zone in the Town’s Zoning By-laws passed under the Planning Act, R.S.O. 1990 c. P. 13, as amended or any successor thereto.

4. Administration

4.1 The By-law Services Section of the Town shall be responsible for the issuance of permits for portable signs and inflatable signs and shall be responsible for the enforcement of this By-law.

4.2 This By-law shall be read and interpreted in conjunction with Zoning By-law #95-2003, as amended, of the Town.

4.3 All dimensions are in metres (m) or square metres (m²) unless otherwise indicated and all submissions shall be dimensioned as such.

4.4 This By-law does not apply to the Town with regard to the Town’s Corporate Mobile Sign Booking Policy or signs related to any special project, activity, or event, which the Town is either managing or is a partner in.

5. Permits

5.1 No person shall erect a portable sign or an inflatable sign or permit or cause a portable sign or inflatable sign to be erected without first obtaining a permit from the Town.

5.2 The applicant for a permit shall be the property owner, business owner, or an authorized agent of the property owner or business owner.

5.3 The application for a permit for a portable sign or an inflatable sign shall be filed with the By-law Services Section of the Town.

5.4 The application for a permit shall be completed on the form provided by the Town.

5.5 The applicant shall obtain approval for the proposed sign, if required, from other governmental authorities having jurisdiction.

5.6 The Town may impose any conditions to a permit, deemed appropriate.

6. Revocation of Permits

6.1 The Town may revoke a permit under the following circumstances:

(a) The permit has been issued in error by the Town;

(b) The sign does not conform to this By-law, or any other applicable regulation or legislation; or,

(c) The permit has been issued as a result of false, mistaken, incorrect, or misleading statements, information, or undertakings on the application.

7. Expiry of Permits

7.1 A permit issued by the Town shall expire:

(a) Upon the expiry of any display period specified under this by-law or pursuant to the terms of the permit; or

(b) Immediately upon removal of the sign.

8. Temporary Signs For Which Permits Are Not Required

8.1 The requirement to obtain a permit shall not apply to the following temporary signs:

(a) yard sale signs;

(b) a-frame signs, or

(c) poster signs

9. General Provisions

9.1 No person shall erect or display or permit or cause the erection or display of a temporary sign that is not in accordance with the provisions of this by-law.

9.2 No person shall erect or display or permit or cause the erection or display of a temporary sign on any property or road owned by the Town or Region.

9.3 No person shall erect or display or permit or cause the erection of an advertising device anywhere within the Town.

9.4 No person shall fail to remove, alter or repair a temporary sign which is not in compliance with the provisions of this by-law when so directed by an Officer.

9.5 A temporary sign shall not be erected within 3 m of any driveway where it intersects a highway.

9.6 A temporary sign shall not be erected within a daylighting triangle or obstruct or be located in a required parking space.

9.7 A temporary sign shall not be erected within 15 m of a traffic light standard, stop sign or other traffic control device.

9.8 The person who erected the temporary sign or caused the temporary sign to be erected and the owner of the temporary sign shall maintain such temporary sign in a proper state of repair so that such sign does not become unsafe or unsightly.

9.9 No person shall use any digital display units, animated lights, or any form of animation or illumination affixed to any vehicle as a temporary sign.

9.10 No person shall erect or display or permit or cause the erection or display of a temporary sign with a digital display unit, animated lights, or any form of animation or illumination.

9.11 No person shall use any amplified sound device, either live or pre-recorded in combination with a temporary sign.

10. Prohibited Temporary Signs & Advertising Devices

10.1 The following temporary signs or advertising devices are prohibited under this by-law:

(a) abandoned or obsolete temporary signs;

(b) digital display, animated lights, or any form of animation on a temporary sign;

(c) endeavors any temporary signs or advertising devices on trucks, trailers, or vehicles that are parked on a property in a manner that is unrelated to their normal use as vehicles and is more consistent with the use or intended use of the vehicle as a sign;

(d) any temporary sign capable of being confused with a sign, such as a traffic sign, traffic signal or official sign, or a sign that directs the movement of traffic or a sign which hides the view of any official traffic sign or signal;

(e) any step stake;

(f) any teardrop flags;

(g) open house directional sign; or

(h) development directional sign.

11. Permitted Temporary Signs by Land Use Type /Zone

11.1 Temporary signs shall only be permitted in commercial zones, employment zones, or institutional zones.

11.2 Notwithstanding 11.1, no portable sign or inflatable sign shall be permitted in any mixed use zones.

12. Temporary Signs Standards & Setbacks

12.1 No person shall erect, permit or cause to be erected, a temporary sign except in compliance with the provisions of Table 12.1 of this By-law.

Table 12.1 – Temporary Sign Standards & Setbacks

	Maximum Height	**Maximum Width**	**Maximum Area**	**Minimum Setback**
Portable Sign	2.4m	2.4m	5.75m²	1m
A-Frame Sign	1m	1m	1m²	0m
Inflatable Sign	7m	6m	n/a	3m

13. Portable Signs

13.1 A permit for a portable sign shall be valid for a period of 21 days.

13.2 (a) Lettering for all portable signs shall not be greater than 0.5 m in height.

(b) Lettering, characters, and images used on a portable sign shall be in black or white, primary, or pastel colours only.

(c) Notwithstanding 13.2 (b) no person shall use, or permit the use of, any bright yellow or bright orange, or any other type of neon-coloured letters, characters, or images.

13.3 A portable sign shall have the name and telephone number of the sign company affixed to it in a clearly visible location.

13.4 A Portable sign shall be located on the lot where the business being identified by the said sign is located.

13.5 Flashing lights on portable signs are prohibited.

13.6 A portable sign permit is non-transferable and shall only be used by the business for whom the application was submitted.

13.7 A portable sign shall only display an approved message.

13.8 Only one portable sign shall be permitted on a lot at a time, or one portable sign shall be permitted for each 100 m of public road frontage on a lot, whichever is greater.

13.9 No portable sign shall be located closer than 15 m to any other portable sign.

13.10 No more than 4 permits for portable signs will be issued, per calendar year, per business store frontage regardless of how many registered businesses are located within the frontage.

13.11 No portable sign shall be used for the purposes of an temporary sign.

14. A-Frame Signs

14.1 An a-frame sign shall be wholly located on the lot where the business is located.

14.2 An a-frame sign shall only be displayed between 7:00 a.m. and 11:00 p.m. each day.

14.3 Where more than one a-frame sign is located on a lot, each a-frame sign shall be located a minimum of 9 m from any other a-frame sign.

14.4 Only one a-frame sign per business store frontage shall be permitted in accordance with the provisions of this by-law.

15. Poster and Yard Sale Signs

15.1 No person shall erect a poster sign greater than a dimension of 0.216 m x 0.356 m. (8 ½" X 11")

15.2 Every poster sign shall be made of paper or lightweight cardboard.

15.3 A poster sign shall only be affixed to a utility pole with tape and shall be installed as a wrap around sign affixed flush to the surface of the pole.

15.4 A poster sign shall not be erected on a centre median or traffic island.

15.5 A poster sign shall not be located more than 2 m above grade.

15.6 A poster sign shall not be erected for more than 14 consecutive days.

15.7 The date of posting shall be clearly identified on the front of a poster sign.

15.8 A poster sign shall be removed three days after any advertised event or promotion for which the poster sign has been erected.

15.9 No more than one poster sign shall be permitted to be affixed to a utility pole at any time.

15.10 A yard sale sign shall only be permitted on the day of the yard sale and shall be removed forthwith at the conclusion of the yard sale.

15.11 Every yard sale sign shall include the address and date of where and when the yard sale is occurring.

16. Inflatable Signs

16.1 One inflatable sign shall be permitted per lot at any one time.

16.2 A permit for an inflatable sign shall be valid for a period of 21 days.

16.3 The maximum number of times an inflatable sign shall be permitted on a lot per year is four.

17. Offences and Penalties

17.1 When a temporary sign is erected on or overhanging property owned by or under the jurisdiction of the Town or Region, in contravention of this By-law, the temporary sign may be removed by an Officer without notice, become the property of Town, and be disposed of forthwith.

17.2 When an temporary sign is erected on private property in contravention of this By-law, an Officer may forward a notice, by personal service, telephone or regular post, to the registered owner of the property, or to the lessee or owner of the sign, or their agents, or to the person or agent having the use or the major benefit of the sign, requiring that the sign be removed within the time specified in the notice and thereafter not replaced with any sign in contravention of this By-law or to alter the sign to comply with the By-law.

17.3 If a notice is not complied with, an Officer may require Town employees, or an independent contractor, to enter land and remove a temporary sign at the expense of the owner thereof, the person who permitted or caused the temporary sign to be erected or by the owner of the land on which it is situated and the Town, or their agents shall not be liable to compensate such owner or other person having an interest in the temporary sign for reason of anything done by or on behalf of the Town under the provisions of this By-law.

17.4 The Town may recover any expense incurred pursuant to Section 17.3 by adding the expense to the tax roll and collecting it in the same manner as taxes.

17.5 All temporary signs that have been removed by the Town pursuant to section 7.3 shall become property of the Town and be disposed of forthwith.

17.6 Every person who contravenes any provision of this By-law is guilty of an offence and on conviction is liable to a fine or penalty for each offence, exclusive of costs as prescribed by the Provincial Offences Act.

17.7 Should any provision of this by-law be declared by a court of competent jurisdiction to be void or ultra vires for any reason, the remaining provisions shall, nevertheless, remain valid and binding and the by-law shall be read as if the provisions had been struck out.

18. Repeal

18.1 That By-law Number 5-2021 is hereby repealed.

READ a first and second time this
Fifteenth day of May, 2023.

READ a third time and passed this
Fifteenth day of May, 2023

_____

Mayor

_____

Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 22-2023

A By-law to regulate election and registered third party advertiser signs in the Town of Ajax

WHEREAS pursuant to the Municipal Act, 2001, S.O. 2001, c. 25, as amended, the Council of a local municipality may pass a By-law to regulate or prohibit signs and other advertising devices;

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. Short Title

1.1 This by-law may be cited as the "Election Sign By-law".

2. Definitions

2.1 In this By-law:

a) “campaign headquarters” means a building or part thereof where a registered candidate or third party advertiser has set up an office to conduct an election campaign, in a zone permitted in accordance with the Town’s Zoning By-law, as amended;

b) “daylighting triangle” means an area of private land on a corner lot, which area is to be determined by measuring from the point of intersection of the street lines, 7.5 metres along each such street line and joining such points with a straight line. The triangular shaped land between the intersecting street lines and the straight line joining the points at the required distance along the street line is the daylighting triangle;

c) “digital display” means an electronic device that displays multimedia content and includes, but is not limited to, characters and numbers, graphics, slide show, animation;

d) "division fence" means a fence marking the boundary between adjoining parcels of land or a road allowance;

e) “election sign” means a sign for an election or by-election or a registered third party advertiser that promotes, supports or opposes a candidate, political party, or a "yes" or "no" answer to a question on a ballot;

f) “erect” means display, attach, affix, post, alter, construct, place, locate, install or relocate;

g) “expense” means the cost of carrying out the work to be done by the notice pursuant to Section 7.2 and an administrative charge as outlined in the Town of Ajax Fee By-law;

h) “fascia sign” means a sign parallel to the building wall to which it is attached;

i) “highway” means a common and public highway, street, avenue, parkway, driveway, square, place, bridge, viaduct or trestle, any part of which is intended for or used by the general public for the passage of vehicles and includes the area between the lateral property lines thereof;

j) “illumination” means artificial light directly or from a source of light connected with an election sign, or light focused upon or chiefly directed at the surface of the election sign or is lit by lights or comprised of a material that glows or lights up, including but not limited to a neon sign;

k) “Officer” means a Municipal Law Enforcement Officer appointed by the Council of the Town to enforce municipal by-laws;

l) “park / parking” means as defined in the Highway Traffic Act, R.S.O. c.H.8 as amended or any successor thereto;

m) “polling station” means any building or part thereof where voting takes place during a provincial or federal election;

n) “person” includes an individual, a firm, corporation, association or partnership;

o) “pylon sign” means a sign attached or directly supported by one or more uprights, poles or braces, or located in a structural base, located in or on the ground;

p) “Region” means The Regional Municipality of Durham;

q) “registered third party advertiser” means an individual, corporation or trade union that is registered in accordance with the requirements for registration in a municipal, provincial, or federal election;

r) ”sign height” means the height of a sign measured by the vertical distance from the ground on which it stands to the highest extremity of the sign;

s) ”Town” means The Corporation of the Town of Ajax;

t) “voter assistance centre” means any building or part thereof where the Town is providing assistance or support to electors in order to cast a ballot;

u) “zone” means the area of a defined land use zone in the Town’s Zoning By-laws passed under the Planning Act, R.S.O. 1990 c. P. 13, as amended or any successor thereto.

3. Administration

3.1 This By-law shall be read and interpreted in conjunction with the Town’s Zoning By-law, as amended.

3.2 All dimensions are in metres (m) or square metres (m²) unless otherwise indicated and all submissions shall be dimensioned as such.

3.3 The owner of the lands or premises upon which any election sign is located shall maintain such election sign in a proper state of repair so that such sign does not become an unsafe sign or unsightly.

3.4 Where a conflict exists between the provisions of this by-law and any other by-law regulating signage within the Town of Ajax, the provisions of this by-law shall prevail.

4. General Provisions

4.1 No person shall erect, display, overhang or encroach or permit or cause the erection, displaying, overhanging or encroaching of any election sign on any highway under the jurisdiction of the Town or Region or on any property owned by, or under the control of, or managed by the Town or Region, by lease, agreement or otherwise.

4.2 No person shall erect or display or permit or cause the erection or display of an election sign that is not in accordance with the provisions of this by-law.

4.3 No person shall erect, display, affix, or fasten or permit or cause the erection, displaying, affixing or fastening of an election sign on any division fence if the election sign is visible from any highway that is under the jurisdiction of the Town or Region.

4.4 No person shall fail to remove, alter, or repair an election sign which is not in compliance with the provisions of this by-law when so directed by an Officer.

4.5 Every person using rebar or any type of reinforcing steel or metal, shall ensure that all ends, not including the end inserted into the ground, has safety caps securely covering the ends of the steel or metal.

4.6 No person shall use any digital display units, animated lights, or any form of animation or illumination affixed to any vehicle as an election sign.

4.7 No person shall erect or display or permit or cause the erection or display of an election sign with a digital display unit, animated lights, or any form of animation or illumination.

4.8 No person shall use any amplified sound device, either live or pre-recorded, for the purpose of promoting a candidate or third party advertiser.

5. Maximum Size & Land Use Type Zone

5.1 Except as otherwise restricted in this By-law, all election signs are permitted in all zones.

5.2 No person shall erect or display or permit or cause the erection or display of an election sign on any property in the Town, that exceeds a maximum height of 1.2 m from the ground, has a width greater than 1.2m or has a maximum area greater than 1.44m².

5.3 Notwithstanding section 5.2, an election sign located at a campaign office, promoting the candidate or registered third party advertiser campaign, shall not exceed a maximum sign area of 2.0 m² that is located in any industrial or commercial zone, provided that the election sign is not located within any daylighting triangle.

5.4 Every person using any permanent pylon or fascia sign on the property of a campaign office shall only provide information about the use of the property and may not promote, support or oppose a candidate, political party, or a "yes" or "no" answer to a question on a ballot.

6.0 Sign Placement & Standards

6.1 Candidates and registered third party advertisers shall be ultimately responsible for ensuring that all requirements of this by-law have been met with regards to any election signs erected on their behalf.

6.2 All election signs shall indicate the candidate's name on the election sign.

6.3 Registered third party advertiser signs erected by a registered third party advertiser shall indicate the name of the registered third party advertiser, the municipal, provincial, or federal body where the third party advertiser is registered, and a telephone number, mailing address, or e-mail address at which the third party advertiser may be contacted.

6.4 No candidate or any other person shall erect or display an election sign or permit or cause an election sign to be erected or displayed prior to the issuance of writs for a federal or provincial election or by-election, or 25 days immediately preceding any municipal election.

6.5 No person shall enter on to any property owned by or managed by, or under the legal control of the Town or Region or at any active voter assistance centre or polling station, with any vehicle that promotes or advertises a candidate or a registered third party advertiser by either signs on the vehicle, vehicle wraps, or any other type of display advertising.

6.6 No person shall park any vehicle on any highway abutting, in front of, or within 25m of any property line of an active voter assistance centre or polling station that promotes or advertises a candidate or a registered third party advertiser by either signs, vehicle wraps, or any other type of display advertising.

6.7 All candidates or registered third party advertisers shall remove all election signs within 48 hours after the date of the election.

7. Offences and Penalties

7.1 When an election sign is erected on or overhanging property owned by or under the jurisdiction of the Town or Region, in contravention of this By-law, the election sign may be removed by an Officer without notice, become the property of Town, and be disposed of forthwith.

7.2 When an election sign is erected on private property in contravention of this By-law, an Officer may forward a notice, by personal service, telephone, the email address for the candidate as registered with the Clerk of the Town, or regular post, to the registered owner of the property, or to the lessee or owner of the sign, or their agents, or to the person or

agent having the use or the major benefit of the sign, requiring that the sign be removed within the time specified in the notice and thereafter not replaced with any sign in contravention of this By-law or to alter the sign to comply with the By-law.

7.3 If a notice is not complied with, an Officer may require Town employees, or an independent contractor, to enter land and remove an election sign at the expense of the owner thereof, the person who permitted or caused the election sign to be erected or by the owner of the land on which it is situated and the Town, or their agents shall not be liable to compensate such owner or other person having an interest in the election sign for reason of anything done by or on behalf of the Town under the provisions of this By-law.

7.4 The Town may recover any expense incurred pursuant to Section 7.3 by adding the expense to the tax roll and collecting it in the same manner as taxes.

7.5 All election signs that have been removed by the Town pursuant to section 7.3 shall become property of the Town and be disposed of forthwith.

7.6 Every person who contravenes any provision of this By-law is guilty of an offence and on conviction is liable to a fine or penalty for each offence, exclusive of costs as prescribed by the Provincial Offences Act.

7.7 Should any provision of this by-law be declared by a court of competent jurisdiction to be void or ultra vires for any reason, the remaining provisions shall, nevertheless, remain valid and binding and the by-law shall be read as if the provisions had been struck out.

8. Repeal

8.1 That By-law Number 06-2021 is hereby repealed.

READ a first and second time this
Fifteenth day of May, 2023.

READ a third time and passed this
Fifteenth day of May, 2023.

_____
Mayor

_____
D- Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 23-2023

A By-law to amend By-law 45-2020, being a By-law to regulate vehicular traffic on highways, private and municipal property, and to prohibit the injuring or fouling of highways and bridges, and the obstruction of ditches and culverts.

WHEREAS pursuant to the provisions of The Municipal Act, 2001, S.O. 2001, c. 25, as amended, and the provisions of The Highway Traffic Act R.S.O. 1990, c H.8, as amended, by-laws may be passed by the councils of lower-tier municipalities to regulate vehicular traffic on highways, private and municipal property and the obstruction of ditches and culverts.

NOW THEREFORE the Council of The Corporation of the Town of Ajax enacts as follows:

1. That the Town of Ajax Traffic By-law, 45-2020, as amended, be further amended by adding the following:

   8.6 f) i) Section 8.6 f) shall not apply to any vehicle bearing an Ontario Veteran graphic licence plate. (note: i) represents roman numeral 1)

2. And further that, By-law #45-2020, as amended, be further amended by adding the following:

   10.4 a) Section 10.4 shall not apply to any vehicle bearing an Ontario Veteran graphic licence plate.

3. And further that, By-law #45-2020, as amended, be further amended by adding the following:

   10.5 a) Section 10.5 shall not apply to any local area resident's vehicle bearing an Ontario Veteran graphic licence plate.

READ a third time and passed this
Fifteenth day of May 2023

READ a third time and passed this -
Fifteenth day of May 2023

_____
Mayor

_____
Deputy Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 24-2023

A By-law to amend By-law 54-2019, as amended by By-law 42-2021, to extend Part Lot Control.
[PLC2/19, John Boddy Developments Ltd., Blocks 96 and 103 on
Registered Plan 40M-2584].

WHEREAS John Boddy Developments Ltd. requested relief from the provisions of Section 50 (5) of the *Planning Act*, R.S.O. 1990, c. P.13, as amended, with respect to Part Lot Control for certain lands and Council passed By-law 54-2019 under Section 50 (7) of the *Planning Act*, R.S.O. 1990, c. P.13, as amended, granting relief from Part Lot Control;

AND WHEREAS Council passed By-law 42-2021 under Section 50 (7.4) of the *Planning Act*, R.S.O. 1990, c. P.13, as amended, prior to the expiration of By-law 54-2019, to extend the time period specified for the expiration of By-law 54-2019;

AND WHEREAS Council may, at any time before the expiration of By-law 42-2021, further amend By-law 54-2019 to extend the time period specified for the expiration of the By-law, under Section 50 (7.4) of the *Planning Act*, R.S.O. 1990, c. P.13, as amended.

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. By-law 54-2019, as amended by By-law 42-2021, is hereby further amended to be in force and effect for a further period of two (2) years, ending May 15, 2025.

2. That this By-law apply to the following lands within a Registered Plan of Subdivision registered in the office of Land Titles at the Town of Whitby in the Region of Durham:

   Blocks 96 and 103
   Registered Plan 40M-2584

READ a first time and second time this fifteenth day of May, 2023.

READ a third time and passed this fifteenth day of May, 2023.

_____
Mayor

_____
Deputy Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 25-2023

Being a by-law to eliminate public safety concerns and minimize public nuisances.

WHEREAS pursuant to the Municipal Act, S. O. 2001, c. 25, as amended, a municipality may prohibit and regulate with respect to public nuisances, including matters that, in the opinion of Council, are or could become or cause public nuisances;

AND WHEREAS a municipality may regulate matters not specifically provided for by the Municipal Act for purposes related to health, safety and the well-being of the inhabitants of the Municipality;

AND WHEREAS a municipality may pass a by-law with respect to highways and boulevards within the municipality's jurisdiction;

NOW THEREFORE THE COUNCIL OF THE CORPORATION OF THE TOWN OF AJAX ENACTS AS FOLLOWS

1. SHORT TITLE

1.1 This By-law may be cited as the "Public Nuisance and Safety By-law."

2. DEFINITIONS

2.1 In this By-law:

(a) "advertising sign" means any object used to attract public attention to any goods, services, facilities or events and includes signs, flags, banners, balloons, pennants, lights and posters;

(b) "bordering" means abutting, parallel to, or adjacent to property or a reserve;

(c) "boulevard" means the area of a highway between the edge of pavement or curb of the roadway and the adjacent property line of the highway;

(d) "Council" means the elected members of Council for the Corporation of the Town of Ajax;

(e) "expense" means the cost of carrying out the work to be done and an administrative charge as outlined in the Town of Ajax Fees and Charges By-law;

(f) "highway" includes a common or public highway, street, avenue, parkway, driveway, square, place, bridge, viaduct, or trestle, any part of which is intended for or used by the general public for the passage of vehicles and/or people and includes the boulevard and the area between the lateral property lines thereof;

(g) "occupier" means any person who is in control of any property;

(h) "Officer" means a Municipal Law Enforcement Officer appointed by the Council of the Town or any Police Officer in the Province of Ontario;

(i) "owner" includes the person or persons registered as the owner of a subject property in the most recent municipal tax records and/or on the deed in accordance with the records of the land registry office;

(j) "pedestrian crossing" means any portion of a roadway at an intersection or elsewhere, distinctly indicated for pedestrian crossing by signs and pavement markings and shall include attended and unattended crossings;

(k) "pedestrian walkway" means a Town owned path for the use of pedestrians;

(l) "person" means a natural individual, and their heirs, executors, administrators or other legal representatives, a corporation, partnership or other form of business association or a receiver or mortgagee in possession;

(m) "property" means land, with or without improvements so affixed to the land;

(n) “public place” includes any place where the public has access as of right by invitation, expressed or implied or on private property that is exposed to public view;

(o) “reserve” means a portion of land located between the property line of a private property and the lateral limits of a highway, which is held as a buffer and owned by the Town or the Regional Municipality of Durham;

(p) “roadway” means a portion of a highway improved for use for vehicular traffic;

(q) “sidewalk” means the portion of the highway intended for pedestrian use;

(r) “sight line” means a clear line of vision between conflicting motorists, cyclists, and pedestrians that allows sufficient time for safe maneuvers to be made without significantly affecting the conflicting traffic;

(s) “tow truck” means a vehicle equipped to hoist and pull any motor vehicle to another location or to recover a motor vehicle that is no longer on a drivable surface;

(t) “Town” means The Corporation of the Town of Ajax;

(u) “windrow” means snow left behind by snow removal apparatus which obstructs access to a pedestrian crossing;

3. TOW TRUCKS

3.1 No person shall use, or permit to be used, any land, building or structure, on any residentially zoned property, for the parking or storage of more than one tow truck.

4. ROADWAYS, BOULEVARDS, AND PEDESTIAN WALKWAYS

4.1 Every owner or occupier of property shall maintain every boulevard abutting the property in a clean, tidy and well-kept condition and, without limiting the generality of the foregoing, shall:

(a) Remove any accumulations of discarded material;

(b) Keep grass or weeds in excess of 15 cm. in height cut or trimmed; and

(c) Keep landscaping from encroaching over a boulevard, roadway, gravel shoulder, sidewalk, or pedestrian walkway so as to not interfere with a sight line or safe passage.

4.2 No person shall injure, damage, interfere with or encumber any tree, shrub, plant, bush or hedge on any highway or Municipal property.

4.3 No person shall leave any basketball net, hockey net, skateboard ramp, or any other play structure on any highway or pedestrian walkway, or utilize any basketball net, hockey net, skate board ramp or other play structure in such a manner as to interfere with or obstruct safe passage on a highway.

4.4 No person shall rake, blow or place leaves on any highway except in an approved yard waste bag pursuant to the Municipal collection policies or any regulating authority and/or By-law regulating to curbside collection.

4.5 No person shall mark, deface, wax or damage any curb, sidewalk, or part of a highway or pedestrian walkway.

4.6 No person shall cause, permit or allow the following nuisance activities:

(a) urination, defecation, spitting in a public place;

(b) vomiting by reason of being intoxicated in a public place;

(c) being intoxicated in a public place;

(d) fighting in a public place;

(e) remaining in a public place after being directed to leave by an officer;

(f) destruction of private or public property;

(g) littering on public or private property;

(h) carry liquor in a public place without the benefit of a AGCO licence;

(i) create a disturbance by yelling, swearing;

(j) solicitation in a manner that obstructs traffic or causes a disturbance; and

(k) activity that is disorderly or obnoxious.

4.7 No person shall continue a nuisance activity after having been directed to discontinue the activity by an Officer.

4.8 If a person or owner fails to comply with a provision between 4.1 to 4.5, the Town may, with its servants or agents from time to time, and in a reasonable manner, enter upon property and affect such compliance at the expense of the defaulting person, and shall have the right to recover the expense by action or by adding the expense to the tax roll and collecting them in the same manner as taxes.

5. CLEARING OF SNOW ON PRIVATE PROPERTY AND MUNICIPAL SIDEWALKS

5.1 Every owner or occupier of property shall remove snow or ice, including a windrow, from any sidewalk and from any fire hydrant on or bordering that property, no later than 24 hours after the accumulation of snow or ice.

5.2 The Town may, without notice, remove snow or ice, including a windrow, from any sidewalk and from any fire hydrant bordering that property, if the owner or occupier fails to do so within the aforementioned 24 hours, and the expense of doing so shall be recovered from the owner by action or by adding the expense to the tax rolls and collecting it in the same manner as taxes.

5.3 In accordance with Section 5.2, the cost of snow and/or ice removal shall be the fee stated in the most recent Fees and Charges By-law**.** This cost will be based on the total length of the property boarding the sidewalk and will based on measurements taken from the Town's Geographic Information System. (G.I.S.)

5.4 No person shall shovel, plow or blow snow from any property onto or across a roadway, a sidewalk, a pedestrian walkway or another property, without authorization.

5.5 Every owner or occupier of property, not including an individual private residence, shall remove snow or ice from the walkways, pathways, driveways, lanes, parking areas, and from any fire hydrant on that property no later than 24 hours after the accumulation of snow or ice.

5.6 If a person fails to comply with section 5.5, the Town may, with its servants or agents from time to time, and in a reasonable manner, enter upon property and affect such compliance at the expense of the defaulting person, and shall have the right to recover the expense costs by adding it to the tax roll and collecting it in the same manner as taxes.

6. IDLING PHOHIBITIONS

6.1 No person shall cause or permit a vehicle to idle for more than 2 consecutive minutes.

6.2 Section 6.1 does not apply to:

(a) Police, Fire, Ambulance, Municipal or armoured vehicles while engaged in operational activities, including training activities;

(b) Vehicles assisting in an emergency activity;

(c) Mobile workshops while they are in the course of being used for their basic function;

(d) Vehicles where idling is required as part of a repair process or to repair a vehicle for services.

(e) Vehicles that remain motionless because of emergency, traffic or weather conditions or mechanical difficulties over which the driver has no control;

(f) Transit vehicles while at a layover or stopover location, except where the idling is substantially for the convenience of the operator of the vehicle;

(g) Vehicles when the ambient outside temperature is more than 30ºC or less than minus 10ºC and idling of the vehicle is necessary to the operation of air conditioning or heating equipment; or,

(h) Vehicles transporting a person where a medical doctor certifies in writing for medical reasons, the person requires the temperature or humidity to be maintained within a certain range and idling the vehicle is necessary to achieve that temperature or humidity level.

7. DISCHARGING OF WATER

7.1 No owner shall permit or allow the discharging of any water, from swimming pools, hot tubs, wading pools or ornamental ponds to drain or migrate onto adjacent property.

7.2 No owner shall permit or allow any sump pump to be discharged directly onto any neighbouring property.

8. NUISANCE FEEDING OF ANIMALS

8.1 No person shall throw or place, or permit to be thrown or placed, any type of food, for the purposes of feeding any birds, wildlife, or animals found to be running at large.

8.2 Section 8.1 of this By-law shall not apply to bird feeders that are suspended off the ground, dispense commercially available bird food such as seeds and nectars.

8.3 No person shall be permitted to have more than 3 bird feeders located on any property.

8.4 Every owner of a bird feeder shall:

(a) keep the bird feeder clean by regularly disinfecting with a mild bleach solution; and

(b) maintain the ground underneath the bird feeder by regularly raking the ground thoroughly to remove grain and bird droppings.

9. ADVERTISING SIGNS

9.1 No person carrying, or causing or permitting to be carried, an advertising sign on any.

(a) approach within 1 metre of the curb or the roadway,

(b) interfere with pedestrians or vehicular traffic,

(c) throw the sign into the air or to another person, or

(d) approach within 5 metres of an intersecting highway or a driveway.

10. PENALTY AND ENFORCEMENT

10.1 Every person who contravenes any provision of this bylaw is guilty of an offence and upon conviction is liable to a fine as provided for by the Provincial Offences Act, R.S.O. 1990, Chapter P.33, as amended.

10.2 Pursuant to the Municipal Act, 2001, S.O. 2001, c. 25 the maximum fines prescribed for any person who fails to comply with this by-law or who interferes with or obstructs any person in the exercise of a power or the performance of a duty conferred by this by-law, is liable on conviction:

(a) to a fine of not more than $100,000.

(b) in the case of a continuing offence, the minimum fine of each day or part thereof shall be a minimum of $500 and a maximum of $10,000. The total of the daily fines for a continuing offence shall not be limited to $100,000.

(c) in addition to any other fines under this section, a special fine may be imposed if the commission of the offence resulted in economic gain or advantage. The maximum amount of a special fine may exceed $100,000.

10.3 An officer may make an order to discontinue to any and all persons to cease a nuisance activity and require all persons not residing on the premise to leave the premises where the activity is occurring. This shall include the ability to require any or all persons to leave a public place.

10.4 An order under this section may be given verbally or in writing and may be served personally on the person to whom it is directed.

10.5 A person is guilty of a separate offence on each day that an offence under section 10.1 occurs or continues.

10.6 Despite the maximum fines set out in section 10.2, the court that convicts a person of an offence may increase a fine imposed on the person by an amount equal to the financial benefit that was acquired by or that accrued to the person because of the commission of the offence.

10.7 If the owner or occupier of premises at which a nuisance party is held is present at the nuisance party, then the owner or occupier is presumed, in the absence of evidence to the contrary, to be hosting or organizing the nuisance party.

10.8 A person is guilty of an offence if the person:

(a) hinders or obstructs, or attempts to hinder or obstruct, an Officer, or any person in the exercise of a power or the performance of a duty under this By-law;

(b) makes a false or intentionally misleading recital or fact, statement or representation or produces any falsified or fictitious agreement or document; or

(c) fails to perform a duty imposed within this By-law or who performs an act prohibited herein.

10.9 If this by-law is contravened and a conviction entered, the court in which the conviction has been entered and any court of competent jurisdiction thereafter may, in addition to any other remedy and to any penalty that is imposed, make an order prohibiting the continuation or repetition of the offence by the person convicted.

10.10 If a court of competent jurisdiction should declare any section or part of a section of this By-law to be invalid, such a section or part of a section shall not be construed as having persuaded or influenced Council to pass the remainder of this By-law and it is hereby declared that the remainder of the By-law shall be valid and shall remain in force.

11. REPEAL

11.1 This By-law shall come into force and By-law Number 24-2022 and Number 37-2022, shall be repealed on the date that the set fines are approved pursuant to the Provincial Offences Act.

11.2 Between the passing of this By-law and the date of this By-law coming into force, By-law By-law Number 24-2022 and Number 37-2022 shall apply, and will continue to apply to any enforcement proceedings which had been initiated prior to this By-law coming into force and then only until such enforcement proceedings have been concluded.

Read a first and second time this
Fifteenth day of May, 2023.

Read a third time and passed this
Fifteenth of May, 2023.

_____
Mayor

_____
D-Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 26-2023

A By-law to prohibit and regulate noise

WHEREAS the Municipal Act, 2001, S.O. 2001, c 25, as amended, authorizes a Municipality to pass a by-law to prohibit and regulate noise;

NOW THEREFORE**,** the Council of The Corporation of the Town of Ajax enacts as follows:

1. SHORT TITLE

1.1 This By-law may be cited as the Noise By-law.

2. DEFINITIONS

2.1 In this By-law:

(a) “construction” includes any earth moving, land clearing, excavating, construction, demolition, alteration, repair to any property, including a building, and shall include the delivery or movement of any equipment or materials intended for use in construction.

(b) “Council” means council of the Town.

(c) “Manager” means the Manager of By-law Services or their designate.

(d) “noise” means sound or vibration that is of such volume, level or nature that it is unusual and likely to disturb the inhabitants of the Town.

(e) “Officer” means a Municipal Law Enforcement Officer appointed by the Town or a Police Officer in the Province of Ontario.

(f) “person” includes a corporation.

(g) “residential renovation” includes any construction by a property owner on their own property, and shall not include any construction by a person hired by the property owner.

(h) “Town” means The Corporation of the Town of Ajax.

(i) “waste” means any discarded or unwanted material including, but not limited to, garbage, recyclable material, debris, compostable material, excrement, ashes, packing material, cans, bottles, mechanical equipment, cardboard, grass clippings, tree branches, or leaves.

(j) “waste container” means a receptacle manufactured for the containment of waste that is capable of being emptied by a fork lift truck or a packer truck or a similar vehicle.

3. GENERAL PROVISONS

3.1 No person shall cause or permit the emission of any noise if the noise is audible at the point of reception.

3.2 No person shall cause or permit noise from any construction on Statutory Holidays or between the hours of 8:00 p.m. one day to 7:00 a.m. the following day, Monday to Friday, and 7:00 p.m. on Friday to 9:00 a.m. on Saturday, and 5:00 p.m. on Saturday to 7:00 a.m. on Monday.

3.3 No person shall cause or permit noise for any residential renovation between the hours of 9:00 p.m. to 7:00 a.m. Monday to Saturday, and between 8:00 p.m. Saturday to 9:00 a.m. on Sunday, and 8:00 p.m. on Sunday and 7:00 a.m. on Monday.

3.4 No person shall empty or collect or permit to be emptied or collected any waste from any waste container from any property adjacent to any residentially zoned area, in accordance with the Town’s Zoning By-law, between 11:00 p.m. and 7:00 a.m. of the following day.

4. GENERAL EXEMPTIONS

4.1 This By-law shall not apply to a person who causes or permits the emission of noise in connection with any of the activities listed in Schedule “A”.

5. EXEMPTION REQUESTS

5.1 Any person may request an exemption to permit construction during the periods of time prohibited in Section 3.2. All such requests shall be made in writing to the Manager and shall:

(a) Identify and describe the construction activity that the applicant wishes to have exempted;

(b) Set out the time (s) and location(s) for which the exemption is being sought;

(c) State the name, address and telephone numbers of the applicant; and,

(d) Set out the reasons why an exemption should be granted.

5.2 The Manager may grant or refuse to grant any exemption request, and may impose any conditions as he or she determines to be appropriate.

6. PENALTY AND ENFORCEMENT

6.1 Every person who contravenes any provision of this bylaw is guilty of an offence and upon conviction is liable to a fine as provided for by the Provincial Offences Act, R.S.O. 1990, Chapter P.33, as amended.

6.2 Pursuant to the Municipal Act, 2001, S.O. 2001, c. 25 the maximum fines prescribed for any person who fails to comply with this by-law or who interferes with or obstructs any person in the exercise of a power or the performance of a duty conferred by this by-law, is liable on conviction:

(a) to a fine of not more than $100,000.

(b) in the case of a continuing offence, the minimum fine of each day or part thereof shall be a minimum of $500 and a maximum of $10,000. The total of the daily fines for a continuing offence shall not be limited to $100,000.

(c) in addition to any other fines under this section, a special fine may be imposed if the commission of the offence resulted in economic gain or advantage. The maximum amount of a special fine may exceed $100,000.

6.3 A person is guilty of a separate offence on each day that an offence under section 6.1 occurs or continues.

6.4 Despite the maximum fines set out in section 6.2, the court that convicts a person of an offence may increase a fine imposed on the person by an amount equal to the financial benefit that was acquired by or that accrued to the person because of the commission of the offence.

6.5 If the owner or occupier of premises at which a nuisance party is held is present at the nuisance party, then the owner or occupier is presumed, in the absence of evidence to the contrary, to be hosting or organizing the nuisance party.

6.6 If this by-law is contravened and a conviction entered, the court in which the conviction has been entered and any court of competent jurisdiction thereafter may, in addition to any other remedy and to any penalty that is imposed, make an order prohibiting the continuation or repetition of the offence by the person convicted.

6.7 Nothing in this By-law prevents any individual from privately initiating a charge for an alleged offence.

6.8 A person is guilty of an offence if the person:

(a) hinders or obstructs, or attempts to hinder or obstruct, an Officer, or any person in the exercise of a power or the performance of a duty under this By-law;

(b) makes a false or intentionally misleading recital or fact, statement or representation or produces any falsified or fictitious agreement or document; or

(c) fails to perform a duty imposed within this By-law or who performs an act prohibited herein.

6.9 If a court of competent jurisdiction should declare any section or part of a section of this By-law to be invalid, such a section or part of a section shall not be construed as having persuaded or influenced Council to pass the remainder of this By-law and it is hereby declared that the remainder of the By-law shall be valid and shall remain in force.

7. REPEAL

7.1 This By-law shall come into force and By-law Number 38-2017 shall be repealed on the date that the set fines are approved pursuant to the Provincial Offences Act.

7.2 Between the passing of this By-law and the date of this By-law coming into force, By-law 38-2017 shall apply, and will continue to apply to any enforcement proceedings which had been initiated prior to this By-law coming into force and then only until such enforcement proceedings have been concluded.

Read a first and second time this
Fifteenth day of May, 2023.

Read a third time and passed this
Fifteenth of May, 2023.

_____
Mayor

_____
D-Clerk

SCHEDULE "A"

TO BY-LAW NUMBER # XX-2023

EXEMPTED ACTIVITIES

1. Any event undertaken by the Town or any special event, provided the necessary approvals have been obtained from the Town.

2. Any emergency work undertaken for the immediate health, safety or welfare of the inhabitants of the Town or for the preservation, protection or restoration of property.

3. Any emergency work being carried out by the Town, The Regional Municipality of Durham or an electrical, gas, cable or telephone utility company.

4. Any sound originated from or caused by, the operation of farm equipment or machinery for cultivating, seeding, crop maintenance or harvesting on any lands designated as an agricultural use.

5. Necessary municipal operations carried out in the interest of public necessity and convenience, including but not limited to, snow clearing and street cleaning, undertaken by or on behalf of the Town.

6. Any snow removal which is essential for the effective operation of a business, residential condominium or school.

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 27-2023

A By-law to provide for the 2023 annual remuneration for the Mayor and Members of Council of the Town of Ajax.

WHEREAS the *Municipal Act, 2001*, as amended, allows for the payment of remuneration and expenses to members of council and local boards and expenses be deemed as expenses incident to the discharge of their duties;

NOW THEREFORE the Council of the Corporation of the Town of Ajax enacts as follows:

1. **ANNUAL SALARY**

   a. An annual salary shall be paid bi-weekly to each member of Council.
   b. Effective January 1, 2023 the base salary shall be $118,528.00 for the Mayor and $45,357.00 for a Regional and Ward Councillor.
   c. The annual salary paid to members of Council does not include remuneration as a member of any agency, board, commission, corporation, or other similar organization to which the member is appointed.
   d. The annual salary provided to members of Council shall be adjusted annually as per the approved percentage increase established for Exempt non-union employees.
   e. The Deputy Mayor position shall be compensated at an amount of $6,200 per year for the 2022-2026 term of Council. Such remuneration shall be paid bi-weekly and revaluated as part of the comprehensive review at the outset of each term.
   f. Council's salary will be divided by 26 weeks to determine the biweekly pay.

2. **TRAVEL ALLOWANCE**

   a. In addition to annual salary, each member of Council shall be provided an annual travel allowance in accordance with the market median provided to the Council members in Pickering, Whitby, Oshawa and Clarington.
   b. Effective January 1, 2023 the travel allowance shall be $14,897.00 for the Mayor and $9,438.00 for a Regional and Ward Councillor.
   c. Such remuneration shall be paid bi-weekly.

3. **INSURED BENEFITS**

   a. The Town will pay 100% of the premiums to an Insurance Benefit Carrier to provide benefits to members of Council. Enrollment in the Group Benefit Plan is mandatory.
   b. Newly elected members of Council will be enrolled in the Group Benefit Plan effective the first month following the date in which the Councillor is sworn in.
   c. The Group Benefit Plan will consist of extended health, dental coverage, member life insurance, accidental death & dismemberment (AD&D), and long-term disability benefits. Details of the benefit coverage are outlined in the Benefit Booklet for Elected Officials.

d. Benefits (including Retiree and Survivor) and eligibility for benefit coverage are subject to the terms and conditions of any governing master policy of the Benefit Carrier and/or any statutory requirements.
e. HR Services has the authority to add to or amend the Group Benefit Plan as may be required from time to time. In such cases, staff will advise members of Council prior to the change taking effect.

Benefits Over Age 65

a. Members of Council remaining in office after the age of sixty-five (65) shall continue to receive extended health and dental coverage in accordance with the terms and conditions of the benefits plan.
b. Life insurance and AD&D coverage shall be reduced to one times (1x) the member's salary when the member turns sixty-five (65).
c. Life Insurance and AD&D coverage will terminate when the member turns seventy (70) years of age, or when the individual ceases to be a member of Council, whichever occurs first.

Retirement Benefits

a. A member of Council retiring from office between the ages of fifty-five (55) and sixty-four (64) and who have a minimum of fifteen (15) years of continuous service, will be eligible for Basic Health and Basic Dental benefits.
b. This benefit will cease on the last day of the month in which the member attains the age of sixty-five (65).

Survivor Benefits

Where a member of Council dies while holding office, their dependent(s) (meaning eligible dependents) who are listed on the member of Council's benefit plan at the time of death, will continue to receive medical and dental benefits until the earliest of:

a. a period of twenty-four (24) months following the date of death; or
b. until the end of the month in which the eligible spouse turns sixty-five (65) years of age; or
c. until the eligible dependent (if no spouse is listed) no longer qualifies as a "dependent" under the definition of the benefit carrier; or the spouse remarries.

4. **REGISTERED RETIRED SAVINGS PLAN (RRSP)**

a. The Town will contribute 9% of the Mayor's earnings up to the YMPE (year's maximum pensionable earnings) and 14.6% for earnings above the YMPE and 10% for Councillors to their Registered Retired Savings Plan (RRSP) provided the member is eligible to contribute
b. Council members will declare to HR services and provide proper documentation that they have sufficient RRSP room in the year by the first week of January to be eligible for RRSP payments. Contributions can be made on a monthly/bi-weekly basis only to approved RRSP accounts at financial institutions. Alternatively, if payments cannot be directly deposited into an RRSP account, a lump sum payment can be made at the end of the year.
c. The Town's contribution is considered a taxable benefit.

d. A member who is eligible to contribute may do so up to December 31st of the year they turn 71 years of age.
e. A member of Council who is no longer eligible to contribute due to age or as otherwise determined by legislation, shall have 10% paid out to them on the last pay of December.
f. A member of Council who leaves office or dies while in office prior to December 31st, will receive 10% earned as of their last date in office. In the event of death, the monies owed will be paid to the member's estate.
g. Members of Council who participate in the OMERS plan (as per By-law 08-2023), shall not be eligible for an RRSP contribution from the Town. The Town will deduct the required OMERS contribution rate from the member's bi-weekly salary and the Town will match the contribution.

5. SEVERANCE

a. A member of Council with service of a minimum of four (4) consecutive years is eligible to receive severance upon ceasing to be a member by reason of:
   i Election defeat
   ii Resignation or decision to not seek re-election
   iii Dying while in office
b. Severance is payable at the rate of one month per year up of service up to a maximum amount payable of twenty-four (24) months.
c. If eligibility requirements as stated in 5(a) are met, a member of HR Services will contact the elected official to prepare the severance package. Payment will be submitted as soon as practical.
d. Severance may be payable in one lump sum or spread equally over a period not to exceed twenty-four (24) months or any combination of the two payment methods.
e. No member shall be entitled to receive severance who ceases to be a member by reason of, or by resignation which is a result of:
   i Removal from office by judicial process
   ii Disqualification and/or removal from office under operation of any Act of the Parliament of Canada or the Legislature of the Province of Ontario

6. PREGNANCY AND PARENTAL LEAVE

a. Council members are entitled to be compensated in the event of a pregnancy or parental leave in accordance with Town of Ajax Policy 141, "Pregnancy and Parental Leaves for Members of Council."

7. CHANGES TO SALARIES, TRAVEL ALLOWANCES, RRSP CONTRIBUTION AND SEVERENCE PAY

a. HR Services shall conduct a review of the Council Remuneration By-law and report to the General Government Committee within three (3) months following a municipal election to present findings and recommendations.
b. HR Services shall endeavor to maintain an awareness of entitlements provided to Council members in the municipalities of Pickering, Whitby, Oshawa and Clarington, during the intervening years between elections, and if required, present findings and recommendations to the General Government Committee for adjustments to remuneration.

8. **OTHER EXPENSES**

a. Members of Council shall be paid from time to time for expenses incurred in the normal performance of their duties in accordance with Council approved policies.

9. By-law 22-2022 is hereby repealed.

10. This By-law is deemed to come into force and take effect on January 1, 2023

READ a first and second time this Fifteenth day of May, 2023.

READ a third time and passed this Fifteenth day of May, 2023.

_____
Mayor

_____
D-Clerk

THE CORPORATION OF THE TOWN OF AJAX

BY-LAW NUMBER 28-2023

Being a By-Law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting of May 15, 2023.

WHEREAS Section 5 (3) of the *Municipal Act, 2001*, as amended, provides that municipal powers shall be exercised by By-law, unless the municipality is specifically authorized to do otherwise;

AND WHEREAS it is deemed expedient and desirable that the proceedings of the Council of the Corporation of the Town of Ajax at this meeting be confirmed and adopted by By-law.

NOW THEREFORE, BE IT ENACTED AND IT IS HEREBY ENACTED as a By-law of the Corporation of the Town of Ajax by the Council thereof as follows:

1. That the actions of the Council at its regular meeting held on the 15th day of May, 2023 and in respect of each motion, resolution and other action passed and taken by the Council at its said meeting, is, except where the prior approval of the Ontario Land Tribunal or other body is required, hereby adopted, ratified and confirmed as if all such proceedings were expressly embodied in this By-law.

2. That the Head of the Council and proper officers of the Corporation of the Town of Ajax are hereby authorized and directed to do all things necessary to give effect to the said action or to obtain appropriate approvals where required, except where otherwise provided, and to affix the Corporate Seal of the Corporation of the Town of Ajax to all such documents.

READ a first and second time this Fifteenth day of May, 2023.

READ a third time and passed this Fifteenth day of May, 2023.

_____
Mayor

_____
D-Clerk